

Phil 403 Philosophy of Law

Numbered Transcript

PHIL 403 • Dr. James Orr

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Lecture 1: What Is Law?

At a glance — Orr opens an eight-part series asking what law is.

- 1.1 Welcome, everybody, to the first lecture in an eight-part series entitled Philosophy of Law. We're going to open this series by looking in this lecture at the fundamental questions that are going to be animating this whole course. What is law? What are we talking about when we're talking about law?
- 1.2 If you think about it, the law makes incredible claims on our lives that we tend not to question—how fast you can drive, how much of your income is going to be confiscated every year, whether or not you're allowed to build your own house and to what dimensions and so on and so forth, what you can and can't say in certain contexts, perhaps a little bit less so in the United States, thanks to the First Amendment, but a source of increasing concern on the other side of the Atlantic, particularly in Britain and in continental Europe.
- 1.3 Whether you should send your kids to school. That would seem to be a significant decision that should be the decision of every parent, not some faceless bureaucrat in Washington, DC, or in Whitehall, in London. But we don't question these. We don't question why we should conform to these laws very much.
- 1.4 Now, you might say, well, look, the reason you've got to conform to the law is to think about the consequences if you don't. That's one analysis of what the law might be. It says, "Do this or else, or this will happen to you." So perhaps the process of obeying and conforming to the laws, the state of not really asking questions about the origins of law, is just to, well, if we break it, then bad things happen, and I don't want bad things to happen to me, so I'm just going to—this is what I'm going to, this is going to be my attitude towards the law.
- 1.5 The trouble is, it seems as if the law is something more than just a command to do something with certain incentive structures or deterrent structures attached. H. L. A. Hart, who is a brilliant philosopher of law of the 20th century, we'll be coming back to him again and again, the author of a famous book called *The Concept of Law*, in, [1961] Hart comes up with this striking thought experiment.
- 1.6 He says, imagine a masked gunman coming up to you and points a gun at you and says, "Hand over your wallet." And in that kind of scenario, the sensible thing is to immediately hand over the wallet and anything else you might have on you. But what's the difference? What's the difference from, say, the tax collector saying, "Hand over your money now or else," and the masked gunman saying, "Hand over your money now or else"? What's the difference? Is there a difference?
- 1.7 Some people think, some philosophers argue that there isn't a difference. Robert Nozick, famously, in his book *Anarchy, State, and Utopia*, 1974, says there's no relevant

difference here between an organized crime that got out of control and taken over the whole state and demanding your money—this is a protection racket—demanding your money every year, a bigger and bigger slice of your money every year, or you face prison, or you face an outcome that you're going to want to avoid.

- 1.8** Now, is Nozick right? If he's not, if he's wrong, if there is something that distinguishes the gunman from the tax collector, what is it? And this matters. This kind of question matters. What is it that turns a command into a law? Is the law the same as morality? Well, the claim that the law is the same as morality throws up all sorts of headaches and problems that we'll come on to discuss soon.
- 1.9** But it's important to know what the law is. We've got to understand what makes the legal system legitimate. Law has to be transparent. This is an important principle of natural law, particularly. Law has to be intelligible to the ordinary person. There's the famous Latin axiom: *ignorantia legis non excusat*—"ignorance of the law is no excuse." That means, on the other side of the bargain, that the law is not something that it's easy to be ignorant about. The law is something that should be transparent, graspable, intuitive.
- 1.10** What do we think laws are? They're probably not moral rules. It'd be odd if the Ten Commandments were turned into statutes or bills in Congress. It's a good thing that most moral behavior is not policed by the law and the courts, that it's something that citizens can do with one another in a shared moral culture. A law is clearly not a religious rule. Law is not a kind of social custom.
- 1.11** Women shouldn't wear white to weddings—that's not a law, but it's got the force of some sort of convention, custom. It's not the end of the world if you get it wrong, but there is something; you've done something wrong if you wear white to weddings. Etiquette—use the correct fork or use the correct fork in the right way, or arrange your cutlery at the end of the meal in the right way. This has some very weak level of social pressure, but obviously not a law.
- 1.12** What accounts for the binding force of law? Well, it is intuitively plausible to say that it's morality that ultimately backs law. It's got to be some convergence between law and morality. This is going to be right at the heart of many of the debates that we touch on in this series. On the one hand, you have the so-called natural lawyers, people who think that law is something that reflects the way nature is. Then you have the positivists, the legal positivists, who just say, no, the law is just the law. It could be in harmony with the way the world is, or it could not be at all. It doesn't affect the law as a law if it's not tracking what we would expect to be upstanding conduct.
- 1.13** The positivists will point out, will say, look, there are all sorts of laws which were valid, but which now we would think are not moral or abhorrent—the Fugitive Slave Act of 1850, for example, in America, which required all Americans to return escaped slaves to their owners. This was a valid law passed by Congress, and nobody had any

complaints about the proper procedures and processes that were followed in putting that law into effect. But clearly, there is a divergence between the claims of morality and the claims of that law, the requirement of that law.

- 1.14 The Nuremberg laws from the mid-1930s, 1935, whereby the new National Socialist regime stripped German Jews of their citizenship, prevented them from working in public office, prevented them from publishing, and so on and so forth. And so, it's not difficult to find examples of laws that are plainly immoral, plainly unjust, but which we still recognize, unfortunately, as having been laws.
- 1.15 Whereas the natural lawyers will say, well, no, it's not really a law. It was never really a law because, and here's an important Latin phrase: *Lex iniusta non est lex*. "A law that is unjust." *Lex iniusta non est lex*—"is not actually a law." This is the sort of guiding principle of the natural law theories from St. Augustine to Martin Luther King, that law has to evoke or track morality in some way.
- 1.16 This is the big debate. Is it still a law? Does the fact that the law does not track morality undermine its status as a law? Or is that irrelevant? It's still a law no matter what, and it still has the authority and legitimacy of law. The trouble is that the gap between law and morality runs in both directions. The law can require you to do what morality forbids you to do, namely returning escaped slaves to their owners or racial segregation or whatever it might be.
- 1.17 Conversely, morality can ask you to do things, can require things of us, that the law can't. Forgiveness, for example. Giving to charity, going above and beyond. Well, above and beyond normally means what's formally required of you, what the legal framework would require of you. But what we praise is the people who go beyond what's required. It's called supererogatory action or supererogatory behavior in moral philosophy.
- 1.18 Law can't command these things. Law, by definition, can't forgive somebody. The law simply states what should happen to everybody, and then it might be up to a judge or perhaps a judge to find mitigating circumstances, to reflect certain situations, certain aspects of the scenario in the sentencing and so on. But law and morality ask different things of us.
- 1.19 The question is, what is the difference? Is it accidental? Is it essential? How are we supposed to understand it? Well, back to the gunman and the tax collector. Let's think about this difference. You might say, well, the obvious difference is the tax collector has got authority. He's got the whole machinery and weight of the state behind him. The gunman's just a gunman. He'd be nothing without the gun. So, the tax collector has authority.
- 1.20 This has been one popular answer to the question, to the dilemma, and yet it feels circular. We're asking, in virtue of what does the taxman have authority over the gunman? We have an intuition that the taxman has a law, has a power, an authority, in other words, that the gunman doesn't. It's not enough to just say the reason of the

difference is that the tax collector has authority. We want to know, why does he have authority? What gives him that authority? What makes his authority legitimate authority?

- 1.21 You might say, well, tax laws just apply generally. They're just universal. Everybody's got to obey them; whereas with the gunman, it's just your unlucky night. This is a one-off, never to be repeated, hopefully never to be repeated, incident. Whereas tax laws, they apply all the time, universally, within the scope of the jurisdiction.
- 1.22 Now, this is a bit of a problem because it's not clear that— not all laws apply specifically to all people. There are all kinds of laws that apply to different categories of people. There are even laws that might apply just to one citizen. A court order, for example, an order to pay a fine or else, that is a law, as it were, that is issued by the judge just to you. It's just got your name on it. A deportation order is, by definition, something that applies in persona, that is related to an individual, but it's got the whole force of law behind it. It's not a general law.
- 1.23 I think we're getting closer to the problem when we start thinking about what needs to be in place for the tax collector to issue his demand, which is not in place for the gunman. Here, I think, as we start to think about the context in which the tax collector is embedded, we start to realize that the tax collector is part of a vast system of rules, procedures, of protocols, of institutions, chains of command. Everyone within this system, and pretty much everyone outside it who's subject to the system, accepts that they are in it. Everybody just accepts. There is a sense of obligation within this vast system that involves, in which everybody participates, as it were.
- 1.24 One of the points that Hart makes is that, when we're in such a system, we have a distinctive point of view. We have an internal point of view, a point of view that's internal to the system. This is an important point, but a subtle one. It says, look, you could look at the external point of view and say, well, this is how people behave in particular situations. They're clearly stopping at the traffic light because they know that if they go through the red traffic light, then there will be these consequences. There would be an external way of describing that situation.
- 1.25 But Hart says, when we're actually at the traffic light, we see the red light go, we're not thinking, "Oh, are there any police cars around? Could I just maybe jump this light?" That typically is not going to be the internal thought process. The internal thought process will just be, "It's a red light. Stop. Oh, it's gone green. Go." Hart says that's much more accurate to how we experience law, experience rules, within a system. We just do it reflexively. Actually, it saves us a lot of time. We'll come on to discuss the question of coordination later.
- 1.26 Here you might say, there is a clear difference between inhabiting this system from the internal point of view and using these different laws as guides to justify our actions on the one hand, and on the other hand, the scenario of the gunman. The gunman is not

embedded in any larger system that has claims on me or benefits for me and for my whole moral community or political community when it's properly working. His only authority rests on him having the gun. That's the only difference, the only way he can, as it were, leverage any sort of authority or claim over me.

- 1.27** There are all sorts of challenges. There are some who still argue that the difference between the tax collector's demand and the gunman's demand, or in this scenario, we'd say, well, no, there is a moral justification to what the taxman is asking, and there is not a moral justification for what the gunman is asking. Now, this is a difficult strategy to pull off because the gunman probably isn't a very nice guy, but we don't know anything of his situation, of his circumstances.
- 1.28** There are extreme scenarios where you could imagine a man resorting in his view with morally justifying reasons, to an extreme, to the extreme of sticking somebody up. Conversely, you might say that the way in which taxes are being spent from one point of view would not be moral or not self-evidently moral. Reasonable citizens can disagree about the morality of the laws.
- 1.29** I think the other problem is that it starts to work in—we're trying to work out what is the difference, if any, between law and morality. If an answer is, well, law involves morality, then we haven't got clear as to what are actually the distinguishing features of the two. Law claims authority, not just power. You can say that the gunman has got power over us, has got power over you in that situation, but maybe authority is too strong. Maybe authority is what he lacks.
- 1.30** You might say, and this is quite a helpful distinction, that power is the ability to make others do what you want them to do, whereas authority is the right to command others to do what you want them to do. So, law claims to have this authority. And one popular view that justifies this claim, this authority that law has over us, is the theory of consent: that actually we've consented to be governed by these laws.
- 1.31** Sometimes this is done formally. Oaths, for example, swearing an oath in a court or at a naturalization ceremony or something like that. It could be expressed, but most of the time it's just tacit consent. I was born in this country, haven't left for 30 years. It's reasonable for the state to infer that I've accepted what's involved in living in this country. I'm accepting the benefits of it. Therefore, in principle, I'm ready to meet the consequences of all my behavior, and I'm happy to put up with the costs of living here, too. This is the consent theory to law's authority.
- 1.32** The trouble with this is, the consent model falls down with a problem that consent is almost never expressed, and measuring tacit consent is very, very difficult to do. Most people did not consent. Nobody consented to be born in the country that they were born into, for a start. Nobody really expressly consents. There's no confirmation ceremony or baptism ceremony that brings you in to the national family once you are, as it were, born in the country.

- 1.33 And nor, really, is voting a kind of consent either. I might express my dissent with my vote, my refusal to consent, with my vote. But if my side loses the election, then I'm forced to do something I haven't, expressly haven't consented to, to be ruled by people I don't want to be ruled by. The other problem with the consent theory is that it's not clear that consenting to an action makes that action a moral one or makes it legitimate or okay. If I consent to be enslaved, does that make slavery legitimate? No.
- 1.34 I mean, it's hard to see how one subject consenting to some act, to some immoral act, makes that act okay with respect to that person. In some ways, it's attractive because consent, certainly to the Enlightenment mind, to the rationalist secular mind, it's an attractive theory because it preserves, stresses, autonomy, our independence, and the use of our reason to decide what's right and wrong; it connects to contract theory, which is very important for some liberal philosophers. But broadly speaking, I think it's an approach that is not successful, just because it's very, very difficult to argue for the fact of consent.
- 1.35 There are attempts to say, well, what distinguishes the tax collector from the gunman is also that he's got the authority of a law within a democratic society. It's not quite consent, but it's the sort of messy consent that emerges from the democratic processes of a democracy. This has got some appeal. There's an idea of, there's accountability here. There's a sense of equality that everybody is one person, one vote.
- 1.36 But you've also got all of these problems about, how do we make sense of the problem of the tyranny of the majority, where the majority, as it were, is able, always, through its, just through sheer force of numbers, it's always able to oppress or dictate terms to a dissenting minority. That's a problem, too.
- 1.37 You might say, well, it's not so much democracy, it's more that all these laws aim to bring about the common good, the flourishing of our nation, in some way. Again, there's been a lot of literature on this, particularly recently. I'm thinking here of people like Patrick Deneen at Notre Dame and Adrian Vermeule at Harvard, so common-good constitutionalism. It's got a lot to be said for it. It's thinking about human flourishing in a well-rounded way. It's not just thinking about economic flourishing. It's thinking about, what is it for a political community to flourish? What is it for individuals within the political community to flourish?
- 1.38 That would seem to offer a clear justification of the point of law. Law is just the machine; it's the system that enables everybody to flourish to the max, as it were, enables the political community to flourish to the max. That's as much justification as we need to accept the authority of law over us. Clearly, the gunman and others like him have not got the common good in mind or are not embedded in a system which is oriented towards achieving that kind of flourishing.
- 1.39 Another argument that's sometimes offered is that law solves coordination problems. This is what we call coordination problems. How do you coordinate a huge society, tens

of millions of people, at scale in very complex scenarios? A very good example of this is just driving around in your car. If you think of the extraordinary complexity of laws, of rules, etiquette, highway code, that are embedded into the practice of driving, you realize just how much freedom rules can confer on you.

1.40 You can drive freely from A to B, cross a vast distance, interacting with maybe hundreds of other people in their big metal boxes, driving at speed, and you don't even really think about it. It's all just very smooth because everybody obeys the rules, overwhelmingly. People obey the rules. And some of the rules don't really seem to matter that much in themselves.

1.41 I mean, is it a terrible thing to drive on the right, rather than to drive on the left, as Brits might think of Americans? And Americans might say, "What, these immoral Brits driving on the left-hand side of the road just makes no sense. We always knew that they were evil barbarians lording it over us." Well, no. There's nothing immoral about driving on the left or driving on the right. But there is something immoral about driving on the left when you're in America. That would be taking your loyalty to the motherland way too far and the other way around.

1.42 The point is, the law decides, thou shalt, when in this jurisdiction, thou shalt drive on the right. Thou shalt not drive on the left. Now, that's incredibly useful because it means everybody's got the rule that everybody needs. There's clarity there, and it helps coordinate everything. The law is saying the same thing. Don't behave in such a way that you kill a lot of people on the roads every day.

1.43 It's just, in one country, it's the left; in the other country, it's the right. It's not really explaining obligation, perhaps, but it's showing that the power that law has to coordinate a large and complex society at scale in a way that is conducive to freedom, the freedom of being able to drive where you want. All these other things have to be in place. The law has to be in place to enable that freedom. This is an important idea that limits can liberate. Limitations can actually free up a society.

1.44 So law, as it commands us, as we think about the law, we sense that there's a duty upon us, that the law creates a duty upon us. It's addressing us. It's addressing you. You must file your tax return by the 5th of April. You have a right to remain silent. It's applied to you directly as a citizen. The law treats you as a responsible agent. The law treats you as capable of understanding what your rights are. That's just the basic assumption. Then there may be other circumstances that can be factored in later on that would mitigate your failure to conform to the law, but that's how law feels, as it were. That's what it seems to be directed towards.

1.45 This is different, obviously, from the laws of nature, which are just descriptive accounts of regularities in the natural world. They don't command, they describe. You can't violate gravity, you can't break the law of gravity and so on and so forth. This is a very different way of using the metaphor of law. And law isn't just a way of making

predictions. It's not just saying, if you go through this red light, you will get a ticket and you'll be in a lot of trouble. There's something normative about it, about the law. It's not something that's just stating facts.

- 1.46** Back to Hart's internal point of view, this idea that we're embedded within a system of rules, it's not the external view. It's not the view, as I said, that people usually stop. If I don't, and the police see me, I'll be ticketed. I don't want to get a ticket, so I'm going to stop. And Hart says that's actually not how we normally think about law. We see the red light, we're aware of the rule, red light equals stop, and therefore I must stop.
- 1.47** And even if I can't see a police car anywhere, or anybody else, anybody, and it feels completely ridiculous to be in this crossroads in the middle of the desert, but it's a red light. I must obey, even though there will be no consequences to my disobeying it. Hart says that's totally rational. It's totally rational to stop at a red light in the middle of the desert when there's nobody for 50 miles around you. You're responding to the law in the right way. That's the law. That's the effect that the law has on you.
- 1.48** It's not like the law is helping you along to minimize casualties at crossroads. You can say, "Oh, I don't need the law's help here, because there's no one around. There's no police cars, there's no cars of any kind. So the law is fulfilled. I don't need it for this one." If there was a drone flying above you, an Arizona Police Department drone, saying, "Oh, yeah, he ran a red light. He's in the middle of nowhere, but he broke the law." We're not going to say that the law sometimes applies to crossroads where there may be cars around, but usually not. It's got to be consistent, it's got to be clear, it's got to be universal.
- 1.49** So, we incorporate the rule, the red light rule. We use it as a standard. If somebody jumps the red light, we're shocked, we're horrified. How could he possibly do that? Did he not realize that there might be a police car around the corner that could come and—that this was not a prudent decision on his part? He's taking risks with the fines he might get or the jail time he might get.
- 1.50** No, we say, he broke the rule. How can you just drive through a red light? You can't do that. He's breached a standard here. It's wrong. Just by breaking the rule, it's wrong. I don't care whether the rule itself is, in this particular situation, the scenarios that the red light law is designed to avoid did not, in fact, arise, because there was nobody else around, and he got lucky, and there were no actual consequences. No, it doesn't matter. He broke the law. He broke the rule. The rules can't be broken.
- 1.51** That's how we've—Hart says that's how we think about law; it's how we feel about it. They're not just predicting them. The law is not just predicting things. "If you do this, that will happen," even though sometimes they're written like that. They're simply saying, "You have to do this. You must do this. Do it. Yes, there'll be these other things that will happen if you don't do it, but do it anyway. You've got to do it." We use the language of ought and duty and obligation and so on.

- 1.52** Look, it's true that some people, like the person jumping the red light, will just, "I don't care about the law." It will be true of some people in a large society that they have not internalized the system. But they will tend to be outliers, they will tend to be anomalous, provided the system of law meets certain criteria; provided the law is not so absurd in the demands that it makes on a populace that it loses legitimacy; provided the law doesn't get so unbelievably labyrinthine and complex, like, say, the British tax code, which runs to, I think, something like 20,000 pages, 24,000 pages. I think it's the longest tax code in the world.
- 1.53** There is an argument that, actually, no single human being could possibly understand the entirety of the UK, of the British tax system. You could sit down and absorb the Singaporean tax system quite quickly. There is this, it's a civil law, not criminal law, you might say, at least until you stop paying your taxes, and then it becomes a criminal law matter quite quickly.
- 1.54** But there's an argument that the complexity of law, if it's difficult to understand, then that weakens the authority of law. There's got to be a sense of its authority, of its clarity, and that it applies to everybody, and including that there's internal acceptance by those who are subject to it and by the people who are charged with administering it. The officials have to be part of it, too. That is to say, the tax officials, the government, and so on and so forth. They've got to believe it, too.
- 1.55** So the tax collector can't just say, "Oh, this is a great way to make a bit of money or make people's lives miserable." There's got to be a belief on the other side that the system should work. The tax collector is not like he's in the Mafia or something. In the Mafia, you enforce the boss's commands because you're scared of what would happen to you if you don't. You would only think of it from the external point of view. Nobody thinks that the Mafia's boss's orders generate duties, moral duties, to say, "No, I've got to do this, or Il Padrino will bump me off."
- 1.56** Whereas when I'm acting on behalf of the state as a tax collector or as a policeman, I'm accepting the laws as binding. I'm operating within the web of commands and laws and suggestions. Hart says, this is at the heart of what law is. It is something, this internal point of view is what's conceptually necessary. It's got to evoke, within the people who are subject to it and the people who are in charge of administering it, they've got to feel that they are part of that system. They recognize the rules as rules, and they're not thinking about consequences. They're not thinking in factual predictive terms.
- 1.57** It doesn't require moral approval, this internal point of view. It just is what it is. This takes us right to the center of the central question of what exactly is a law. Sometimes we refer to this as the puzzle of reasons that don't have any content, content-independent reasons. When we're faced with a difficult moral scenario, we can see the reasons for action almost immediately. I see the drowning child, I dive into the river to save it, because that saves the life of the child. I don't need to give any more reasons for my behavior.

- 1.58** Keeping promises sustains trust. I don't need to give any more reasons for it. That's a good reason to keep your promises, and so on and so forth. But the law seems to claim something different. The law seems to say, do this, do X, regardless of whether you've got independent reasons for doing so. Don't need reasons because I've got enough authority to just tell you to do this, and you don't need to be satisfied that there are reasons for this law. You might not even understand them, or you might disagree with them. It's irrelevant. Do it.
- 1.59** Then I can say, okay, yeah, I'm just doing it. I have no idea what this law is about. It's completely stupid, but I'm doing it. Or you might say, well, you never do that in any other area of your life. You always have reasons for action, reasons for why you do things. Well, no, I'm obeying the law because it's the law. My only reason for action, I have a reason for action. Even though I couldn't find any in the content of the law—I just think it's a crazy law, I don't understand it— no reason, absolutely no reason to give you for why I'm doing this, other than that I'm obeying this law that I don't understand.
- 1.60** But the point is, that's a good enough reason. That's a reason for action that we would take. It's the law. It doesn't make sense. The law is an ass, etc. But the rational thing to do is to obey it. It's still a reason to—obeying a law just for the reason that it's a law is still a reason for acting. Sometimes you can understand that. It's, why should I have to drive on the left? I don't want to drive on the left. It doesn't make any sense. There's no difference, there's no moral difference between driving on the left and driving on the right.
- 1.61** The answer to that is that, well, sometimes the content is irrelevant; very often the content is irrelevant, but it's the conformity and the coordination, which is the point. You've got to drive on the left because that's what everyone else is going to be doing. This is good for you in the long run. It's going to save you a lot of trouble.
- 1.62** What the law seems to be doing in that situation is, it creates a reason for people to act in particular ways, without leading to the scenario where people are jumping out of their cars at crossroads or in traffic jams, having long arguments about what the traffic regulations ought to be, and trying to swap reasons for why they're going to jump the red light, why they're not, etc. No, and the law, as it were, takes all of that away, clarifies everything. It just says, "This is it. Shut up and obey."
- 1.63** A lot of people, the libertarian impulse might not like that. But by everybody shutting up and obeying on a whole range of laws, our life collectively is overwhelmingly better than it could have been otherwise. Back to this idea of the law is something that can liberate. It can free us up by having structure that we can, broadly speaking, say, "Everybody else is going to sign up to this, too. There will be consequences if they don't, but the law is the law."

- 1.64** We've looked already, just in this opening lecture, at the impulses behind these two families of approaches to the question of jurisprudence. Jurisprudence, just a fancy English term coming from the Latin, meaning simply thinking about law, the philosophy of law. We'll be delving more into the history of that shortly.
- 1.65** It's actually not a discipline, not a subject that you probably would do at law school. Maybe in America, where law school is a little bit longer. In England, you're in and out in about 15 months. I think, in America, it takes more like four years. But certainly in most systems or compressed legal training at law schools and diplomas and degrees in legal training, philosophy of law will certainly not be compulsory. You'll dive straight in, and you have to look at contract law, what makes an agreement, offer and acceptance, consideration, and all of these sorts of questions.
- 1.66** You look at tort law. That would be laws like trespassing, for example, where you can commit a civil wrong against another citizen. It's not a criminal wrong, but it's a civil wrong that's not contractual, so it's not governed by some contract, but there are systems of liabilities and obligations that the law puts into place, which courts will recognize— which is why, in certain circumstances, after a terrible crime, you can have two trials.
- 1.67** After the O. J. Simpson trial in the mid-1990s, you had the criminal trial, the famous criminal trial. But then you had, subsequently, a civil trial where the family of the deceased sued O. J. Simpson. I think they won, actually. How could that happen? Well, because they're two separate processes; the law is divided. There's lots of different divisions, but one important division is between criminal law and civil law.
- 1.68** Criminal law is, as it were, a vertical wrong against the state and against the people as a whole, whereas in civil law, typically, there will be breaches. They won't be crimes, they won't be illegal, but it could be unlawful. You conduct yourself unlawfully, without breaking any crimes. If you walk onto a neighbor's property and you're trespassing, that's not a crime. So all of those posters that say, "Trespassers will be prosecuted," are muddled because you're not committing, you can't be prosecuted for something that isn't a criminal offense.
- 1.69** It's a civil wrong, which the person who owns the property could, in principle, attempt to pursue you about through the courts. There are circumstances in which it could become a crime. For example, suppose the court, you go to trial, the neighbor wins, you refuse to pay up, you refuse to pay the damages. Then the judge will say, "Pay the damages or else. Here is a court order. Thou shalt pay the damages." Then you move into criminal. If you then say, "No, I don't care. I don't care about your silly court order, not paying," then the judge can say, "This is contempt of court. That's a crime," and you could go to prison.
- 1.70** There are obviously—civil law scenarios can move into criminal law scenarios. This is a point, actually, that Dr. Peterson made very well back in 2017, 2018, over the big

debates in Canada around, is it Bill C-16, I think it was called? Dr. Peterson's point on Canadian television when he was told, "Oh, but this is just— you would just be fined if you were not going to be using this person's pronouns, or you were not going to be using this kind of language. This isn't tyranny. It's just a civil offense. It's just a little fine."

- 1.71** Dr. Peterson said, quick as a flash, "What happens if I don't pay the fine? And what happens if I persistently refuse, out of conscience, to pay the fine?" And of course, the interviewer had no idea what to say at that point because he was right. What would happen if he didn't pay the fine is, he'd go to prison. What seemed to be just a general, soft free-speech guidance, just to help, to be kind to others and so on, actually had these terrible teeth. If you, out of conscience, refuse to take part in that corner of the legal web of obligations, then there would be very severe consequences if you persisted in refusing, if you persisted in expressing your view against the law.
- 1.72** So, these different kinds of law, obviously, there's contract law, there's tort law, there's law around real estate, property, governing property rights and property exchanges between citizens. There is, you might say, constitutional law, so the law of the constitution, how the constitution fits together, and how power is administered and so on.
- 1.73** There are other laws, so equity and trusts, which are specific to, particularly the English-speaking world, English-speaking peoples who've got a very different legal system from the ones that emerged in continental Europe, and by extension, the countries that continental Europe colonized versus the ones that were colonized by the English-speaking peoples, two very different ways of thinking about law and doing law.
- 1.74** But deep under the bonnet, or under the hood, as they say in American, we've got this contest between these two to three accounts of what the law is. As I said, you've got natural law. Law comes from nature. Law ultimately can be traced back to principles of oughts and prescriptions and obligations that we can make sense of by studying ourselves as natural beings and studying what's conducive to our flourishing as natural beings.
- 1.75** You can say law's authority, very straightforwardly, derives from being grounded in these principles that transcend all laws, how human beings should flourish, what they should do to attain their flourishing. If laws are conducive to that, then they're laws; and if they are pretending, if they say that they're laws and they're doing things that lead us to scenarios that are not conducive to our flourishing, then they're not laws. They're cut off from the authority that gives them laws. This is the natural law perspective.
- 1.76** Whereas positivists in the other corner say, it's irrelevant what the law actually says. The content of the law has got nothing to do with morality. It's a completely separate question. If we don't think that, then we can't make sense of laws that we know to be

immoral, but also we know to be valid. I mean, the reason that we think that they're immoral is because they were coercing behavior in particular ways. If it was just some rant from some local guy in a town somewhere, then it wouldn't matter. But no, terrible laws in the past had concrete impacts, led to concrete consequences.

- 1.77** Many, many, many books that could have been written in the mid-1930s by brilliant German Jews were not written as a result of that law being passed. So the law had a causal impact on the world. It did things. We can say it was an unjust law. Why? Because it was immoral, and it coerced people into behaving in particular ways. If it was just to take it or leave it, then the positivist says, then there wouldn't be a problem. The problem is that it has the force of law, that things can have the force of law, whether or not they converge with what the right thing to do is.
- 1.78** I should say that the third position, which is hovering in the air but never really makes enough sense of itself to earn a place at the table, is anarchism. Anarchism. Let's just put in a quick word for the anarchists. Many different kinds of anarchists, surprising given that they don't like any principles or procedures or really anything to distinguish them at all. An anarchy, "zero structure."
- 1.79** The view here is that the claim of law is always illegitimate. It's always imposing itself on my decision-making, my moral sense and intuitions, my capacity to understand duty, to apply my reason to what the right thing to do is in any particular scenario, and what is the law to tell me how to behave. This might work in a community of extremely high-IQ libertarians, possibly, though I'd be skeptical.
- 1.80** But on the whole, it's probably a good thing that we haven't got countries of tens of millions of people, dreaming up their private criminal law code and how they would respond in a particular scenario. No doubt, you'd hope there'd be some convergence in what people agreed to. But the point is, that convergence would have to emerge in any anarchic society if it's going to be a society. If it's going to be any kind of functioning entity, there will very quickly emerge a set of agreements and codes and so on and so forth. The law would just emerge very fast in any lawless society that wanted to continue to be a society.
- 1.81** You might also say in response to the libertarian anarchist, is this really freedom worth having? "Oh, it's great. I can jump into the car. I can drive anywhere I want. I can drive as fast as I want. I don't have to worry about traffic lights or road signs. The freedom is so intoxicating. I'm free from the law." Well, you can see the problem there. You can see the problem is, you can actually know law confers, even if it's inconvenient to me at various points, overall, the benefits that it confers on my life and on the life of my society overwhelmingly compensate for having to wait an interminable four minutes at a crossroads in the middle of the desert.
- 1.82** So, that's the battleground. In the next lecture, we're going to see how this puzzle, this tension between natural law and positive law, plays out in a very famous Greek

tragedy, one of the most famous, certainly one of my favorites, and this is Sophocles' play, *Antigone*, in which the heroine Antigone and her great opponent, Creon, the king of Thebes, the tyrant of Thebes, help us to dramatize, effectively, they dramatize in a very powerful way this conflict between law, the law of the state, the law of the polis, and—question mark—a higher law. That will help us map out the great traditions that we will be focusing on over the course of the next few lectures.

1.83 Thank you for listening.

Lecture 2: The Source of Law

At a glance — The source of law.

- 2.1 Welcome to lecture two in this eight-part series on the philosophy of law. In the first lecture, we looked at the two opposing camps answering this deep fundamental question, what is law? What are the chief characteristics of law? What is it that distinguishes law from ordinary morality? What is it that distinguishes law from etiquette or prudence or social pressure for social conformity?
- 2.2 We're going to look in a lot more detail at these two prize fighters in each corner of the boxing ring, and it's a boxing match that will be with us, really, throughout the series. We're going to go deeper into both traditions in a moment. But to begin with, I just want to put on the table this wonderful dramatization of this great conflict between the laws of the city and whether or not there are laws that transcend the laws of the city, laws that are higher than any human law.
- 2.3 This is Sophocles' play, *Antigone*, performed in, I think, around about [441] BC. It's a wonderful play. It's worth noting that Sophocles is not writing in a context of monotheism. So there isn't a god at the top who is perfectly promulgating all of these different laws, as you would get in the later Jewish, Christian, and Islamic traditions. There are lots of different gods who've got different favorites and different aims, different ambitions, constantly squabbling, capricious, unpredictable, not particularly pleasant people.
- 2.4 This is the context in which Sophocles is writing. And yet, he manages to produce this play that brings alive this paradox, this tension, between the laws of the city and the laws of the nation, you might say, and the laws of all the nations, between particular law and universal law, better than almost any other work in Western literature.
- 2.5 The central puzzle is, what happens when the law commands something which you consider to be gravely unjust? The law claims you must obey. Morality urges you not to obey. What should you do? This isn't just a practical dilemma; it's a conceptual puzzle, too. If a law is telling you to do something that is plainly immoral, is it actually a law? Does it have any claim on you? Does it have any authority over you? Or does it just forfeit its claim on you because it is commanding something that's unjust?
- 2.6 As we've seen, there are different answers to this. The natural lawyer will say it's not a law. There's no paradox, there's no contradiction here. It's not a law because it's not converging on morality. The positivist in the other corner will say, yes, it's still a law; it's still a valid law, and there's a distinction between validity and morality. The law is a valid law, even if the content is immoral or agreed to be immoral. That doesn't mean you have to obey valid laws. The positivist says it doesn't mean you have to obey them, but you can't just say they're not laws. Moral evaluation, moral assessment, is distinct from the question of legal validity.

- 2.7** So, what happens in this extraordinary play? Well, the setup is the city of Thebes. Nobody really liked Thebes in the 5th century BC. They were always treacherous, cowardly, joined the Persian side in the Persian Wars in the first half of the 5th century, so all terrible things. A lot of these tragedies happen in Thebes. It's the aftermath of a terrible conflict that Thebes has survived, a siege that it's survived.
- 2.8** It was being defended by one brother, and it was being attacked by his twin brother. Eteocles was defending Thebes, and Polynices attacked it, led a foreign army against his own city, and they kill each other in single combat. The new king emerges in Thebes, Creon, King Creon, meaning powerful in Greek. Eteocles gets a full burial, honors, and so on, but Creon decrees that Polynices, his twin brother, will remain unburied. No honors, just simply left out for the vultures and for the dogs.
- 2.9** Anybody who attempts to bury Polynices, give him proper burial honors, will be executed. This is Creon's decree right at the beginning of the play. The scene switches to this young maiden, this young girl, Antigone, who is sister to Polynices and Eteocles, their little sister. What does she do? She buries Polynices. She gives her brother, who attacked the city, a simple burial rite in flat defiance of Creon's decree. She's caught. She's brought before Creon.
- 2.10** Creon says, "Did you know about my decree?" Antigone says, "Yes, I knew exactly what the law was." "And yet, you dared to disobey," says Creon. Antigone's reply is one of the most famous passages in Western literature. It's an extraordinary speech and beautiful in the Greek, very rhythmic Greek. This is what it is in English, a rough English translation.
- 2.11** "Yes, I did dare to disobey," says Antigone, "because it wasn't Zeus who made that proclamation, nor was it Justice, 'dikaosyne,' who lives with the gods below, that established such laws among men. Nor did I think your proclamation's strong enough to have power to overrule, because they were mortal. They're mortal proclamations. You're a mortal, and your proclamations are mortal. They can't overrule the *agrapha nomima*, the unwritten, 'the unfailing ordinances'—"laws," *nomima*—"of the gods. These laws have life, not just today and yesterday, but forever. No one knows how long they've been in place."
- 2.12** It's a very famous, very moving speech where she effectively says that there is a higher law to ordinary laws of the city, of the nation. They're unwritten. They're unwritten, but universally known, the universal. There's a divine origin, interestingly. She's talking about the gods, talking about Zeus, comparing Creon to Zeus. "You're not Zeus, you're not god. You haven't got a right to tell, to lay down unjust prescriptions." And these laws can't be changed.
- 2.13** The content of this divine law is bury the dead, bury the dead, especially if they're your kin. This is a universal principle that no law can overrule. It's a good thing to honor family bonds. It's a good thing to respect the gods who would want you to ensure a

quick burial. It's a fulfillment of your sacred duties, and so on and so forth— there are certain norms where it's accepted that no treaty between nations in the world can overrule these norms: jus cogens, "a law that compels." There's a very short list of these, but you might say the law against torturing the innocent would be one, the law against unjust imprisonment, laws against genocide. These are not laws that any state can simply ignore. No two states or more can get together and agree to ignore them.

- 2.14** The natural lawyer will say, well, it's very interesting that there's this shopping list of things that are so bad that no law can change them, can overrule them, but can say that they're not. The natural lawyer will say, well, that's evidence, surely, that Antigone is right, that there are these laws, that nobody, not the UN, not the WHO, nor any other of these big supranational organizations or legal bodies of the International Court of Justice or whatever it might be, there are certain things that they cannot, certain laws that would be invalidated. By what? Not by a law, but by this common consensus that this shopping list is somehow sacred, can't be overruled.
- 2.15** Now, Creon's response is an interesting one. He's not accrued—Sophocles' genius is to quicken sympathy in us for Creon as much as Antigone. There's a plot twist at the end of the play, which does, I think, elicit some sympathy for Creon. So this is not a one-sided presentation that Sophocles offers us here. Creon points out, in response, first he says, "I'm not just a tyrant." I'm not a tinpot dictator who's just managed to take over the city of Thebes.
- 2.16** I've been set up by the city in authority, to be obeyed in small things and in just things and in everything. Nobody's questioning my authority here, in terms of the authority of my office. No one's claiming procedural irregularities in me taking on that office and so on and so forth. Because I have this office, I have the authority to make law. It's not authority that I have in myself as an individual, but it's an authority that is conferred on me by the office that I'm in, that I've been legitimately, lawfully put in.
- 2.17** The law is just what I command is, what I say that it is. And not by its content, whether it's actually a just law, but by the fact that it's me in this office, duly appointed to the office, issuing the commands. Respect for the law means complying with the law, even if you disagree with the law. This is Creon's positivist perspective.
- 2.18** Now, this is a tragedy, and Greek tragedy depends almost every time on there being some terrible paradox or terrible choice that has to be made or has been made, where some suffering is involved either way. There's no cheerful option. There's no cost-free option. Here, the great tension in Antigone, Sophocles' genius is to help us see that this is a tragic situation. It's not this horrible king, this horrible tyrant, Creon, and this poor, misunderstood, well-meaning young girl.
- 2.19** That's probably in the end, the audience is on the side of the young girl, but there is this sense that, no, Creon has a point. He's not acting irrationally. He's not acting unlawfully. He's not acting illegitimately. He's not snatched the rulership of Thebes

illegitimately from anybody. He thinks he's responsible for the city's security, responsible for deterring future attacks by other Polynices and so on and so forth.

- 2.20** If he said, the laws that I proclaim, apply to everybody, except when some pretty young girl comes before me and makes a very moving speech, saying, "Please could I spare her brother?", what implications does that give? What implications does that have for the law and respect for the law, if sometimes it applies, sometimes it doesn't? It depends if Creon is having a good day. The law can't be applied selectively. Everybody's got to be equal before it. Otherwise, it loses its legitimacy. If it applies differently to one person than to another person, then there's a good case to be made that nobody should obey it. It's lost its legitimacy; it's lost its authority.
- 2.21** Anyway, so the play sets off all these fascinating tensions between family and state, family and nation, between religion and politics, between divine law, human law, sacred duties and civic duties, and so on and so forth, and the demands of one's individual conscience weighed against what needs to be done to preserve the common good, collective order, in effect.
- 2.22** Creon's argument is that, if people who attack the civic order, attack the order of the city, attack the common good of Thebes, then there should be consequences for that behavior, and I wouldn't be acting properly if I were not meting out those negative consequences to the person who tried to subvert and destroy the civic order that I've been appointed to uphold.
- 2.23** Now, the ending of the play is stunning. It's very moving. Antigone dies. Creon's son Haemon, who's fallen in love with Antigone, awkwardly, kills himself. Then Creon's wife kills herself. And so, the end of the play, it's just Creon left, a broken man, and we feel sorry for him. There's a pathos, there's a sympathy for him, for how he's got caught up in his absolute commitment to the importance of his office and of the law.
- 2.24** There's something similar in the figure of Javert in Victor Hugo's *Les Misérables*. This wonderful novel, one of the longest ever written, and there is this fascinating character in it who takes the role of a police general, as it were, a senior superintendent in France in the early 19th century. He's an absolute stickler for rules, for principles, and for justice. He pursues the hero of *Les Misérables* all through the book, and won't let him go.
- 2.25** At the climax of *Les Misérables*, he is confronted with an act of extraordinary grace on the part of Valjean, the hero, and to the person who's just committed to law and to principles and binary applications of principles, non-selective applications of principles at all times, the grace, the kind of forgiveness that Javert experiences is incomprehensible, because the law is the law. The law doesn't forgive, the law doesn't have emotions, the law just sets down the rules, and you've either broken it or you haven't.

- 2.26 Javert, a little bit like Creon, we're supposed to feel, I think at long last, sympathy for Javert as he throws himself off the bridge into the Seine. Sorry, I've just realized I've spoiled not one but two, the endings to not one but two great works of Western literature. But of course, you will have read them already, so I'm sure they weren't spoilers.
- 2.27 This is a very good way of setting up the conflict between these two, between natural law and positivism. The natural law corner is sustained by a number of important thinkers. I suppose Augustine and Aquinas are the two giants, historically. Augustine works out, for example, a theory of just war. When is it just to wage war? And develops a set of criteria, and he's not doing it for any particular parliament. He's not doing it for any particular lawmaker. He's just saying that these are the principles that make sense morally, when you're thinking about whether to invade a country or not.
- 2.28 It can't be, you're doing something to another country. I mean, yes, you can get legal backing from Congress or from the prime minister or wherever it may be, for going to war domestically. But is it right, beyond that? Beyond the domestic law, when is it right to go to war or not? Both Aquinas and Augustine wrestle with this question in very brilliant ways, in ways that were so insightful that they're still with us today. We talk about just war theory, and that comes straight from Aquinas and Augustine.
- 2.29 It's not any particular law. This is an idea that there is this law that should govern all nations, govern all peoples, when they are thinking about questions of war. So, for example, a necessary condition of going to war justly is to prevent the suffering of the innocent, to prevent the suffering of the innocent. If that is a core aim, preventing the suffering of the innocent, that is a legitimate reason, a necessary but not sufficient condition, for going to war. Proportionality. Will you be waging war in a way that is proportional to the way that it's being waged against you? Questions of nuclear weapons emerge here, of course.
- 2.30 Then a list of other conditions, too. Prospects of success. If this is just going to be a war that is, yes, attempting to relieve the suffering of the innocent, yes, proportionate, but also there is no realistic hope that you're going to achieve your ends here, then Augustine says this is actually a reason not to go to war, even if everything else is in place. If you're too small to really have any impact at all, then you shouldn't be risking the health and the safety and the order and the lives of your society on this hopeless decision.
- 2.31 This is the broad view that emerges from Augustine and Aquinas, is, you can work out what the right thing to do is. You can work out what every legal system in the world should be trying to implement, even if they'll implement it in slightly different ways. "Don't kill people on the roads" could be drive on the left, or it could be drive on the right. It doesn't really matter. It's up to the legal system to make sure that you're not murdering people on the roads, you're not killing people on the roads, and there isn't a system in place that allows that.

- 2.32** Aquinas says that's the common good. Safe roads are part of what's good for society. That is simply what a law is. It's an ordinance. Law is something that orders a society through reason towards the common good, towards collective flourishing. That's what the law is; it's an ordinance, says Aquinas. Not just an order, but an ordinatio, "an ordination." It literally almost is this idea of society being straightened, something that straightens and points society in the direction of its flourishing.
- 2.33** This is what Aquinas says it is. It's got to be an ordinance of reason for the common good. It's got to be decided by a legitimate lawmaker, and it's got to be promulgated. It's no good for the law just to have been decided in Parliament. Nobody hears about it. It is now technically a law, but nobody knows it's been passed. Aquinas says that's not good. It's got to be widely known, at least publicly accessible.
- 2.34** And so, what's interesting about what Aquinas and Augustine are doing here with developing the idea of natural law is that they're invoking and appealing to moral ideas. The common good—it's good for society to flourish, and that's what the law is bringing about. The law has a moral purpose. Law as a reason. Law has got to align with reason. This is something that Plato is very keen on, that reason aims at the good. We're able to make a distinction between, say, natural justice and conventional justice.
- 2.35** This idea here, for the natural lawyer, is that law does have this—has a moral dimension, has a moral character, and it's articulated in different ways. For Aquinas, you have eternal law in the mind of God, as it were. Then you've got divine law and human law. Under divine law, you've got, really, the Scriptures. Aquinas says the Old Testament is about the law governing outward behavior, outward appearance, outward conduct. And the New Testament is the law of the heart, is the inner law, the law that frees us from the law that governs us, as it were, on the outside. So that's divine law.
- 2.36** On the other side, Aquinas says you've got human law. So you've got international law, civil laws, positive laws, statutes, judgments in court cases, and so on and so forth, and the natural law. The natural law sits over all of that, sits over human law. You can see you've got divine law, natural law, but both, as it were, flow from the ultimate authority of a maximally excellent being, God. There are divine prescriptions that come from God's specific commands, as revealed through sacred texts, whether it's the Ten Commandments or the Sermon on the Mount or whatever it might be.
- 2.37** Then on the other hand, there's the natural law which also flows from God. You've got the book of Revelation, and then you've got the book of nature. These are just two different books, two different guidebooks or codebooks, both of which are divinely authored, as it were—natural law because God divinely authors nature, and divine law because God divinely authors, through fallible human beings, the writing of these texts, the writing of these Scriptures.

- 2.38** This, for many, many centuries, was the dominant view of what law was, that human law statutes would derive their authority from the fact that this was the way that human beings understood creation and what was conducive to creation's flourishing and what cut against it. But for a long time, it was dominant, and then from, say, the early 19th century onwards, it ceased to really be a serious option for people, for philosophers of law. It fell away. It became something that was seen as too invested in religious commitments, religious claims, which is partly true, although it's worth noting that somebody like a Cicero is happy, is one of the great exponents of natural law. He's not religious, at least in the normal sense that we would think about. He does believe in the Roman gods to some extent, but not that much.
- 2.39** It's perfectly possible, conceptually, to take natural law as a theory, say that there is a way that it's good to be, which is consistent with how we are as natural beings and with nature, such that we could say the law ought to command us to do this and not to do that. We don't need to bring God into it. It just doesn't matter what your theistic or religious commitments might be.
- 2.40** But for various reasons, this theory falls on the wayside over the course of the 19th century and for much of the 20th century. Then in the 1970s, H. L. A. Hart, who I've mentioned already, very much a legal positivist, so in the other corner, was being commissioned to write a series for the publisher, Oxford University Press. He's systematically going through every way of thinking about philosophy of law. The series is on the philosophy of law. He's the top professor at Oxford and already very distinguished.
- 2.41** He's just going through, working out how the series is going to work, and how to get maximum coverage, etc. He thinks, well, we can't not have a book on natural law, even though nobody takes it seriously anymore, except the God people. Nobody really takes it seriously, but we can't just not have anything on it. So, who do we get to write it? It turns out, there was nobody employed at Oxford at the time who was willing or able to write a book on natural law, to fill in this gap in the series.
- 2.42** And so, Hart turns to a young Catholic doctoral student, a PhD student, in Oxford, an Australian man called John Finnis, and says, "I know this is probably way above where you were expecting to be at this point in your career, but would you have a go? Would you do the natural law? But you're a Catholic, you believe this stuff. Have a go." It was a very gracious thing for Hart to have done.
- 2.43** Actually, I had the privilege of Finnis telling me that story over dinner a few years ago and how much it meant to him that he'd had the intellectual generosity to say, "Look, this is a widely discredited theory, but for the sake of scholarly comprehensiveness, I feel I should be including this in the series. I think you're the person who will do it justice, who's most likely to do it justice."

- 2.44 Finnis goes away, writes this book pretty fast, and it comes out in 1980. It doesn't make The New York Times bestsellers list, but it is a momentous point in the history of the philosophy of law, because that book, *Natural Law and Natural Rights*, almost single-handedly brought natural law back into the argument about what law is and what it is, what it ought to be, what its content is, what its nature is. An extraordinary achievement.
- 2.45 It was really supposed to be a textbook, just to fill in the gap. But it developed, it founded an entirely new way of thinking about law. In fact, they're called, it's called the "new natural law." And Finnis, and Germain Grisez, Joseph Boyle, Robbie George, and others are known as the new natural lawyers. What does Finnis do in this extraordinary book? It's a dense read. It's not one for the beach, but there is an incredible clarity to it once you get into it and once you can get to digest his long paragraphs. But it's a brilliant mind at work, no question that this is a brilliant mind at work.
- 2.46 And indeed, Finnis would go on to succeed Hart as the top law professor at Oxford, which itself was significant, that the king of legal positivism gives way to the new king, the new prince of natural law. And what Finnis argues in this great book is that we as human beings, we know what good looks like. We know what something good looks like. We don't need arguments for it. We don't need justifications for it. But there are certain kinds of goods that we just have this basic, almost perception of, basic contact with.
- 2.47 Among these seven goods, he identifies, for example, life. Life is a basic good. The person who says, "Why?", shouldn't really be given an argument. He probably needs a therapist more than a philosopher. Finnis says, no, it's self-evident that life is good. All other things being equal, there may be certain circumstances, certain exceptions to that, but broadly speaking, life is a basic good. And a law or a rule or behavior that undermines that, that seems to treat [life] as not being a basic good, is morally suspect.
- 2.48 Knowledge, says Finnis, knowledge is a basic good. It's good to know things about the world. As Aristotle says, human beings are driven by nature, by a desire to understand, a desire to know the world. It's part of what we do. The dolphin likes to swim. We like to think. We like to know. We like to understand things. That is basically a good, that's a good thing. You don't need to be argued into it. You should just see it. It's good to discover things. It's just how we are. We're driven by this natural and good impulse, says Finnis.
- 2.49 And notice what's going on here. So natural law doesn't mean that we're just animals, and there's just one kind of category that is animals. What's that awful line from that terrible song, "You and me, baby, are just mammals, so let's do it like they do it on the Discovery Channel"? I don't know if I've quite got that quote right. It's part of some song that has been playing incessantly in the '90s, and it's just awful that those lyrics have stuck in my mind. But in the context of natural law, it's important, because the

claim of the natural lawyer is not that we are just mammals, and therefore we can behave in the way that any other mammals can in the animal kingdom.

- 2.50** I remember these debates around 10, 15 years ago on same-sex marriage, and this friend who was on the other side of the argument from mine said, "But seahorses." I said, "What?" "Seahorses are known to enter into same-sex relations." I said, "Well, so what?" "Well, it's just natural, isn't it? It's natural." I said, "Yes, if all animals are just on an absolute plane in terms of trying to think through what they ought to do, what they ought not to do." But why think that? No, we shouldn't be just thinking about nature; we should be thinking about natures.
- 2.51** Now, it may be the case that we are relevantly connected to seahorses in our nature. There's some property in our nature that is compatible, consistent with what's true of seahorse nature. But that's a whole separate argument. You can't just say, well, there's this kind of behavior also in the animal kingdom, therefore, we're animals, too; therefore, all these moral intuitions and qualms we have about applying the law of the jungle shouldn't sway us.
- 2.52** No, there's a particular kind of thing that it is to be a human being, which requires a particular set of judgments and assessments about what is going to tend towards and promote the flourishing of a member of this species, this species, not any other. Aristotle is very good at getting this right, saying, no, we are, we're like animals in lots of ways. We're like plants in some ways. Aristotle says, we have a nutritive faculty. That is to say a yearning to keep feeding ourselves and to keep reproducing ourselves. That's something we share with the plant kingdom.
- 2.53** The animal kingdom, we share sensory perceptions. We can engage the world in a sensory way, in the way that plants can't. But on top of that, says Aristotle, we have reason. We are rational beings. That's something that nothing else in the animal kingdom has to the degree that we have it. It's something, obviously, the plant kingdom doesn't have at all. And so, any question as to what's going to be conducive, what's going to promote the flourishing of this particular species, has to involve reason somewhere in the mix.
- 2.54** And so, Finnis says, we can exercise our reason and we can apprehend these basic goods: life, knowledge, friendship, play, etc. They're self-evident, and all of our laws and our rights can be derived from these basic goods. And crucially, these new natural lawyers say you don't need to ground this in God. You don't need to—part of what it is to recognize a basic good as basic is that you don't need to justify it by appealing to something else. Life is good.
- 2.55** You don't need to be religious to see life is good, all other things being equal. It's good. The promotion of life, the protection of life, the promulgation of life, these are good things. You don't need to be committed; you don't need to have prior commitments on

God or indeed on anything else to see that, says Finnis and George and Grisez and Boyle. This is really the impulse driving natural law.

- 2.56** Good things about natural law. What are the good things about natural law? Well, as we've seen over the centuries, it gives us a very powerful basis to attack unjust laws. Antigone protesting against Creon, or Wilberforce protesting against the slave trade in the 1790s, civil rights activists protesting and complaining against the injustice of the laws in place, sustaining segregation—this theory directly connects law to human flourishing. It's very clear that this entire system is oriented towards human flourishing. It's a good reason to say that a legal system is not working, if human beings are not flourishing at the end of it. That's not a bad, that's quite a clear, either they're flourishing or they're not, or they could be flourishing more or they're not. There's a clarity here.
- 2.57** The other advantage of natural law is that it gives us a good principle or a good way of thinking about international law. International law is very puzzling. We'll come onto it to discuss it in later lectures. The primary problem with international being, where does it derive its authority from? Is it democratically derived? Well, almost certainly not. If it's international, it means it's beyond the nation and, therefore, the national processes for deliberating over decisions and what laws should be and so on and so forth.
- 2.58** Who enforces it? America still hasn't signed up, for example, to the jurisdiction of the International Criminal Court in The Hague. It's not obvious that was a bad decision, by the way. The International Criminal Court has secured in its, I think, [20-, 25-year history], I mean, barely a handful of convictions. It has made some very plainly political interventions in how it selects who's going to be prosecuted and who isn't and so on and so forth.
- 2.59** But the problem is, who cares about The Hague? Who cares about the ICC, International Criminal Court? What's the authority here? And that is a big problem. Now, if you can buttress that by saying, well, international law is natural law. It's what we already ought to do, but it's exemplified to varying degrees of success in these different countries. But this is what all the different countries ought to be converging on or reflecting. So, those are some advantages, reasons why we might be attracted to natural law as a basis for understanding what law is.
- 2.60** What are the challenges? What are the reasons we might hesitate? The first might be epistemological. This is a long, clunky word, I'm afraid, from the philosophy world, to do with something very simple—namely, what is the connection between things we know and us doing the knowing, between knower and known? Or what's the connection between perceiving something and the things that are perceived, what we see and what is seen?
- 2.61** And philosophers cluster those problems into the same basket, basically one basket, epistemology. From the Greek, episteme, meaning "knowledge," epistemology, "the

study of knowledge." One concern you might have with natural law is, well, how can you just see or know what nature is telling us we ought to do? I mean, maybe in certain circumstances, it would feel obvious, but you're always going to find some tribe in Papua New Guinea that does the opposite. So, can you say it's natural to have this particular view?

- 2.62** People disagree about what natural law consists in. How do you go about adjudicating disputes and all of these concerns? Does natural law really make sense of the variation across different cultures? If natural law is universal, why do we have this variation? I think on that point, it's easy to see, be overly impressed by deep diversity in the practices of different countries in different parts of the world, and in a way that blinds us to actually, to the underlying shared moral purpose behind those practices.
- 2.63** We've talked already about driving on the left and driving on the right. How can two opposite behaviors both be the right thing to do? Well, I think you can make the same observation in response to the claim that there can't be natural law because it's not universal enough, because all these different countries are doing completely different things.
- 2.64** One of my favorite chapters from the first great historian, Herodotus of Halicarnassus—it's Chapter 38 of Book 3 of his Histories—it's a wonderful scene with Darius, the king of the Persians, ruler of the Persians. He summons two groups to his court, the Calatii, who are probably an Indian tribe. Then he summons some Greeks, and he asks each of them, what about their burial practices? It's a link here to Antigone. How do you bury your dead?
- 2.65** The Indians explain, when they die, we cremate them. When they die, we prepare the bodies and prepare the banquet, and we eat them. Herodotus describes the Greeks howling in horror at the thought of what the Indians did to their dead. And then he turns to the Greeks and asks the Greeks, what do you do? And the Greeks say, well, we don't eat them. We cremate them. We burn them as soon as possible and give them proper honors, at which point, the Indians howl with horror and can't believe that these people could be so barbaric as to burn, to put to the flame, their forefathers.
- 2.66** Herodotus concludes that [Nomos ho panton basileus], "the custom and convention is the king of all," each to his own way of doing things. Now, I think this is a mistake; I think Herodotus makes a mistake. It's a brilliant story, but the conclusion is exactly the wrong one to conclude. Because although cannibalizing your dead, your cannibalizing Granny and cremating Granny may seem to be wildly different forms of moral behavior, in fact, I think you can argue, the natural lawyer can argue and say, no, it's the same principle.
- 2.67** This is like a left-right, driving on the left, driving on the right scenario, in the sense that the same moral principle is driving both practices—namely, honor your dead, honor the dead, and particularly honor your dead. This is the whole force of Antigone's argument.

Now, the fact that this Indian tribe thought that the way to express that honor was to ingest the genius of your forefathers and to make sure that they will always be with you in body and spirit, well, it's not crazily irrational, that belief.

- 2.68** The Greeks: just get rid of them, burn them; we don't ever want to see them again; don't really care that it's all ashes, and we might not have a proper tomb here. It just could go anywhere. And the Indians can say they're everywhere. They're with us, just in our bodies and so on. But both are driven by this nonnegotiable commitment to honoring the dead and to giving the dead the appropriate treatment, a treatment that appropriately reflects the need to honor the dead, whatever form that treatment might take.
- 2.69** So, yes, there may be variation, and yes, to some extent, maybe that does undermine the claims that natural law is universal. But I think you just dig it, you dig deep into some strange behavior of a tribe in Papua New Guinea, and you begin to inhabit their thought world. There's always going to be some inner rationale for it that would be accessible to us, even in a very, very different anthropological context. So, that's the pros and cons, as it were. We're trying to run a cost-benefit analysis of natural law.
- 2.70** In the other corner, we've got, of course, the legal positivists. We've got the great Hart and so on, and their core thesis against natural law is that, no, we've got to separate law from morality. It doesn't mean that law and morality are unrelated. The positivist doesn't claim that; often they will overlap. Also, it's not claiming that the law shouldn't try to be moral, shouldn't have moral ends, moral goals. It's not what the positivist is claiming.
- 2.71** The claim is, rather, the question, "What is the law?" is different from the question, "What ought the law to be?" Those are two different questions, says the positivist. Just question, is this a law? Yes, it is. It's not, ought it to be improved, or could it not be better? And so on and so forth. You can work out what a law is by watching a society behave independent, and you can stay agnostic on whether or not the laws are good or bad or whatever.
- 2.72** How would you pick up the clues from observing society? Well, you look at what behaviors are enforced, what behaviors are enacted, what behaviors are recognized, and so on and so forth, what laws are recognized. But the question of what ought a law to be is not a question for the lawyer or the judge. It's a question for the moral philosopher, for a political philosopher, for the people at large, for the voters at large, and for parliamentarians or for congressmen.
- 2.73** That's an evaluation question. That's a moral question. What ought the law to be? These are independent questions. We can ask about the validity of law, rather than the morality of law. Then we're asking about, was it enacted properly? Did it go through all the proper processes? Has it been vetoed by the president? Has it had His Majesty's royal assent? Is the last moment where it needs to become law, has that happened

properly? Do all the courts and the lawyers recognize it as a law? And is it properly enforced?

- 2.74** This is a very important point. Does something happen when the law is not honored or is not broken? If, persistently, a law is not enforced, then it becomes very difficult to apply it at all, because it looks as if it's being applied selectively or arbitrarily. If that's the case, that undermines not just that law, but the whole legal system. There are just some laws that are enforced, some laws that are not. That saps public trust and confidence in the law, which is very damaging.
- 2.75** This is why having lots of pointless laws on the statute books, they might seem harmless, but actually it's not harmless, because it contributes to the sense that law is just this vast jungle full of trees that nobody's ever seen, nobody really cares about, and they don't really have any effect at all. You can think that just overall weakens trust in the system.
- 2.76** There'll be broad agreement about the system. There'll be disagreement about whether the system could be improved and so on. But the idea was, if Parliament enacts a law, the King gives royal assent, it's a law. In the US system, has it gone through? Has it gone through both houses and has it passed? It seems to be quite rare in the United States these days with the filibuster rule; it seems almost impossible to get anything through the Senate. But if it gets through the Senate, then it's valid. Or an executive order from the Oval Office, it's valid for as long as that president is around, at least. And it has the force of law. That's just a factual question as to whether or not it meets those criteria.
- 2.77** This is probably the dominant view in most faculties across the West. It's probably certainly the dominant view of somebody like Jeremy Bentham, of Thomas Hobbes in the [17th] century, author of the great *Leviathan*, 1588 to 1679. Law is a sovereign command, says Hobbes, and is grounded in the deal that the governed make with the government, that the government will have a sole monopoly on coercion and on violence, on enforcement of one law, in order to make sure life is livable for everybody else, and that we don't descend into a *bellum omnium contra omnes*, "a war of all against all."
- 2.78** So he was a very important figure in the emergence of legal positivism. You've also got Jeremy Bentham, John Stuart Mill's godfather, poor Mill. Bentham was a brilliant utilitarian philosopher, but also critiques the idea of natural law or natural rights as "nonsense upon stilts, imprescriptible nonsense." The law is just what is commanded by the due authority, and it's utility that we're aiming at when we're doing law, not some kind of state of natural flourishing.
- 2.79** There are others, too, of course, in the 20th century. H. L. A. Hart, I've already mentioned, but Joe Raz, Joseph Raz, who I would bump into occasionally in the

quadrangles of my college in Oxford in the late 1990s. A very, very shy man, but a brilliant, brilliant philosopher of law, a great contributor to these debates.

2.80 What we've done in this lecture is just to set out, flesh out in a little bit more detail, these two great traditions and the different solutions that they offer, the different weaknesses that they encounter. But there are many questions that still remain. We still need to dive more deeply into classical natural law, have a look at what Plato has to say about law, look at what Aristotle and Cicero have to say about law, and then we can move into the late antiquity and the Middle Ages, and we can start to see what the influence of Christianity is on European legal traditions, through Aquinas in particular, but also medieval jurisprudence.

2.81 That sets us up for the second half of the lectures, lectures five to eight, where we'll be going into a lot of detail on the contemporary approaches to legal positivism. These are deep and unsettled questions which matter a great deal. We're going to keep plowing into the natural law perspective over the next two lectures, and that will conclude more the classical half, if you like, of the lecture series before we move into the contemporary half, in lecture five. Thank you for listening.

Lecture 3: Classical Natural Law

At a glance — Classical natural law.

- 3.1 Welcome to lecture three in this eight-part lecture series, Philosophy of Law. In this lecture, we're going to be diving more deeply into the origins of classical natural law theory. We'll be looking in particular, as we trace it to its sources, at the thought of Plato, arguably the greatest philosopher in the Western tradition, and arguably the most influential. We'll be looking at his vision of law as a kind of reason or embodied reason, you might say.
- 3.2 We're going to be looking at Aristotle's reflections on law, Aristotle, Plato's pupil, a genius, an extraordinarily wide-ranging mind, who thought deeply about the nature of law and the structure of a just society. We'll be looking at the figure of Cicero, and in particular, the philosophy that lies behind Cicero, Stoicism. I'll say a little bit more about what Stoicism is, and particularly the universal scope of Stoic justice.
- 3.3 Stoicism is one of the first, arguably the first, belief system that thinks of human beings as human beings, as something, as law as something that can apply, justice as something that can apply to human beings, just in virtue of the fact that they're human beings, just in virtue of the fact that they belong to the category human being.
- 3.4 Then finally, we're just going to turn, leap ahead, only a millennium, to Thomas Aquinas, who, in many ways, retrieves a lot of Aristotelian thinking, a lot of Cicero's thinking, a lot of Plato's thinking, and baptizes them into a more Christian, more theologically inflected way of understanding natural law in relation to divine creation.
- 3.5 But running through all of these thinkers is the idea that law or normativity or what law is trying to describe or enforce exists in nature. It's wired into the fabric of reality. It's not just there because we say so, because some city-state says so, because some parliament or president or tyrant says so. The principles underpinning law are discovered, not invented. They're discovered, not constructed, you might say. And the laws that we do come up with need to conform to what we've discovered. It's not just that the laws are inventing justice out of nothing.
- 3.6 With the dominance of human rights law, for example, today, certainly in Europe and in Britain, this whole idea of a human being having a right, as opposed to a British citizen having a right conferred on him by the constitutional framework of the United Kingdom, or let's say, a Romanian who is in London, but because he's in the jurisdiction of the laws of the United Kingdom, is subject to them. But the law is particular, emanates from a particular political authority, and governs a particular political domain, in this case, the United Kingdom.
- 3.7 Once we start talking about human rights, well, what parliament are we talking about? Which humans? Just all humans. Who's going to enforce? Who's going to be the court

that assesses the treatment of all humanity, of any human being anywhere? No matter what jurisdiction they're in, no matter what local laws they're subject to, there's this idea that, as a human being, you have all these different protections and rights.

- 3.8** From the positivist point of view, this is very strange. How could there be these free-floating subjects to a law that is not really a law? It transcends all the different laws of local actual nations. This feels like natural law. So natural law lends itself much more naturally to rights-based ways of thinking about justice. Now, there are problems with that, problems with that juxtaposition. So, I think human rights law does have a natural philosophical justification in natural law that it doesn't have, I think, in positive law.
- 3.9** But there are some important tensions there as well. For example, many human rights documents either repudiate or are agnostic on the question of the religious motivation of treating every human being as being freighted with some special kind of dignity or special kind of normative force. This is the language of, this is already quite theological language.
- 3.10** And part of the aim of the people drafting the United Nations Declaration on Human Rights, in 1948, for example, is precisely—the attraction of rights is that it gives us universality without disagreeing about the fundamentals as to where human dignity comes from in the first place. Just don't ask awkward questions. This is the preamble we've agreed. We're one big happy human family. Brothers and sisters should treat each other as brothers and sisters.
- 3.11** Well, who's the father of the family? Shh, don't ask awkward questions. Some people might believe in the father, some people might not believe in the father. Some people think they've executed the father. We're just one family. We're a happy human family. Let's just start over. It's 1948. Let's just give it a go. There shall be these universal laws upholding human dignity that override all democratically accountable parliaments and congresses and courts and presidents and kings and queens. This is just what we've decided. We'll come on to the reasons motivating that 1948 document soon.
- 3.12** But first off, Plato. I would urge you, at this point, if you haven't already, for the tiny number of you who haven't already, to listen, watch, and absorb my own series on Plato for Peterson Academy, which I think came out a year or 18 months ago or so. I go into all the detail you could possibly want about this great philosopher. But for our purposes, just thinking about the law, what was distinctive about Plato's contributions?
- 3.13** Probably the most famous dialogue where he touches on these questions is the Republic, which is in many ways the Mount Everest of Greek philosophy, the Mount Everest of political philosophy. The views are extraordinary, even if the air is thin, and you feel you've had to do all sorts of impossible things to get to the top. But this is the Republic, and probably written somewhere in the 370s BC. Plato is—we're not sure quite when he was born, around about 429 BC, and he dies around about 347 BC.

- 3.14** He is left, in many ways, psychologically broken by the persecution, trial, and enforced suicide of his great mentor, Socrates, in 399 BC. He is, maybe traumatized is not too strong a word for what it would have been like for Plato to grow up in the 420s BC, the 410s BC, coming to the end of the fifth century BC. This is a time when, really, the Greek world is ripping itself apart in the Peloponnesian War, from 431 BC to 404 BC. Plato would have been growing up at that time.
- 3.15** So, he would have been 15 when the Athenians sent off this crazy expedition to Sicily, to conquer Sicily, which tens of thousands of men and hundreds of triremes, enormous resources deployed, which they didn't really have, to conquer Sicily. It's a disaster. Within two years, the entire fleet and the entire army of marines have been wiped out by the Sicilians. Somehow, Athens keeps on going.
- 3.16** But it's very clear that Plato blames democracy and the democratic mechanisms and processes for the terrible behavior of Athens and her allies in the Peloponnesian War. The treatment of Socrates, again, he thinks, is something that is a mark of a dysfunctional, unjust society, that it should put the justest and wisest man ever to have lived, in Plato's view, to have put him through that is a sign that this is, democracy has failed in some ways. It's structurally inadequate.
- 3.17** In the Republic, he sets out, through the mouth, through Socrates, as it were, and the various characters gathered around Socrates, he sets out what he thinks a better vision of society might be. We can't go into all of the details, but the central point for our purposes in terms of understanding the origins of natural law is that Plato puts an absolute primacy on reason and truth-seeking and pursuing the good through reason, through thinking, through careful reflection, through debate, even through contemplation.
- 3.18** It's the person who can do that, who earns the right to be a philosopher ruler— interestingly, whether you're a man or a woman. Plato was very clear about this. It could be that you could get philosopher queens or just as possible as a philosopher king. But the point is, it's through that reflection on the good and developing moral wisdom, that's what earns you the right to tell other citizens what to do. You've done the training, you've done the reflection, you've done the mental work.
- 3.19** And philosopher rulers, their authority to rule emerges not just because they have the power to pass laws, but just because they have wisdom. They've earned, they've attained, a state of wisdom that gives them the authority to rule. Plato is quite clear about this. Laws are not the same as wisdom. It's better to have wisdom than to have perfect laws. Why is this? Well, rigid laws can't accommodate exceptions. Laws have to be general. They have to be universal. That means that there might be certain circumstances where it seems like the law has been applied unjustly or disproportionately, so disproportionately that it might lead to an injustice.

- 3.20** In Plato's view, wisdom can accommodate that. The trouble is, wise people are rare. Most people, all people are fallible and finite and fragile, and you can't train them up the whole time. Whereas at least with the law, it is what it is. It doesn't require lots of work and an expensive university education. It's just, it is what it is. It shouldn't be arbitrary. It will prevent arbitrary dictatorial rule, provided that the ruler is always subject to the law. We'll come and discuss that.
- 3.21** And so, Plato's idea is that it's wisdom first that we should be cultivating. The challenge is, how do we find wise people? How do we make, how do we form wise people? Plato's theory, Plato's idea, is just to take babies or promising young toddlers from their families into the care of the state and train them up in military-style barrack dormitories and give them 10 years of maths and geometry, which Plato thought was essential, and lots and lots of one-on-one tutorials with Socrates and people like Socrates, and then, maybe by their 20s, they're ready to have a go at ruling.
- 3.22** But they have to be taken. They can't owe their loyalty to anything other than the state, so no more family life, no more friends. You're in this sort of monastic community. It would not have been much fun, I think, to be a philosopher ruler. This is what Plato insists must be the case. It's worth going to those lengths to ensure you've got the right people, the right people governing you.
- 3.23** Towards the end of his life, in the 350s BC, we're pretty sure it's towards the end of his life, after he's been to Syracuse and back, on a disastrous attempt to be a private tutor, to educate the son of the tyrant of Syracuse, Dionysius, comes back and, probably with a little bit less faith in authoritarian rule, the authoritarian rule that he witnessed in Syracuse. But he writes another late dialogue simply called *The Laws*. Here, he treats law in a very interesting way. Law is more central in *The Laws*.
- 3.24** And it's also, there's a notion that there's some sort of divine imprint on *The Laws*, which you don't get in the *Republic*. There's also this idea that reason is somehow distributed through different laws, through different rules. In fact, the reason that resides in laws is probably greater than the reason that could reside in any single human mind. And so, there's this idea that law is almost like society's brain. It's like this collective web of understanding, which embodies a kind of reason. It's rational. And law is just a codified version of these rules.
- 3.25** It's quite clear that Plato at this point does put more of a primacy on law's power, independent of whatever its content might be, independent of whether it's—what a supremely rational brilliant pupil of Socrates would have put into the law. Plato is much more sympathetic in *The Laws* to not just the role of law, but he's much more forthcoming about what he thinks laws ought to do, what the functions should be.
- 3.26** So, why should we have laws about education? Laws requiring us to send our children to school? Well, you've got to put them somewhere. You don't want them in the house all day. So the law comes in handy. Sorry, we'd love to have you sitting around watching

Netflix and me making you meals all the time and driving you around everywhere, but no, you've got to go to school. The law says everyone's got to go, or you're going to see all your friends at school.

- 3.27** And there's something useful. It's a good coordinating mechanism. This is how society, this is the rhythm of society. This is the kinds of things that we do at scale. Who knows what they'd get up to if they weren't in school. Think of all the mischief that is going to be prevented by having this clear law, or maybe the petty crime, or the little shoplifting at the sweet shops, or whatever it might be. So you say, look, there's an obvious purpose here to say, no, thou shalt send your children to school.
- 3.28** But figures like Plato, natural lawyers like Plato, are much more open about the role of the moral in law. And this serves a moral end. Plato would say, no, you send your children to school because it is your duty to ensure that they have the right kind of moral formation, that they develop the right kind of characters, and that they're trained in virtue, and that their souls are educated.
- 3.29** Plato is very clear about this, and this is more puzzling in a secular world, maybe, or rather, I should say, in a pluralist society where there are many competing conceptions of the good, competing conceptions of what virtue is or character might be. And so, in the modern world, we prefer to be agnostic about that. We just say, well, whatever you think it is to be a good person, then this is the kind of behavior that we would expect. But it's not really for the school to impose that in any detailed way.
- 3.30** But it is in Plato, and certainly in Aristotle's view as well, it's just obvious that schooling, education, is education not just in the mind, but in the soul, in the character. There's a moral dimension to the formation of the young, as well as an intellectual and practical dimension. That is something we're much more allergic to, much more allergic to in the modern world.
- 3.31** So, that's Plato in a criminally compressed format. The basic points are, for Plato, that justice is something that's rational, you can think your way to, you can argue your way to. Justice is intelligible, and law can crystallize that for a particular community; can, as it were, reflect the cosmic order of goodness and justice into that particular community; and it can bring about certain goods. It's got a moral purpose, inculcating virtue, promoting flourishing, and so on.
- 3.32** Obvious concerns, I mean, this view does not sit very nicely with the democracy view that, really, what the society ought to do is whatever the majority of people who can vote in the assembly decide should be the case. Plato is definitely attacking that view. There's a risk of slight totalitarianism, perhaps, in depriving all young families of their children, to be put into a sort of enforced state training, state boot camp, from the age of two. That seems a little—not sure that modern sensibilities could really tolerate that.
- 3.33** Then, of course, big disputes about, well, what is the good? What is justice? Do those classes with Socrates ever end? Does he ever actually give us an answer? Well,

sometimes he does, but then he pulls it back, then he loses an argument, and it's not clear what the right approach is. If we haven't got a good grasp on what the good is, what justice is, then how can we be prescribing it for everybody?

- 3.34** Plato's great successor, Aristotle, successor in the history of philosophy, not, sadly, the successor of Plato's Academy, the institution that he set up in the, round about the 360s, 370s, 360s BC, this goes to a guy called Speusippus, who I think was Plato's [nephew]. It's an early example of nepotism, but it really should have gone to Aristotle, but he chose his son-in-law instead. Aristotle, I think, leaves Athens in a huff, in a bit of a sulk.
- 3.35** In the 340s, he goes off and tutors Alexander the Great, as Alexander the Great is reaching the peak of his genocidal imperialist expansion, and Aristotle does his best. But he's a crucial figure to consider. He thinks long and deeply about questions of politics, questions of law. The crucial distinction he draws is between what is a natural law, laws that arise by physis, "nature," and laws that arrive through convention, nomos.
- 3.36** Nomos, awkwardly, is the Greek word for both convention and law. So, in a way, the idea that a law just is something that is conventionally generated by a parliament or by a king or a prince is already baked into the Greek idea of what nomos is. Nomos is what human beings do. It's a human convention. It's not nature, it's not physis. Physis is something that's distinct. Interesting, the way in which language holds them back or pushes one particular view over another.
- 3.37** So Aristotle says this. The rule of justice is natural. It's natural if it's got the same validity everywhere and doesn't depend on somebody accepting it or not. Whereas a law is conventional, not natural, if it's one that could just be expressed in any form, but once it is chosen, then it's got to remain indifferent, as it were. It's got to stay exactly the same.
- 3.38** So, the driving on the left, driving on the right rule is a good example to this. There's nothing forcing you to choose left or right, but once you've chosen one of them, you have to stick to it. That would be a classic example of a conventional law. Or tax rates, or weights and measures. There's a sort of arbitrariness.
- 3.39** Why is a meter a meter long? Well, because it was the length of the desk in the bureau de mesure in Paris. And so, they said, "Well, let's just take this. Might as well." I mean, we say it's a meter; it is a meter. It's not longer than a meter. It's not shorter than a meter. There's nothing else in the world that more closely approximates the length of the meter than this desk. So, we go with this. And from there on in, yeah, what's the exact length of this object? Well, it's one meter. Everybody agrees; it's universal, it's standard, one meter.
- 3.40** But again, it's a convention. It's a convention. It could have been a different desk. Could have been a different desk. But once the decision has been taken, then it's fixed, and

it's got all the clarity and coordinating power that good laws should have. Aristotle, after making this distinction, says, look, the thing about justice is that it's much more like carpentry than geometry. He makes this famous, draws this famous analogy in the first book of the Nicomachean Ethics, his great treatise on ethics.

- 3.41** And he says, there's no point, when faced with some moral scenario or moral dilemma, pretending to be a geometer, pretending to get exactly the right, precise principles, the perfect inferences, and the perfect conclusion that is the moral judgment. It's just not the way human scenarios are set up. Just, human beings are so much messier than that. Life and reality is so much messier than the pure applications, the pure puzzles of geometry and mathematics, where you can get precise right and wrong answers.
- 3.42** He says, it's more like the carpenter looking for a right angle. Rather than the geometer trying to calculate exactly 90.000 degrees, the carpenter will say, "Well, I just need this to be a right angle for the chair to stand up. If it's 89.9999 degrees or 90.0001, I don't really care. It doesn't matter. It'll do." And Aristotle says that justice is a bit like this, too. Plato seems to think that you can get this perfect access to justice and morality, and then you can just reach the right answer immediately.
- 3.43** Aristotle says, no, judgment is going to be messier than that. The rules of right and wrong are variable, says Aristotle. And applying principles of justice is always going to require "phronesis." It's going to require judgment or wisdom or moral wisdom, practical wisdom. We can think of these, all sorts of examples like this. You lent me your knife, I promise to return it. You go mad and said you want to kill everybody. Natural justice requires that I break the promise, that I say, now I'm not fulfilling this promise anymore.
- 3.44** The principle is universal—keep your promises— but the application is going to be selective. It's going to have to take account of the particular circumstances, of the particular circumstance of the scenario. Interestingly, this gives rise to a—I don't want to call it a system of law because, in a way, it's supplementing law. But should we say, a system of justice or fairness which arises in England, not on the continent, mainly in England in the 16th century, and then gets exported to the Anglosphere, to the English-speaking peoples.
- 3.45** This is this word, this idea, of equity, equity. Aequitas, from the Latin, aequitas, meaning simply "fairness," or a leveling, that's the idea of equality, making equal. Equity is a sort of genius invention of English law which recognizes the roughness of moral judgments, the difficulty of moral judgments, recognizing that making moral decisions, making moral judgments, is more like carpentry than geometry. It's always going to be a little bit rough.
- 3.46** Sometimes applying the law strictly is not going to deliver the justice that we want delivered. There's this supplementary system called equity, which can correct the generality and the universality of the law. It can look, for example, to the intention of

the legislator. The idea is that it's not overriding law, but it's making sure that the law can fulfill its purpose.

- 3.47** There's certain features of equity. Equity has got to be consistent with the principles of natural justice. It can correct positive law, maybe by appealing to a higher principle, and so on and so forth. Judges in equity courts are exercising their discretion and wisdom, rather than just a sort of brute application of the law. This becomes a very important principle in the law of the Anglosphere, the legal systems of the Anglosphere. We'll say more about that later in the series.
- 3.48** One question that Aristotle touches on at various points is, should the laws be in charge, or should the king be in charge, or the best men be in charge? Which is, where does the actual authority, who rules? Who's in charge? Should the best man rule or should the best laws rule? And his conclusion, in effect, is to say, on balance, it should be the laws that rule. The laws should shape the moral universe of society.
- 3.49** And law for Aristotle is a distillation of reason that filters out all the passion, filters out all the emotion, filters out partiality or nepotism, one hopes, if it's a properly passed law. That freedom from all-too-human feelings and inclinations, that feature is always going to give law an authority and a strength that it will be impossible even for the best kings or the best rulers or the best parliaments to exhibit consistently over time.
- 3.50** This is an important principle for Aristotle. All of this, says Aristotle, the primary function of law, in the end, is to ensure that the common good is promoted, not just the whole basket of individual preferences and wants. That's not the same thing as the common, that's not what Aristotle means by the common good, nor is it majority over minority. It's got to be the good of the community as a community, as a whole, that enables each member to flourish. It's not just, is this society ensuring that every individual can do whatever he wants or can fulfill all of his desires? Laws should be geared towards this final end.
- 3.51** Those are the figures of Plato and Aristotle. Aristotle, hard to overstate his influence over subsequent thinking about law, particularly figures like Aquinas, but particularly the system of equity and the common law tradition, the modern theory of the rule of law. It's the rule of law that should be in place. There should be equality before the law. The law shouldn't give special treatment to certain parts of society and so on and so forth.
- 3.52** It should be the rule of law, not the rule of lawyers, which it can sometimes seem has happened today in many societies, that the law is just really a sort of mechanism, a cottage industry to enrich a particular profession, a particular class of people. No matter what the just outcome is, the lawyers always win. But this idea that authority should be vested in the law, even authority over a king, even authority over a sovereign, this is an idea that is deeply embedded in the origins of the classical natural law tradition.

- 3.53** We'll see that this comes to have a big impact, particularly in English and French history in the Middle Ages and beyond that. Is the king above the law or is the law above the king? This is the great clash. Is it the law of the land, *lex terrae*, which is how the English begin to talk about it very early in the 11th, 12th century, the law of the land? It's the only phrase, I think it's one of the only languages in the world that has that phrase, the law of the land.
- 3.54** And if it's the law of the land, it doesn't matter who's king of the land. The law of the land rises up from the land and it holds authority over the king, even over the king. This is different from the French approach to the supremacy of the monarchy over law, the relationship between monarchy and the law. Really, the law is embodied in the person of the king. Yes, with certain constraints and so on, but it's really, what the king says is the law. That is something that tends not to be the case under English thinking. The king stands in judgment before God, like any of his subjects.
- 3.55** Aristotle dies in 322. His great student, pupil, Alexander the Great, has died much younger than him the year before, in 323. Suddenly, all of the known world is speaking Greek and is operating more with the idea that maybe the world is the world. Maybe there is just a world beyond my little city-state or my little island, which all human beings are somehow part of. The language of being a *polites tou kosmou*, "a citizen of the cosmos," as opposed to just a citizen of the "city-state," of the polis, begins to arise. You see the beginnings of something like universalism, this idea that there is some reason or law or justice out there, and it applies to everybody in the cosmopolis, everybody in the cosmic city, everybody on the planet, really, everybody in the world.
- 3.56** This is a big departure. Before that, it's just laws for the Athenians, laws for the Spartans, laws for the Persians. The idea that there's somehow some higher plane of justice and rationality that affects the city-state of the cosmos, all human beings, this is only something that really gets going really towards the end of the fourth century and into the third century, once, after the conquests of Alexander have opened the world up and joined it together in all sorts of interesting ways.
- 3.57** This philosophy emerges, the philosophy of the stoa. The stoa is the colonnade around, that was, of a large building that sits—actually, they've restored it beautifully, so I can say it sits; they've done a beautiful restoration—on the edge of the Agora, I'm thinking it's the eastern edge of the Agora in Athens, just underneath the Parthenon. A group of philosophers had the habit of just hanging out in the portico, the stoa, the colonnade. They'd wander around in circles, talking incomprehensibly to each other. And sooner or later, they started to be called the colonnade guys, the stoic, the stoa guys, the Stoics.
- 3.58** Now, the Stoics are spending the whole time hanging out in the colonnade and talking, and that's their base. That's the base of the Stoic gang. This is the foundation of the Stoic school, which happens at some point in the fourth century and lasts for centuries beyond that. This school, this loose group, you can almost think of an ancient philosophy, a school of this kind, almost like a religion. It's got a certain follower, it's

got certain principles. They live out their lives in distinctive ways, relate to politics and the public square in particular ways, as well.

- 3.59** But there is this idea for the Stoics of a cosmopolitan cosmopolis, that there are just human beings. It matters more to be a human being than it does to be an Athenian or a Persian or an Egyptian and so on and so forth. So, we inhabit a local political community with local laws and customs, but there is this universal cosmopolis, universal community that has its own rules, its own principles, you might say natural law, which can override where there's a conflict, which should override the local laws. We're citizens of both. We're citizens of both, but the cosmopolis takes priority over the polis.
- 3.60** This idea is at the heart of many, many subsequent approaches, particularly to international law; find it in Roman law, early Christianity, modern human rights theories, and so on and so forth. It's a very, very important tradition, picked up by the great Marcus Tullius Cicero, arguably the greatest orator, lawyer, prose stylist, to emerge from the Roman Republic, an extraordinary man of letters, a serious philosopher, not at the level of Aristotle or Plato or indeed anywhere close, too derivative for that, but still a substantial thinker who's well worth reading today.
- 3.61** Of course, he's writing in the 50s, 40s, and 30s BC, which is a time when the Roman Republic is entering into its death throes, entering into its final horrific, bloody disintegration. Having been founded in 507 BC after they kicked out their last king, really from [509 BC] all the way up to the beginnings of the civil wars in, let's say, the 70s BC and really intensifying in the 40s and the 30s BC, culminating in the Battle of Actium in 31 BC, when Octavian, the adopted son of Julius Caesar, defeats Mark Antony and Cleopatra and then takes over as princeps.
- 3.62** He refuses to be called king, refuses to be called emperor, but he's a princeps, "a prince," just a first among equals. But he just ended up in, he kept getting voted in to the top job every year for the rest of his life, as if by magic. He managed to preserve the continuity of the Republic, but in reality, the Republic was turning into an empire.
- 3.63** So, this is a time when all sorts of old traditions and laws are being questioned, being thrown out of the window. Cicero is, you can see how he's kind of wrestling with these different questions, particularly around the nature of morality and justice. Really, what Cicero is trying to do is, he's trying to incorporate the great ideas from the Greek philosophical tradition into a Roman legal tradition.
- 3.64** He says this. "True law is right reason in agreement with nature." So, "ratio" that is in agreement with nature, with "natura". This is vera lex, this is "true law." This kind of law is universally applicable. It's unchanging, it's everlasting. You can't try to amend it. It's a sin to try and alter it. It's a sin to try and repeal any part of it. The Senate can't absolve, get rid of this law. The people can't get rid of this law. There's not going to be different laws at Rome from the ones at Athens.

- 3.65** There's just one eternal, unchangeable law, valid for all nations, all times, one master, one ruler; that is God, who's the author of law and its enforcing judge. This is the argument that Cicero pushes, which is basically a Stoic argument. Its law is fixed, it's objective, it's universal, it's unchanging. It's grounded in a kind of divine authorship. There's a sort of theistic commitment there.
- 3.66** You might think that's rather odd for Cicero. Is not Cicero committed to Jupiter and all that whole gallery of Roman gods? Well, yes and no. His Stoicism allows him to appeal to some sort of impersonal deity, you might say. The Stoics don't really believe in God. It's not a theistic philosophy, but it does think that nature is organized by this rational principle, a logos or a ratio, just is there.
- 3.67** We don't think the rocks think very much, but maybe they do. Maybe the ocean has views about how political society should be structured. But this is the strange Stoic view of it. It's both materialist but also very rationalist. These are really the building blocks within the Greco-Roman world for law as we then take it up in the West, in the European, in the European tradition.
- 3.68** It's from the Romans that we get this important distinction between jus naturale, "natural law," jus gentium, which is the "law of nations," let's say international law, and finally, jus civile, or "civil law." That is to say, law that is specific to Rome, shall we say, or to Athens, or to London, or to New York. And under Roman law, if somebody is not subject to Roman law, he's not recognized as a citizen under Roman law, then you've still got to apply the jus gentium. There are still principles of justice that apply to non-citizens.
- 3.69** The universality of law, the intelligibility of law, had incredible catalytic effects on the flourishing, particularly the economic flourishing, of the Roman Empire. Suddenly, everything is standardized. It doesn't matter whether you're in Gaul, northern France, or deep down in Egypt, along the Nile. It's the same rules, same overarching principles, same courts. If you're a Roman citizen, you have the right to be tried in Rome on any offense.
- 3.70** This imposes extraordinary clarity on a world that was just, had no idea what the rules in the neighboring state were, let alone the rules governing a tribe halfway around the world, down in Africa. But with the Roman Empire, you say, well, no, this is Roman law. Roman law and all the principles behind it extend all the way up to the extent of Rome's jurisdiction. So everything gets standardized, everything is accessible, everything is intelligible.
- 3.71** The mechanisms for enforcement are clear. You do not want to end up in a court when you've got some Roman prosecuting you with a horrific punishment for the crime that they think you've got up to. It's a very strong deterrence. Romans are very good at punishing people. Everybody knew that they were very good at punishing people. If at all possible, you wanted to make sure you did everything to avoid getting punished by

them. This was the case all across the known world, all across the Mediterranean world.

- 3.72** This is really foundational for international commerce, international trade. You don't have to worry about whether the person you've sold your croissants to in Egypt is going to pay up six months later. Because you have no idea what this weird world is down in Egypt and far, far away. You're never going to go there. You're never going to have the chance to go there. But you'll send your croissants off, slightly stale maybe by the time they've arrived. But you know that, at the end of the day, you will get payment, and if you don't, that there are mechanisms you can use to enforce payment.
- 3.73** They're still pretty primitive. I don't want to overstate this, but there's a huge—enormous advantages come from having that predictability, clarity, universality. This is why, when Chancellors of the Exchequer in England or Treasury Secretaries here in the States, or when governments are drafting budgets and changing the taxes and so on, generally speaking, if a government keeps changing the rules too much or too quickly, then what that does is, it creates an uncertain atmosphere, an uncertain climate, to take risks in.
- 3.74** If you're a businessman, you're taking risks, big risks. You also want to contribute to society, you want people to be employed, but you're in the business of risk mitigation, risk limitation. There are going to be all kinds of risks that are going to come at you because of the business idea that you're pursuing. Wouldn't it be great if the risks, the state and the law could minimize the risks of anything else happening, and so that you can just focus on your product?
- 3.75** If corporation tax may go up next year, just as it suddenly went up last year or it suddenly went down with no explanation, well, that's not good. I don't know it's going to go up, maybe it will go down, but do I want to be making long-term investments, long-term plans over the next 20–25 years for this business, if I haven't got real certainty here? There's a great value in law not being, there not being too many laws, and the laws not being changed too often.
- 3.76** Now, that's very difficult for governments, particularly when they're trying to fill up the treasure chest and they need to keep changing the law because the previous laws were not bringing in enough money. So there's an incentive always to add more and more and more pages to the tax code, which, as I think I've mentioned, is why England has the longest tax code in the world.
- 3.77** Now, we're moving into the Middle Ages. We're moving into now, to look at the figure of Aquinas, who we've touched on already in our previous lecture. But just to remind you, you've got this idea of God containing within Himself "eternal reason," aeterna ratio, and then underneath that, you've got divine law that is revealed through Scriptures, and then you've got natural law that's revealed through nature, and both are divinely authored. God inspires Scriptures and He creates nature.

- 3.78** The natural law is a natural law that applies to absolutely everyone, even people who've not ever read the Old Testament or read the New Testament. In fact, the New Testament says in a couple of points, particularly in Romans, Romans 1 and Romans 2, that the Gentiles, the non-Jews, "have the law written upon their hearts." This is chapter 2, verses 14, 15, 16. So they are without excuse. So even people who've not, you know— because human beings are subject to natural law, and they can understand the natural law, whether or not they've heard the Ten Commandments, whether or not they've heard the Sermon on the Mount.
- 3.79** Then underneath the natural law, you'll have different forms of human law. You'll have ecclesiastical law, you'll have civil law, positive law, and so on and so forth. This is what Aquinas pushes. With Aristotle, he says, the law aims at the common good, at common flourishing. It helps to coordinate our individual desires and choices and bend them towards communal flourishing.
- 3.80** In the next lecture, I want to consider one application of this framework of natural law that we've been exploring, partly in the previous lecture, but most of all, of course, in this lecture, as we've been considering the classical origins and sources of natural law. What happens when we apply this matrix to a very specific example? That example is going to be the Nuremberg trials that begin immediately after the end, very soon after the end of the Second World War.
- 3.81** The Nuremberg trials are a perfect example for us to think with, because they throw up all sorts of questions around the relationship between law and morality, authority, what authority the judges in the Nuremberg trial had. The complaint from the Nazi war criminals, and indeed, some distinguished lawyers, was to, distinguished legal professionals, philosophers of law, was to say, this is victors' justice. The very fact that the victors are sitting on the bench, it skews the justice, the just outcome, undermines the just outcome of this day, no matter how careful they are.
- 3.82** Justice needs to be seen to be done. If you've got a Soviet, French, British, and American judge, a panel of judges, and you've got English and American allied prosecutors and defense lawyers, this whole thing is rigged. You've just been fighting the biggest war in the history of humanity against each other over the last six years. How can you call this a neutral, dispassionate process if you've got the enemy has literally sent its judges to determine and to apply justice in this particular scenario?
- 3.83** So, we'll have a look at the example of the Nuremberg trials at the beginning of the next lecture, and try and see ways in which there are solutions to that from the perspective of natural law. But we'll take seriously the critiques that the positivists offer as well. Thank you for listening.

Lecture 4: Law Applied: The Nuremberg Trials

At a glance — Law applied — the Nuremberg Trials.

- 4.1 Welcome to lecture four in this eight-part lecture series on philosophy of law. We are coming up to the point where we're nearly halfway up the mountain, halfway through the course. We're coming to the end of the more historical part of the course. Then in the second half, lectures five to eight, we'll be looking at more small contemporary applications, more contemporary puzzles for the philosopher of law.
- 4.2 What I want to do in this lecture is to bring the first half of the series to a close by beginning with an applied case study that looks at how some of the principles that we've been discussing—particularly in the previous lecture, as we surveyed the origins of classical natural law theory—how these principles, as it were, hit the road, how they can be applied in practice.
- 4.3 As I mentioned at the end of the previous lecture, it's the Nuremberg trials that happened immediately after the Second World War, where a number—say, two or three dozen—of Nazi war criminals are put on trial by a court that is set up and administered by the victorious Allies, that is to say, the Brits, the Americans, the French, and the Russians.
- 4.4 The trial gave rise to all sorts of fascinating dilemmas and headaches for all kinds of reasons. But the disquieting recognition emerged over the course of the trial—very early on, actually, in the trial—that if the positivists are right, and if law is just law, and all that a law needs to be a law is validity and authority, then on what basis could these Nazi war criminals be held responsible for anything?
- 4.5 Because their defense, which was really, "This is victors' justice, and we obey the law"—for the positivist, it should be enough. "What laws did we break?" the Nazi war criminals protested. This was a very discomfiting defense. It was a very powerful defense because it wasn't obvious what laws they had broken. It's astonishing to think, but the Holocaust probably didn't break any laws. It was that the Nazis were scrupulous legislators.
- 4.6 Now, it helped that Hitler had declared a state of emergency in, [1933] I think it was, which conferred enormous dictatorial powers on him, powers to suspend elections, for example—the elections were suspended—and certainly to mold the whole machinery of the German state to his will. But nobody said this was unconstitutional. He simply helped himself to emergency powers, which were available to him if he determined that Germany was in a state—he and his cabinet determined that Germany was in a state of crisis that justified them having these dictatorial powers.
- 4.7 And so, similarly, with a lot of the measures that they take in occupied territories from 1939 onwards, they'd say, "Well, the proper jurisdiction of occupied Poland—it goes

back to Berlin. This is what Berlin decides. We didn't break any laws. We didn't know that these things were happening. We were obeying orders. It would have been illegal for us to disobey these orders, not to comply with these requirements. You can't prosecute us for following our own laws."

- 4.8 "Who are you? Who do you think you are? They were our laws. We complied with them, and where we didn't, there were court processes and so on and so forth. All of that." The courts weren't suspended from 1933 to 1945. They were very busy, actually. "This is unjust. You can't just make up a law now, after the breach of the then-nonexistent law has happened, and say that we broke the law. How can we break a law? How can you break a law that doesn't exist yet? What have we done wrong?"
- 4.9 "What law have we—well, not—what have we done wrong? You may object to the morality of what we did. But this isn't a court of morality, it's a court of law. The law needs to be respected. It needs to inspire confidence in all the people that it affects." They said, "Any laws that you make up after the event—these are unjust." You'd have to do that, because there's no code of international law in place, at that point at least, that prevented what they did in the death camps and in the concentration camps.
- 4.10 But they say that this principle is fundamental, that there can't be a crime if there's no law that it's breaking. *Nullum crimen sine lege*. *Nullum crimen sine lege*. "No crime, no accusation"—crimen—"without there being a law that the accusation relates to." This is a very important principle of Roman law. It's fundamental to legality and protects against arbitrary despots who just decide, "We're going to make up a law. We saw he's done that. Make up a law that involves him having broken it, and then I can do what I want." This retroactive law is very puzzling and problematic for the philosopher of law.
- 4.11 The basic idea is that law is a guide to our conduct; it instructs us how to behave. People need to be able to know what the law is, in order to comply with it and in order to be held responsible for violating it, or at least it needs to be clear that the reasonable person, the ordinary person, should know what the law is. Now, that is obviously impossible for a law that you make up after the alleged breach of the law, after the alleged breaking of the law.
- 4.12 And so, the idea is, law should help us in the future. It should help us prospectively as a guide to action in the future, as opposed to settling squabbles or feuds about the past. That's not the point of the law. That's a politicizing of the law. Hart—H. L. A. Hart—who comes out very strongly against the Nuremberg trials, says, look, the solution should have been not, "Hey, we're going to make up these laws which we're going to say that the Nazis breached before they were actually laws, even though the laws didn't exist when we say that they breached them." You shouldn't take that approach, says Hart.
- 4.13 You should be honest about what's going on here. Rather than saying that the Nazi laws weren't really laws, as the natural lawyers would say, because unjust laws are not

laws and laws have to reflect morality, Hart says that's not a good rationale. You shouldn't say that.

- 4.14 Rather, you should just say, "We're going to bite the bullet. Yes, we are applying retroactive law. Yes, this violates an important principle, or seems to violate an important principle of natural justice, that a law must—that an accused person can only be accused of something that they've done, in the case of breaking the law, that the law has to exist if you're going to successfully accuse them of breaking it."
- 4.15 But, says Hart, these circumstances are so exceptional, the evil was so pervasive on such a scale that, on this occasion, suspending this principle of natural justice is in fact justified. It's just that the circumstances are so *sui generis*—they are so unique—that this will not pose a real problem. We say, on this occasion, these laws are going to be retroactive.
- 4.16 For Hart, this is a much clearer, simpler way forward, because it doesn't pretend that the Nuremberg Laws, for example, were not laws, which the natural lawyer has to do. He has to say these—just because they didn't reflect morality, they were never actually laws. Hart says, but they were laws. That was the problem. They were laws that were obeyed, and these terrible evils flowed from them being obeyed.
- 4.17 You can't just pretend they didn't exist. They did. They were valid. They were authoritative. They were duly passed. There was nothing constitutionally inappropriate in them being passed and so on. And so, we've just got to accept that and say they were laws at the time. Yes, retroactive laws cut against our instincts of what law should be, but in this circumstance, it's justified. You can see the push and pull of these arguments.
- 4.18 It's not an accident that, immediately in the wake of the Nuremberg trials, a group of people come together in New York, convened by Eleanor Roosevelt, newly widowed as a result of Franklin Roosevelt's death in—I think it was round about [April] 1945—right towards the end of the Second World War. She convenes these scholars, religious leaders, lawyers, and sets about drafting a convention of human rights that should apply universally, to all people.
- 4.19 This would be part of the creation of a successor to the failed League of Nations. Its center would be in New York, and it would be called the United Nations. There would be a convention agreed by all members of the United Nations, all nations in principle. There would be a court there to enforce and apply the European Convention, and that jurisdiction would extend across all countries, across all members of the UN, of the United Nations. And so, this was the setup. And they did, actually, a remarkably good job. The United Nations [Universal] Declaration on Human Rights is an important document in the moral history of modernity, and in many ways it's done a lot of good.
- 4.20 But trying to achieve universality, trying to achieve a shopping list of rights that applies plausibly to absolutely everybody, was a very, very difficult task. To some extent, the

way to pull that off—the way they pulled that off—was to be as indeterminate and restrained as possible in defining what a right was. Every line was very, very short. Every right, as it was specified, is very short, but quite open and applicable in principle, applicable in very different contexts.

- 4.21 The main challenge—and I've referred to this once before—the main challenge with the United Nations Declaration on Human Rights was that the universality came at the expense of a specific grounding in a people and a place and a tradition, which is, generally speaking, what, certainly in the English-speaking world, law has got its authority from. It's the law of the land from this particular place, this particular history, this particular people. This is how we've settled disputes for the last 600, 700 years. Who are you from the New World to come over and tell us—give us this document that's supposed to, as it were, override everything that we've decided up until now, that works very well for us?
- 4.22 One of the French Catholic philosophers is grilled after one of these committee meetings, deciding on what rights are, and they say, "Mr. Maritain, how did you decide what should be a right and what shouldn't be? Have you managed to reach agreement yet?" Maritain's famous response is, "Yes, we've finally agreed what the rights are, provided nobody asks us why." "Pourvu que personne ne nous demande pourquoi"—provided nobody asks us why. So we can agree on the list, and there will be furious disagreement once we start asking, exactly why is that on the list?
- 4.23 This is the basic trade-off within a human rights legal domain. You're pushing for universality; you want these rights to apply to all human beings everywhere and anywhere in history, in the past, present, and future. But what that means is that any specificity, any particular nod to a certain tradition, is going to radically weaken that universality. There could be no reference to specific religious traditions, no references to specific philosophical traditions.
- 4.24 You just get this very bland language in the preamble to the United Nations Convention about being the brotherhood of man. There's a family metaphor there, but that doesn't get pressed too hard because different countries will have different views of what a family and the size of a family should be, et cetera. The metaphor of brother, "brotherliness," fraternité—that's quite 1789; it's quite French Revolution. Is that too politically loaded? Brothers getting on, that's not a great metaphor for Genesis, Cain and Abel, or for Rome, Romulus and Remus.
- 4.25 It would always be possible to question and criticize these attempts, these quests, for universality. This is all questioning, are there human beings? Are there human beings that exist isolated from the particular cultures and communities and countries that they are sewn into? Is there such a thing as a human being that you can distill and abstract away from an Arizonan or a Pole or a German or a Brit? Aren't these so primary that, really, once we get to humanity, what exactly are we talking about, that isn't just going

to be bland and indeterminate, just talking in an abstract way about the whole basket of all human beings?

- 4.26 For something to be universally true of every single person in that basket, you're going to be dealing with a very dull—bipedal, 32 teeth on average. There will be some things that that group will have in common, but anything interesting? Well, that they've all got these rights. They've all got these rights. Where do these rights come from? Well, this document says that they do. Well, what's the document? So what? Well, the document is bringing together instincts of various experts in this committee room in New York in 1947. It's kind of consistent with what lots of other big moral cultures have thought in the past. So, yeah, that's where the rights come from.
- 4.27 Okay. It becomes a very abstract way of thinking about justice, that every human being is first and foremost a human being, not a particular human being, born into a particular culture; and every one of those human beings is vested with these rights, these superpowers that they have because of a document that happened to be drafted in '47, '48.
- 4.28 And these powers overcome the powers of any domestic law court. It can be a breach of human rights, and even if your national court doesn't think that it's a breach of human rights, or doesn't recognize in that formal way a right that has been breached, then it doesn't matter. The powers that you have in virtue of those rights are more powerful than the courts of your own nation. Extraordinary.
- 4.29 It elevates the individual, this idea of a human right, where the individual can sue his government. If the national courts say, "No, you've got no case to answer here," you can go to another court. You can go to a foreign court. You can go to a court in Strasbourg, in the case of Europe, and say, "My government has got this wrong," and the court, very often, will support the individual against the government. It's extraordinary.
- 4.30 Whether you think it's a good thing or a bad thing, it's a very dramatic departure in the history of law, the history of thinking about law, elevating the individual, the way we're giving the individual enormous powers over the collective. This is what the Nuremberg trials evoked. These are some of the problems that emerged. The conclusion was in effect to say that there is this new category of crime that we haven't invented, but we are now discovering and collectively recognizing.
- 4.31 This is the category of crimes against humanity. Crimes against humanity. This phrase has to be invented to give expression to this intuition that we have that there are certain crimes against which it doesn't matter what the law says. It's just obviously a crime. No, it's not a war crime. The Holocaust was not, or at least not obviously, a war crime. It's not governed by any of the Hague protocols or the Geneva Convention. If anything, sustaining the whole network of death camps and concentration camps in

Poland cost the Nazis valuable manpower and resources. It didn't help them win the war faster. If anything, it helped them lose it faster.

4.32 Now, this is a new category of crime, crimes against humanity: murder, enslavement, extermination, against a civilian population. Amazingly, this had never been—because nobody had ever really tried this, at least at the scale that the Nazis did, and, I should add, the Russians as they were sweeping through Germany in the last few months of the Second World War. These are crimes against humanity. These are crimes against a civilian population, an unarmed population.

4.33 Effectively, it was this category that has dominated much international law thinking around human rights over the last 70, 80 years. What's interesting about this category of crimes against humanity is that, in many ways, it's the fruit of a secular society. This is a way of expressing horrific crimes without appealing to religion, without appealing to sin and judgment and so on and so forth.

4.34 But it's also grounded in this much more, you might say, theistic and classical natural law tradition, the one that we were exploring in the previous lecture. This idea that there are certain crimes that rise above the jurisdiction of any nation is very consistent with that wonderful speech of Antigone's that I cited in lecture two, where she says there are certain *agrapta nomima*, "unwritten laws," laws that are binding no matter what.

4.35 This is the impulse behind the emergence of this category, crimes against humanity. It doesn't matter what previous laws there are, and we need laws, we need principles that protect human dignity, always and everywhere. Because human dignity is something that is common to all peoples, that should be recognized as being common to all peoples and so on and so forth.

4.36 This, in effect, is what the tribunal at Nuremberg reasoned in the end. The reasoning was, look, these criminals—these individuals—had certain duties, moral duties that transcended their national obligations to, say, the Nuremberg Laws. These duties must be fulfilled, and orders not to fulfill these duties or to breach these duties are not a defense. The fact that you've been given orders is not a defense against violating the natural law. This is how they found at least most of the Nazi war criminals guilty.

4.37 But it still left a slightly sour taste because it wasn't— again, the rationale, the philosophy of law underpinning the whole Nuremberg trials, was not at all obvious. Critics would say, consider the strategic bombing of Dresden and Hamburg or the atomic bombs on Hiroshima and Nagasaki; these are Allied actions that killed thousands and thousands of innocent civilians, who were accepted as innocent. There was no confusion there about whether or not they were civilians or legitimate military targets.

4.38 You've got Soviet judges. After everything that's happened in the Soviet Union in the 1930s—all the death trials; the tens of thousands of establishment figures that Stalin

and Beria, his henchman, bump off, get rid of; the massacres against the Polish officers in Katyn, I think in [1940]; the forced collectivization of Ukraine in the 1930s, which led to millions and millions of deaths—Stalin's judges are saying, "How dare you commit these crimes against humanity? Just shocking, shocking, you Nazis," when Stalin's atrocities are perfectly comparable. The criticism is, this just is victors' justice. This is a selective application of justice. Maybe the alternative was, they should have been tried in Geneva—Swiss judges, neutral all the way— or something that might have given a greater appearance of justice being done, a greater confidence in justice being done.

- 4.39 So, this was the legacy for philosophy of law in the second half of the 20th century. In many ways, it still haunts and shapes international law. This is part of the thinking behind the formation of the International Criminal Court in The Hague, which tries to codify all these different crimes: war crimes, genocide, crimes against humanity, and so on. There's a permanent tribunal in The Hague, sitting there the whole time. Often it's not doing very much or not doing very much successfully, but it's not ad hoc. It's not just built for the moment as the Nuremberg courts were. It's just a permanent tribunal that's there all the time.
- 4.40 You've got all these codes, and if there's a breach of the code, the International Criminal Court claims jurisdiction over you. There are 123 states that have signed up. What, there are 196 nations also in the world. It's not bad, more than half, but there's a large minority, including America, Russia, China, and India. So considerably more than—well, is it? Yes. Roughly half of the world's population. USA, Russia, China, and India—roughly half the world's population, about 3.5 billion people—are not covered by [the court].
- 4.41 Roughly half of humanity is not covered by the court, whose job it is to say what a crime against humanity is and to enforce action against people who've committed crimes against humanity. So that's a little bit awkward. And again, it goes back to my earlier point about how hard it is to square the circle of getting universality, but also legitimacy and authority. This law applies to all human beings everywhere, but this is why it does. This is the reason we should believe that it does.
- 4.42 It's not obvious, by the way, that Britain has signed up. It's not obvious it was the right decision, still. The courts have a very poor track record at getting convictions, certainly getting convictions we would have expected it to. It's expensive, it's very European in its approach, very document-heavy, very bureaucratic, administrative, and doesn't command the kind of respect—it's not a court that that many people have heard of. In many ways, it has been a failure.
- 4.43 And it's also pursued possibly political persecutions against various world leaders. I think recently it got involved in the Israel-Gaza crisis by saying that it was intending to prosecute Netanyahu, the prime minister of Israel, and maybe there are crimes that man needs to answer for, maybe not. But there was a sense that this is not properly the domain; this is an international court that should be above all of this, getting

involved in an incredibly complex, neuralgic, and toxic geopolitical debate. It would have to politicize itself by getting involved in this debate.

- 4.44 This is the sort of landscape that has emerged. Is it a win for the natural law crowd or is it a win for the positivist crowd? I would say, at the international level, it's probably a win for the natural law crowd. There is now a consensus that there are certain norms that rise above the laws of any particular country. These are so-called—I've mentioned them before—*jus cogens*. *Cogens* means "compelling," *jus*, "right"—compelling justice.
- 4.45 No matter what laws are in place, genocide is always wrong, slavery is always wrong, trafficking human beings is always wrong, and so on and so forth—basic humanitarian principles in war, *et cetera*, *et cetera*. These norms bind no matter what, even if you don't consent to them. You can't say, "Oh, I don't consent to the norm against genocide, so I'm going to go and commit a genocide. My people have voted in favor of us committing this genocide." Sorry, the law's the law.
- 4.46 The point about the *jus cogens* is, it doesn't matter whether consent is given; it doesn't matter whether democratic support is given. They just bind no matter what. This is a very natural law idea. States can't contract around them. They can't do deals with other states, allowing themselves a bit of leave room, and so on and so forth. This is the idea. It's hard for the positivists to explain this. It's hard—that there are these principles that hover above any lawmaking mechanism that we recognize. They're just floating there. Whether there'd been laws or not, these would always have been the principles that are in place, no matter what.
- 4.47 What are these norms? For the positivist, it's very difficult to make sense of them. No parliament's passed them. They haven't got any proper justification in terms of infrastructure, in terms of a place within the system, as it were, whereas natural law provides a much more intellectually satisfying answer.
- 4.48 What we see in the wake of this is situations that are difficult to establish and difficult to discriminate between. In particular, when it seems as if a state is turning against its own people or turning against a minority of its own people, this presents very, very difficult legal puzzles. Why? Because the United Nations Charter enshrines state sovereignty. In fact, very plausibly, the right of a people to self-determination is itself a binding norm that everybody needs to recognize.
- 4.49 Part of the deal with international law is that countries don't interfere in the business of other countries. That's an important, important principle, certainly not militarily, because the whole point of having this legal system is to stop the endless wars that ripped us apart in the 16th and 17th centuries, and then again in the 18th century, and that's when it was the fault of the French. Then in the 19th century, it was the fault of the French and the Germans. Then in the 20th century, it was mainly the fault of the Germans.

- 4.50 The point of law is to replace that system of forever war, where you've got a system, a mechanism of accountability and transparency. For example, the debates around the Kosovo War in 1999—some of you might remember this. Bill Clinton, who was president at the time, was reluctant to get involved, reluctant to give permission for NATO to get involved, when the then Serbian president, Slobodan Milošević, was plainly persecuting and massacring Muslim Kosovo Albanians in a tiny corner of the south of Serbia.
- 4.51 Effectively, Tony Blair persuaded Clinton that he should get involved, and it was a fairly limited war, consisting of targeted aerial bombing of various city centers around Serbia, particularly Belgrade. It was all over very quickly, but it was illegal. The whole thing was illegal from start to finish. There was no UN authorization. There were none of the debates that happened in the lead-up to March 2003, the American invasion of Iraq. They just went ahead and did it.
- 4.52 It was broadly a success. It clipped Milošević's wings. It stopped the massacres. It brought some Serbian commanders to justice in the end, eventually. It gave the Kosovo Albanians their own microstate and their own autonomy and independence. That would have been overseen by UN regulators. Virtually every baby born that year to a Kosovo Albanian was named Tony— a lot of Tonys in Kosovo. But the whole thing had no legal backing at all, none at all. It was just Clinton and Blair deciding on the telephone, "Off we go."
- 4.53 From a natural law point of view, look, we've got to go now. We've got to stop these massacres. The sooner we go, the fewer massacres, the fewer rapes, the fewer moments of horrific damage, irreversible damage to this community, we could bring about. And broadly speaking, I think there's a consensus that the Kosovo War has kind of been forgotten, I know, and sort of overshadowed by the invasion of Afghanistan and the subsequent 20-year escapade in Afghanistan by the Americans.
- 4.54 The Brits had done something similar in the 19th century. "We can take on these Afghans. We'll win in the end." And not learning from history, America stayed there for a good 20 years, but broadly speaking, there was no question about the legality— possibly the occupation, but certainly not the legality of the invasion. Lots of debates around the invasion of Iraq, but all of it was in, as it were, the court of an international [opinion].
- 4.55 It's very strange that it was— diplomatic decision-making is happening through a quasi-judicial process, a process over which the only people with vetoes, the only people who can block anything that goes through the UN, are nations on the permanent Security Council of the United Nations. That is to say, the winners of a war that finished 80 years ago. America, great. Britain, great. France, great. China, not so great. Russia, not so great either.

- 4.56 The question is, if you've got a group that is so different, has got such different perspectives, and can block anything at any point, then what really is the—why have we crystallized 1945 into the whole structure of the United Nations forever? It seems puzzling. So, when it comes to something like Kosovo, there's a clear natural law justification for having done it, even though there was no positive law backing it.
- 4.57 You could say some of the interventions in Syria threw up some interesting arguments as to what to do. In the end—very limited—there was no intervention in Syria. There was bombing, but no boots on the ground. That meant that, almost certainly, there were massive civilian casualties, use of chemical weapons, et cetera. Actually, one of the reasons there was no intervention was that Russia and China tended to block any attempts to back that intervention.
- 4.58 From the positivist point of view, nothing wrong was committed. The law was not abused or exploited in any way. But of course, from a natural law point of view, a grave injustice has been committed by allowing this innocent suffering to happen when it could have been prevented. And comfortably, the natural lawyers would say, in the case of Syria, I suspect, all the conditions are in place to wage a war against Syria to protect the innocent. We've got good chances of success. It'll be over quickly. We can use proportionate means. And there is no question that we will be justified inasmuch as we will be preserving innocent life.
- 4.59 The fact that it's the innocent life, the innocent Syrian life, that is being put at risk by the constitutionally appropriate powers that be in Syria, or that part of Syria, is irrelevant. That doesn't override what counts as a crime against humanity. It doesn't matter about state sovereignty, as important a principle as that might be, that it's going to be overridden. We're just going to invade.
- 4.60 These debates emerging out of Nuremberg and that we've seen in various moments—interesting and important inflection points in foreign policy over the last 25 years—show you just that these debates are not theoretical, they're not academic, they're not just of merely historical interest. Where you stand in this great debate between the natural lawyers and the positivists is going to determine a lot of how you think about international relations, international diplomacy, military conflict.
- 4.61 It's going to be thinking, well, what is the actual basis for this? What is the justification for it? Must the law meet standards of morality, or should we just be indifferent or insist that the two are—law and morality—to be kept separate? So, just as the natural law at Nuremberg challenges Nazi positive law and the justifications for Nazi positive law, you can say that natural law in other traditions has also challenged attempts by political rulers to assert a kind of absolutism.
- 4.62 One very interesting strand of natural law thinking that I've always been very interested in is the emergence of natural law within the English tradition. Why is that interesting and important? It's interesting and important because the kind of natural law that

emerges in the English tradition, really starting from the dawn of England, namely, say, AD 800, all the way up into the Middle Ages and through into the Enlightenment—that period where ideas about law, partly infused by ideas from Roman law, but also that emerged organically within the English tradition—these have had an enormous impact on legal traditions and systems of justice all around the world, the English-speaking world, and those parts of the world that the English-speaking peoples colonized or shaped or founded.

- 4.63 The approach to law and justice in the English tradition is much less systematic in many ways. It's much less clear, you might say, and less systematic than, say, the continental philosophical traditions, with all their neat codebooks and constitutions and amendments and so on. Rather than having documents or abstract theories or lists of rights and wrongs that were decided beforehand in the king's court or in Westminster or wherever, the English natural lawyers said, "No, first of all, we pay attention to the particular decisions of a court in a particular case, and we work out which bits of those decisions can be pulled, drawn out, to be general principles, and which principles were just specific to the case at hand."
- 4.64 The principles we can draw out, we can say, are actually part of the law—a previous judgment of a previous judge, in a slightly similar set of circumstances, with a slightly similar dispute or set of facts, this is good. Let's build on the wisdom that accumulates from the past, from our previous judges. They'd also say, "Well, look at commentaries on different laws, discussions of different laws, parliamentary speeches." This comes up in a big debate between one of the great judges of the English tradition, Sir Edward Coke—spelt C-O-K-E, but pronounced "Cook"—and James I, who was a great believer in the divine right of kings, the authority of kings, over and above everything else. Coke says, "Absolutely not."
- 4.65 "One of the things that can challenge your authority or constrain it is the laws that are passed by Parliament, and even the speeches that are made in Parliament in the run-up to that law being decided, because that's relevant for us judges to decide what Parliament intended by this law. Our duty is to give effect to the will of the people crystallized in Parliament. And so, if I want to have a look at what this person thought he was doing by inserting this section, then I'm going to read what he has to say, when he was saying we should include this section, and so on and so forth."
- 4.66 So these figures emerge, people like Bracton, Sir Edward Coke, Sir William Blackstone, establishing these common law principles. There were many others, but these are the three that I think are most striking. What are their key ideas? One key idea we've come across before is that the king is under the law, not above the law. The law belongs to the land, not the king. It doesn't even belong to the people. It just arises out of the land.
- 4.67 It's the law that makes the king. The king derives his authority from the law, not from personal power or charisma or anything like that. The law creates the office, and

hopefully, there's somebody to fill the office. For a few years, from 1649 to 1660-ish, the Crown sat empty. There was no one to fill it, but the office was still there. And the king never dies. This is the rather desperate argument they had to make at the end of the Civil War. But the Crown just didn't have a head to be placed on for a very brief interval.

- 4.68 The idea behind these principles, behind this phenomenon, is that justice, the common law, is reason in action. It's not the kind of reason that a boffin or an egghead in the civil service or in Parliament would be applying to come up with laws that predict exactly what situations might arise between citizens. It's not that kind of reason, but it's a distributed reason. It's the reason that emerges from the messiness of human affairs.
- 4.69 That's a reason that is going to be much more supple, and it's going to be much more wide-ranging and much less artificial. It's one that says, no, justice is something that you discover. You discover it through your interactions with other human beings. Where you have a dispute, you have an arbitrator that you can both agree on, a judge who will then apply the principles of natural justice and work out what's gone wrong and how to put it right and how to sort out compensation and so on and so forth.
- 4.70 Over the centuries, the idea is that there are only so many kinds of dispute you can have with your neighbor. I mean, there may be lots of variations, but in the end, a fight with the neighbors—there aren't many categories of fights with the neighbors. It'll always be over, I don't know, some sort of garden planning or adding a conservatory or too much noise late at night. But over the centuries, basically, no neighborly dispute is going to surprise a judge. "Gosh, I've not come across this kind of dispute before," having read 500 years of law about neighborly disputes. "Okay, this is another one of these."
- 4.71 But then the lawyer for one of the neighbors might come in and say, "Oh, it's not—no, it's not like what happened between those neighbors in. [1759] It's different, this one. This is a Lamborghini, not a horse and cart. And this is relevantly different." And the job of the lawyer would be to argue for why this should be decided differently from—the Lamborghini case should be decided differently from the horse-and-carriage case. The other lawyer will say, "No, look, they're both means of locomotion. One involves horses, the other involves horsepower. But that's all. There's no distinction relevant to the application of justice between the 1759 case and the 2025 case."
- 4.72 And so, this process of justice emerging organically from things that actually happened, disputes that actually happened, between human beings like us, sets a set of parameters around what you might plausibly imagine to occur between human beings, as opposed to being the person who has to sit down and write the official civil code, legal code, for all neighborly disputes hereafter, forever, in this land.
- 4.73 "I'm just going to guess every single possible kind of dispute, and I'm going to say, for each dispute, this is how it's going to be resolved." Can you imagine somebody sitting

down in 1759, saying, "Right, maybe this appendix will be what happens if something like a Lamborghini, called a Lamborghini, gets invented with technology that I know nothing about yet, but just suppose that this were possible. Now, what would happen in that situation? How would that neighborly dispute be resolved?"

- 4.74 The genius of this bottom-up, common law, incremental bit-by-bit approach is that there's a humility to it, and there's a kind of living dynamism to that tradition. Whereas, for example, in the French system, what Napoleon does at the beginning of the 19th century, that is, to codify and unify hundreds of different little mini local legal systems into a single one, rationalizes and centralizes everything. It's an extraordinary achievement in many ways.
- 4.75 But the fact remains that French law, to this day, is governed by a set of documents written 225 years ago. It's very difficult to apply a set of documents when something as high-stakes as justice to one's citizens is involved. It's very difficult to keep updating it. You need all these amendments. There's a limit to the number of—I don't want amendment 1346 to the neighborly disputes section of the Napoleonic Code.
- 4.76 The law gets unwieldy as it starts to try to cover and anticipate every possible interaction between human beings without any sense of what are the likely interactions between human beings, based on 800 years of human behavior, as is the case in the English common law. And so, this is the challenge that emerges for the more top-down European approach to thinking about law. In some ways, it has got advantages. It's clearer; it's more direct. It will be in keeping with the times, at least in the period that it's written in, but not really thereafter, maybe.
- 4.77 Nothing ages faster than relevance and timeliness and fashion. And so, it might work for a while, but then, come 1850, who's this Napoleon guy again? Why did he think we would ever consider doing that? And didn't he know about electricity? What about all the electricity stuff? And so on and so forth. So what seems like a more traditionalist, conservative legal tradition—which the common law tradition is in many ways—paradoxically is much more responsive to what's happening today.
- 4.78 Okay, what are the new facts? Okay, here are the principles. Oh, but look, there was this case that happened a few years ago. Well, that doesn't work because—and then you can adapt it, and it's up to the lawyers to distinguish and differentiate the facts. And so, this is why it's not an accident that, to this day, I remember when I used to work as a lawyer, I remember negotiating contracts between countries in South America. I think it was an Argentinian company and a Chilean company. I think it was all in Spanish. We had to have an approved translation. Then one of the provisions at the end said, "This contract shall be justiciable by the courts of England and Wales, and the laws of England and Wales shall apply to every provision in this agreement."
- 4.79 Very strange. But this is true. This is true across the international commercial world. You will have companies that have got nothing to do with England, definitely nothing to

do with Wales, nevertheless subjecting their multibillion-dollar trade arrangement or finance agreement to the laws and the courts of England and Wales, partly because contract law, commercial law, finance law, corporate law is widely recognized to have reached its most sophisticated expression through the common law process—the slow, incremental common law process that is true of the common law jurisdictions.

4.80 And so, in many ways, it's a great achievement. But it's the achievement of a particular nation, for particular people, who care a lot about their gardens, for example, care a lot about their horse and carriage. But that may not be true for every people, may not be true for every nation. Certainly, Lamborghinis don't apply to us anymore because we can't afford them; all the people who could afford them left a long time ago.

4.81 But the point is, the law has got to be responsive to reality. It's got to be grounded in reality. Because in the end, law is about a system for applying justice between people, between human beings, to respect the dignity of human beings and to make sure that they're treated fairly. But it's a mechanism, not an end in itself. The more abstract law gets, the more it disappears up into the feverish imaginations of some civil servant in Whitehall or in Washington, DC, the more disconnected it becomes from reality, and the less likely it is that the law is going to be able to apply justice in a particular situation.

4.82 So, we've come to the end of this first half of the series. We've looked at the two different traditions. We've looked at the historical origins of the natural law tradition, in particular. We've looked, using the case study of the Nuremberg trials, at the conflicting motivations and intuitions between these two systems: the view that these could never have been laws because they are just so evil, so immoral, and the law must somehow include within itself morality, if it's to have any authority at all.

4.83 On the other hand, the positivist argument says, "Of course it was a law; it was validly passed. This is what's so horrible about it, and we can't just pretend it didn't exist. We can't just wish away things we don't like about the past, namely that these acts of extraordinary immorality and evil were codified into a law. We've still got to recognize that the law was effective. It worked." And so on and so forth. It's got this great back-and-forth.

4.84 We've concluded by looking at one more contemporary expression of natural law in the form of the English common law tradition. It's not so much working with nature, but working with what happens on the ground between flesh-and-blood people, not abstract entities like humanity or neighbor A, neighbor B. If they do this, then this happens. If they do that, then this happens, which just seems to be a cognitively impossible task for any human being, or even a committee of human beings.

4.85 In the next lecture, we'll embark on the second half of the series, and we'll start to go a little bit deeper into positivism and associated positions, and we'll start to look at some contemporary puzzles in the philosophy of law, and see how what we've learned in the

first four lectures can be brought to bear on resolving some of those puzzles. Thank you for listening.

- 4.86** First off, I live in Louisiana. We still operate under the Napoleonic Code. It is very complicated. I wanted to ask, it does seem like natural law, the way that you've described it, has more appeal to, say, the religious than the secular. Maybe that's post-Aquinas. Where does somebody like John Rawls fall, who has the tension there in attempting to solve everything secularly but still seeming to appeal to something—I don't know, not divine, he would explicitly say against that—but something sort of greater good?
- 4.87** Yes, it's a great question. John Rawls was a Christian growing up. He seemed to have lost his faith, possibly in the Pacific, fighting in the Pacific theater—some of the things that he saw there. He was a very private man, but he was once overheard to say to colleagues that this was one reason he couldn't remain a Christian anymore. When he was a graduate student at Princeton, he wrote his master's thesis on Augustine's doctrine of sin, or original sin, which the brilliant Eric Gregory discovered 10 years ago and published an edition of it. Very surprising to see a figure like John Rawls thinking in that way.
- 4.88** So he wasn't exactly hostile to religion and had been formed up into his early 20s by Christianity. But you're right, when he comes to write *A Theory of Justice* in, [1971] possibly the most influential work of political philosophy in the 20th century, certainly the second half of the 20th century, he insists that, if we're going to try to imagine what a just society looks like, we have to shut our eyes or put ourselves behind a curtain and imagine that we could end up at any level of that society.
- 4.89** And not knowing where we would end up, we should then set about constructing that just society, whether we were at the bottom. Now, that could mean that we have to have an equal society. But actually, maybe I wouldn't mind ending up at the bottom of a society that was super, super rich because all the billionaires were paying lots of taxes, so that though I was the poorest in that society, I'm wealthier than anybody in most other societies. So I could tolerate that. I could tolerate some inequalities that made me richer.
- 4.90** But broadly speaking, we'd have to be thinking in that way. And crucially, says Rawls, we have to bracket our "comprehensive metaphysical assumptions." That's his phrase, "comprehensive metaphysical assumptions." When you're trying to work out what a just society looks like, please get rid of all of your fancy philosophy and theology about what justice might be. That's what he says, basically.
- 4.91** You're not allowed to draw on any kind of moral formation you might have had from a particular tradition because that's just going to cause fights. We'll disagree. We'll have the wars of religion again. Remember those? We don't want those. And so, actually, even talking about the good—to go back to your question—is something that is

contentious, because that's a very substantive philosophical idea, the good. We should use the right, talk about what's right, because that's less complicated, you say.

- 4.92** It's right to obey the law. It's right to be nice to your grandmother. Yes, but is it good? Does it tap into this deep sense of Platonic goodness? Don't care. That's for the philosophy lecture series. That's for the seminars. We can understand that; we can agree on what's right and what's wrong, just about. No, you're right that natural law does seem to be much more bound up with a religious way of looking at the world, partly because it requires an almost enchanted or a very high view of nature.
- 4.93** But after the Enlightenment, nature's just stuff. It's just mass in motion. It doesn't mean anything. It doesn't have any significance. It doesn't have any moral significance. It certainly couldn't be the basis of our law. Nature is just nature. It's the sort of stuff Darwin's writing about. It's the law of the jungle. The only law you can get from nature is the law of the jungle. It becomes sort of proverbial.
- 4.94** It's quite hard to step back into a pre-1600 world and say, no, nature was just completely soaked with meaning and significance and hierarchies, and people did not think of nature as out there and my inner life in here, subject and object. No, you're in the world, just stitched into the world. Nature's magical, and nature's God, and it's His blueprint. There's meaning in every leaf and every snowflake. We ought to behave like this, we shouldn't behave like that, and so on and so forth.
- 4.95** That is a pre-modern world, in many ways. That is a pre-modern mental universe, which is very difficult for us to access now — certainly very difficult for us to access as a society and then to say, this is the ultimate basis of all of our laws. So natural law does require a very expansive conception of what nature is that is going to cut against Newtonianism and Darwinianism and quantum mechanics, relativity theory.
- 4.96** On the other hand, the most impressive defenders of natural law today, though they are all Catholic, insist that you can see the basic goods. You don't need to be Catholic or religious. It's just irrelevant. You can see that life is a good thing, all other things being equal. You can see that knowledge is good; it's good to have it. You don't need to argue for it.
- 4.97** You can see that play is good, that religious practices are basically good for society, even if you don't believe in them and so on. You don't need a religious justification. That's been quite interesting as a development among the new natural lawyers saying, "We are committed Catholics. We're committed to theology underlying all of this, but you don't need to be. It floats free."
- 4.98** Yeah, so we were talking about crimes against humanity and how it's not right, although, with the Nazis, they had a law, like, "Obey us and do this." So, then when they're taken to court, they're like, "Well, we just followed directions."
- 4.99** "You'll go to prison if you don't obey this law. We'll execute you if you break this law."

- 4.100** There are plenty of documentaries and stories that I've watched, personally, that showed even what happened to those who didn't obey—you know, children like The Boy in the Striped Pajamas. There's another one called Truth & Treason, which was really good. I just watched that about a month ago. But actually, I'm getting back to how we have some in modern day, and sometimes I think we overlook it because of the way society thinks.
- 4.101** I'm talking about the right to have a child, but then we have laws saying that we can abort them. So at that point— and I know it's such a touchy subject—now you have a child who is living, and living is good. We say murder is bad, but that's a huge genocide where we allow, in a law, women to end their pregnancies and ultimately kill babies. Or even with the death penalty, too. Believe me, I think back and forth on both options, but when we're really speaking about truths and laws and morality, more importantly, it shouldn't be a law.
- 4.102** Yes. Thank you. Well, yes, both of those issues are definitely allergy-inducing. But the great thing about philosophy is, it's the best antidote to allergic responses to difficult problems. In the case of beginning-of-life ethics and the case of abortion, it's an interesting question to raise in the context of natural law, because how you understand nature is going to be pivotal in the abortion question, particularly how you understand the intersection between personhood and natural processes is going to be vital.
- 4.103** And so, you have many pro-life lobbyists today, many of the ones who were responsible for the campaigning running up to the Dobbs v. Jackson decision in, [2022] overturning Roe v. Wade, [arguing] that actually the scientific case for the pro-life position is becoming much, much more powerful, far more powerful than it was when Roe v. Wade was decided in 1973.
- 4.104** We now understand far more about neonatal genetics, about the evolution, the early evolution of the child in the womb and so on and so forth. We can measure pain, the pain in the fetus, much, much better and so on and so forth. But a lot of these arguments turn out to be factual disputes of what the science tells us. Then interestingly, the fact that the debate is about facts, that is to say, a debate between descriptions of nature, one saying it's correct and one saying it's not, feeds into our assessment of whether or not—or many of the public debates as to whether or not—abortion is permissible at week X, say.
- 4.105** If we can say that we can now detect a heartbeat at week 9, is it just fetal matter, or do we say it's got a beating heart? It's not an "it." It's a "he" or "she." If sensation of pain—sentience—is a morally relevant criterion, which it is for many, or we can now measure the pain, this organism can feel pain at week 7. What does that entail and so on and so forth? So, that's a contentious—that's going to turn on the science; it's going to turn on the facts.

- 4.106** You might say, look, if you're a natural lawyer, you embrace life, you see life as a basic good, but there are certain scenarios where terminating your pregnancy is permissible because—or the argument would be—the impact on the mother's life of having the child would be so intolerable, so painful, that it would amount to—that a law not permitting her to do that would amount to somehow an egregious breach of her right to pursue life or to have a fulfilled life, even accepting that there's another life in her womb, even accepting that terminating a pregnancy is terminating the life of a human being.
- 4.107** You might see some arguments like that being made occasionally, but I think for the most part, there's just a lot of confusion around this, around this debate; that is to say, a deep tension between our intuitions about where human life begins, our, I think, quite natural intuitions about the preciousness of young life and new life, and then a kind of countervailing ideology that says the freedom of the individual is the most sacrosanct, most important thing that the law can uphold. You've got these deep tensions.
- 4.108** For example, in England, you can now get leave, I think, if you've had a miscarriage. The law and the state recognize a loss that is serious enough to occasion statutory time off work. The law acknowledges that your grief is real, that a woman who goes through that is experiencing the kind of suffering that the state needs to be responsive to. But of course, in the eyes of the 1967 Abortion Act in Britain, nothing happens until week 24. There's nothing to grieve. There's nothing you could lose that you could grieve before week 24, because Parliament doesn't really recognize personhood as kicking in until week 24.
- 4.109** And so there are these deep contradictions. I remember reading when the Princess of Wales had her third child, Louis, I remember reading in a very aggressively pro-choice, left-wing English newspaper, "The baby is [fifth] in line to the throne." It's announced at 12 weeks. There's another 12 weeks until it becomes a person in the eyes of English law. But no, the journalist said, "It's a baby. The baby is, right now, in the womb, [fifth] in line to the throne." And so, the intuition is that, yes, of course, it's a life, at that moment, just beat the liberal ideological assumptions that it's entirely up to the mother to determine whether there's a person here or whether there's something worthy of life; it's entirely in the control of the mother.
- 4.110** Then with the death penalty, lots of interesting debates happening over this in recent years, particularly in the Catholic Church. The Catholic Church under Francis took the extraordinary move of removing the permissibility of capital punishment from the Catechism of the Catholic Church. This is the instruction manual of the Catholic Church. Not formally the Magisterium, but this was a very serious move, because effectively it was one pope saying that all previous popes who had ever overseen or been part of or been head of state when an execution happened over the previous 2,000 years were wrong. They had just got it wrong. But Francis got it right.

- 4.111 The death penalty, capital punishment, is often fused together with abortion because it seems like both involve the taking of a life—in one case certainly, in the other case possibly. And under natural law, there's no settled view, but I think one principle of natural justice, which all natural lawyers will sign up to, is that it's a basic principle of justice that the punishment of a crime must be proportionate to the crime itself.
- 4.112 This is a principle that we don't have any trouble accepting in other areas. If this kid stole some sweets from a shop, he's not going to prison. It would be unjust to send him to prison. In fact, it'd be unjust to really give him more than a fine—do anything more than call up his parents and get them to tell him he's been a very naughty boy. But we modulate the seriousness of human actions according to how they should be rewarded or punished. This is a totally normal way of thinking. We want there to be a balance.
- 4.113 Now, when it comes to the death penalty, proponents will say there are certain crimes for which no punishment other than death is even close to proportionate to it, to the nature of that crime. If we say that there are no crimes that are that serious, that the most serious crime is the crime that could get you locked in a cell for the rest of your life— right, so imagine a crime that could get you locked up.
- 4.114 You've done a bit of fraud, you've done too many of them. You're 50 and you've got three 20-year terms to do. So you're done. It's a bit of fraud, but— imagine somebody goes and shoots up a class of kids, five-, six-year-old children. Well, the punishment is going to be the same in a nation that denies the death penalty. You say, well, you're in for life. Okay, you've got 2,000 years in prison. Yeah, it's so much, much more serious than the guy who committed fraud. He only got 60, but you're getting 2,000.
- 4.115 You can think, well, is moral discrimination happening here? Is the correct judgment being made here? Now, you might say, look, okay, you get to the threshold case where you say, yes, capital punishment is deserved, but then there's going to be all kinds of cases that are so much worse than that. You can't kill somebody twice. But I think, to make sense of the people who defend capital punishment, you just need to accept that there is a principle that I think pretty much everyone would accept, that a punishment must be proportionate to what's being punished.
- 4.116 Then it will be up to you, whether you think that there are certain crimes where the guilt is not in doubt. Certainly with DNA testing now, the levels of certainty we can get to beyond reasonable doubt are far, far higher than they were before. This was a big worry before DNA testing came in. When DNA testing did come in, we could see there were huge differences, that almost certainly— statistically certain—people were unjustly killed by the state. But for that very reason, DNA also just gives us an accurate picture of guilt.
- 4.117 And the other arguments against it will be to say, well, look, you can lock somebody up for 20 years. Maybe if you got it wrong, then you release them, or you apologize to them, you exonerate them. They might have done their time, but they're still alive.

Well, that's true. You can't give somebody their life back once you've taken it. But nor can you give 20 years of their life back once you've taken it. It cannot be an argument against the application of law, but sometimes the law is incorrectly applied, unjustly applied.

4.118 Just imagine, you could say, well, you dealt with this fraud case and you got it wrong, and you're not doing fraud cases again, and this can't possibly happen. So, no system of justice is going to be perfect. There are always going to be mistakes, but the mistakes can't justify, as it were, dismantling the whole thing.

Lecture 5: The Emergence of Legal Positivism

At a glance — The emergence of legal positivism.

- 5.1** Welcome to lecture five in this eight-part lecture series, Philosophy of Law. We are now at the threshold of the second half of the course. We've been looking, for the most part in the first half of this series, at natural law, one of the two corners in the boxing ring over this question of what is law, how are we to understand what law is? Natural law dominated Greco-Roman thinking about law. It dominated Christian thinking about law all the way through into the Middle Ages. It's at that point, the late Middle Ages, that things start to come apart a little bit in terms of natural law's dominance and influence. And as we move into the 16th century, we start to see the first major geopolitical conflicts and turmoil rip across the landscape of continental Europe and the British Isles—the beginnings of the Reformation, the beginnings of years, decades, of intense brutality, of intense fighting, not just between Protestants and Catholics—the Protestants were just as good at killing other Protestants, and the Catholics were just as good at killing other Catholics.
- 5.2** But it was a time of extraordinary violence and death and uncertainty all through the 1500s and deep into the 1600s, ending in 1648 with the Treaty of Westphalia, a region in Germany. The Treaty of Westphalia is what really establishes the principles of the modern nation-state, of statehood, and specifically, a secular nation-state. This is seen to be—in retrospect, is sometimes seen to be—an attempt to provide an antidote to religious conflict.
- 5.3** You've got the famous phrase: *Cuius regio, eius religio*. "Whatever your region, that's your religion." The religion should be attached to a particular place. What we see, really for the first time in, effectively, a thousand years since Constantine begins to welcome Christianity into the Roman imperial theology, you could say, in the fourth century AD—what we're witnessing in the 15th and 17th century AD is really the slow shattering and unwinding of European Christendom into different blocks.
- 5.4** There had been a split within Christendom in 1054 between the Catholics and the Orthodox Church, the so-called Great Schism. But that really replicated a split that had already existed for centuries between the western half of the Roman Empire and the eastern half of the Roman Empire. It was quite a natural split. Whereas this, the Reformation, catalyzed a split deep in the heart of European, Latin, Western Christendom.
- 5.5** The Thirty Years' War, for example, killed 8 million people, which is an extraordinary number, given the population size of Europe at the time—enormous numbers, numbers that hadn't really been seen before in mainland Europe. The trouble is that each side appealed to principles of natural law, appealed to divine revelation, to make the case for its own legitimacy. This opened up a kind of puzzle about to what extent

this was a shared moral universe. If natural law is natural law, then surely the same principles should be derivable by both sides, by Protestant and Catholic, and yet there are these deep divisions and deep tensions. The first seeds of skepticism are sown when it comes to the natural law as the proper basis of law.

- 5.6 You also see, as I said, in the 17th century, the rise of the nation-state, which is self-consciously secular and is thinking about its own authority that is not expressly derived from any kind of religious authority. This brings with it, well, a need for effective unified legal systems. It's not enough to rely on the teachings of a church. You're beginning to see, in the 17th century, increasingly complex societies develop at speed and at scale. They need to be controlled, they need to be managed, and they need to be administered.
- 5.7 You see also the emergence of monarchs, and dukes, and princes, and cardinal electors who assert their authority in different ways, but are claiming a kind of absolute sovereignty, apart from the cardinal electors who report to the pope, though they did have an awful lot of power. So, monarchs are claiming absolute sovereignty and beginning to think of law not as something that reflects the way nature is, the way we ought to be, given what we can derive from nature. But law is really an instrument to protect and to exercise the sovereign power of the leaders, the secular leaders, of these new states.
- 5.8 You also have, of course, the scientific revolution, the beginnings of the different Enlightenments happening all over Europe in the 17th and 18th century. There's much more of a stress on science, on measurement, on quantification, empirical facts and so on and so forth, and more skepticism about philosophy, about metaphysics, about scholasticism, the medieval philosophical treatments of natural law.
- 5.9 And so, the rise of confidence in science brought with it a rise in skepticism towards theories of natural law, which didn't seem to pass muster, which seemed to be too speculative, too philosophical, not consistent with a revolution that stressed empirical facts, what you can actually see. Yes, we can see nature, but we can't see nature's laws. We can't see what—there's no clear self-evident moral principle that nature is trying to convey to us. It's very difficult. And discerning that is nothing like a scientific enterprise. There are hunches and conflicting intuitions and so on and so forth.
- 5.10 Crudely speaking, these two centuries, the 16th and 17th centuries, brought with them a deep geopolitical fragmentation all across Europe. Don't forget that also round about this time—a little bit sooner, in fact—the Age of Exploration begins. For the first time, Europeans are coming into contact with sometimes very sophisticated civilizations, but with completely different moral universes. Consider the Aztecs, for example. Not an unsophisticated civilization, a very impressive civilization in lots of ways, but with a moral universe that is a little bit different from the moral universe brought by the conquistadors when they first discover them and take them on, particularly the great, the mighty Cortés in the 16th century.

- 5.11** There are all these interesting debates happening in South America and Central America. There's the so-called debate at Valladolid between a Dominican monk and a bishop, [-] Sepúlveda, of the Catholic Church, trying to decide whether these people that they've discovered, the Mayans, are fully persons or whether slavery is legitimate. The dominant view was Aristotle's view, that some human beings are by nature suited to slavery. [Bishop] Bartolomé de las Casas rails against this. In the spirit of natural law, he says, "Absolutely not. Every human being has a worth and has a dignity. They might need a little bit more work to be won over to the gospel, but they are children of God as much as we are."
- 5.12** So both the Age of Exploration and the era of fragmentation, the so-called wars of religion that tore Europe apart in the [16th and 17th] century, all of these have undermined confidence in natural law, undermined confidence that we can derive our moral principles from nature—that all human beings, each human being, if left to their own devices, would form roughly similar conclusions by deriving moral principles from nature and so on and so forth. And this extraordinary chasm between different moral universes that the Age of Exploration uncovered, and this deep, deep disagreement and violence among Christians in Europe, also undermined confidence that there was this shared self-evident morality.
- 5.13** So, these were the problems. Enter legal positivism. It's such a clunky phrase. I don't like the word "positivism," but we're stuck with it. With any kind of positivism, whether it's scientific positivism, whether it's legal positivism, whether it's logical positivism, the basic idea is that what is posited is what you get. So, in the case of logical positivism, it's just, look, we posit logic, everything flows from that. Scientific positivism, there are the findings of the natural sciences, everything else flows from that. All truths flow from that.
- 5.14** In the case of legal positivism, the idea is, there's a body of law in a particular society. We posit that, and everything flows from that. It's just the fact of this body of law that provides the—that's what's on the table. That's what's posited. It's laid down, it's enacted. I'm going to keep using this phrase "legal positivism," but of course, in giving you a little historical backdrop to the doctrines, it should be clear that the phrase is not used, really, until the 20th century.
- 5.15** But the ideas are beginning much further back, and we see that in particular in the figure of Thomas Hobbes, who has an enormous impact on European political philosophy. We'll look in some detail at him, and then we're going to look at a very interesting figure who tends to be neglected, sadly, of the late 18th and 19th century, a legal philosopher called Austin, John Austin, who is brilliant and really develops a lot of Hobbes's ideas. Then we'll turn towards the end of the lecture to look at the great Hans Kelsen, an Austrian, a Viennese Jew, who became one of the most influential philosophers of law in the 20th century and drafted a constitution for Austria and developed legal positivism into an extremely sophisticated position.

- 5.16** The central question, the central instinct for the legal positivist, is really to make sense of deep moral disagreements being attached to law by simply detaching moral disagreements and morality altogether from law. Once the detachment has happened, then there's no problem. It's just, there's just law. Sometimes it'll be moral, sometimes it'll be immoral. That's not the point. The content is not the point. What matters is the source. Who made it? What gives it authority? What makes it valid?
- 5.17** The question then arises, well, look, if law is separate from morality, we want it to be connected to morality, but it might not be. It's not part of its nature. It's not part of the nature of law to involve morality. What is it that gives law the authority to obey it, if not its content, if not its justice? Of course, this is an issue we've looked at in earlier lectures. How do we criticize an unjust law, if morality is not supposed to have anything to do with law?
- 5.18** Why is Thomas Hobbes the first in the cast of characters to help us think through legal positivism? Well, he's a fascinating figure. He's born in 1588. The rumor is that his mother's birth pangs were brought about by the sounds of the cannonballs from the battle against the Spanish Armada by Sir Francis Drake in 1588. He lives through the English Civil War, 1642 to 1651. He witnesses the execution of Charles I in 1649. His work, *Leviathan*, is condemned and burnt in Parliament Square at one point, shortly after its publication.
- 5.19** He is somebody who's lived through war and violence and bloodshed. In many ways, this is perhaps a little bit of a clichéd psycho-biography, but it's very tempting to connect his turbulent life, or the turbulent and violent times that he lived through, with his central philosophical idea, his central project, which was pretty straightforward. His central idea begins with a thought experiment. Call it the state of nature. Imagine that we were all simply in a state of nature, by which he meant we'd still keep our clothes on, we wouldn't be [naturists], but we'd be in a state of nature pure of any kind of political organization, any kind of legal framework, any kind of social norms—and what would happen in such a situation?
- 5.20** This is not just Hobbes who does this thought experiment, but a number of others as well, people like John Locke. What he says is that it would be anarchy. It would be chaos, violence, and bloodshed between everyone. It's a pretty pessimistic understanding of human beings. If there's no shared power or shared agreement, no agreement about the source of sovereign authority, it's over. You can't hold a society together. His famous description of the state of nature is, "No arts; no letters; no society; and which is worst of all, continual fear and danger of violent death; and the life of man, solitary, poor, nasty, brutish, and short." This is the vision that he sets out. He says, "This is what would happen if we were in a state of nature."
- 5.21** It's a theme, actually, you see in recent cinema. I'm thinking of, for example, the Joker's behavior in *The Dark Knight*, where he tries to engineer a lawless Gotham City. He tries to so undermine confidence in the mayor—actually [attempts to] kill the mayor in the

end—so undermine confidence in municipal authorities in Gotham City, that he thinks it will unleash anarchy. It will unleash a Hobbesian state of nature. And is the Joker right?

- 5.22** Now, the film plays around with that a little bit. It actually takes the view that—there's an interesting moment in the film when there's a ship containing a lot of prisoners from a high-security prison who do the right thing. It's almost as if the director Christopher Nolan is saying, "No, Hobbes is wrong. Actually, we can work well together absent proper authority, and it might even be the people we least expect who understand the importance of it." But this is the idea.
- 5.23** So, you need to have sovereign power. It isn't just because human beings are wicked; it's partly a normal human desire for rational self-interest. Rational self-interest. This is not greed necessarily or selfishness because all human beings are evil. Hobbes didn't have that pessimistic a view, but he just simply says, look, it's in the nature of human beings to act, broadly speaking, in our self-interest or in the interests of those close to us. In a large society, a large, complex society, that is impossible; there is going to be conflict if there isn't any kind of agreement about how it should be administered, no agreement about where sovereignty and authority flow from.
- 5.24** So, what's the solution, says Hobbes? Well, you need a Leviathan. You need some central power. By social contract among all citizens, you confer total power and surrender certain—almost all—of your rights, as it were, to the sovereign, to this central sovereign authority. This is how we escape the state of nature. It's the commands of the sovereign that become law. That's what the law is, whatever the sovereign says.
- 5.25** We're not looking for clues in nature, not coming up with some list of broadly agreed principles: thou shalt not murder, thou shalt not commit adultery, and so on and so forth. But no, it's whatever this sovereign says. This person who's holding our entire society together will give the instructions, and we will simply agree to accept whatever those instructions, those laws might be. It's called a—this is an early version of social contract theory. The idea is that there's a sort of invisible contract between all the citizens in a state. Not with a sovereign, though.
- 5.26** The sovereign can't enter into a contract. The sovereign, in most jurisdictions, can't commit a crime. That's certainly the case in the United Kingdom. His Majesty cannot commit a crime. It makes no sense because a crime is a—he can't break his own laws. His own police force can't arrest him. The Crown Prosecution Service can't bring a prosecution against the person occupying the office of the Crown, because it's the Crown's prosecution service. His Majesty's Prison won't let him, His Majesty, be a prisoner, and so on and so forth. There is this strange, this kind of silo which the sovereign sits in, that has to be independent of everything else.

- 5.27 You see this, too, in republics to some extent—so, immunity for sitting presidents whilst they're in office, at least to some extent. They could be impeached, of course. But broadly speaking, this is a principle that is recognizable elsewhere, but is particularly true of monarchies. So law is, on this view, not something that's discovered in nature. It's not something that we can reason about. It's not something that we have moral intuitions about. What law is, the defining feature is, law is a command. It's a command from the sovereign authority.
- 5.28 It might be compatible with our intuitions, moral intuitions. It might be compatible with our reason, but it's irrelevant. All that matters is that it's a command, a command issued by that particular person from that office, by the sovereign. The sovereign is not subject, as I said, to any laws. The sovereign is above the law in lots of ways. That gets complicated. That's a complicated view of the way the English monarchy works, but it's true, for example, of the French monarchy, as I think I've mentioned in a previous lecture.
- 5.29 The sovereign is the highest point of appeal. There's nothing above the sovereign to appeal to in the context of the laws that he issues as commands. You can't go running off to Rome and ask the pope to overrule your monarch. That settlement is unwinding very fast. The idea of there just being a secular head of state, that is to say, independent of the church, not taking orders from Rome or anywhere else, this was seen to be—this was a very important feature of sovereignty.
- 5.30 For example, in England, Henry VIII passes the Act of Supremacy in 1534, which effectively gives legal force to, as the Thirty-nine Articles put it, the founding document of the Church of England, that "the Pope hath no jurisdiction in this realm of England." States it very clearly. To be an Anglican, you have to sign the Thirty-nine Articles, and one of the articles is, "The Bishop of Rome hath no jurisdiction in this realm of England." Extraordinary statement.
- 5.31 England—basically becoming England through Catholic missionaries at the end of the sixth century AD—is, a thousand years later, effectively saying, "No, no more. The king is in charge of the church. The king is the Supreme Governor of the Church of England. The king appoints the archbishops. The king appoints the bishops. Rome has no authority anymore at all." It's not getting rid of the church, but it's asserting secular sovereign authority over it.
- 5.32 But it keeps the coronation ceremony, so it's still the archbishop who has to make every king or queen of England king or queen of England, with anointing oil and a proper service and so on. They didn't get rid of that. But it's the king who decides who is archbishop and whether the archbishop can keep his head and so on and so forth.
- 5.33 So, this is the beginning of legal positivism. We've got to think of law in terms of command. It's fine to have moral intuitions and to derive from nature certain principles like, it's good to keep your promises. Keep your promises. But in a state of nature, says

Hobbes, it's never going to be obligatory. Nobody's going to really— what are the consequences? It's probably, actually, in a state of nature, going to be in your rational self-interest to break your promises sometimes. There's no enforcement mechanism, is Hobbes's point. Without that sovereign authority that invests the moral recommendation with the force of a command, then we haven't really got anything like law.

- 5.34** So, this is Hobbes's approach. All sorts of things we can criticize about it. It might seem dangerously tyrannical, totalitarian, having an absolute sovereign with effectively no limit at all on the sovereign's conduct. The claim of the social contract theorist is that, well, it's okay because you're consenting to the sovereign having control over you. You're consenting to obey the sovereign.
- 5.35** But is it really consent? Do babies, do children, do teenagers actually fully consent to be born into the society that they're born into? Do they actually have any meaningful way to exit, to opt out of the laws? "Actually, no, I don't like these laws. I don't consent to the authority of the sovereign over this part of my life." And you can't withdraw consent. What kind of consent is consent that can't be withdrawn?
- 5.36** Who decides whether or not the sovereign is doing a good job? How do you get rid of the sovereign if you think he's doing a bad job? Well, it's not easy. You can't do it legally, by definition, pretty much. But despite all of these problems, Hobbes is the first to see the problems with natural law, to document them, and to push for the idea that law is a human artifact. It may be a human artifact that reflects some kind of divine law or reflects natural law, but it's first and foremost something that human beings, parliaments, sovereigns, come up with. It's not just natural reality. It could sit independently of it.
- 5.37** The authority of a law comes from its source, not its content. The law can— it shouldn't too often, but it does engage in fictions. There are points where the law simply diverges from reality. For example, in the eyes of the law, a company is a person. A company is a legal person. There are all sorts of good reasons for that, but it is a fiction. It's introduced as a fiction because of various benefits that it brings to corporate liability and so on and so forth. But generally speaking, law will try to reflect natural reality, but that's not what it is; it's not identical with that.
- 5.38** So much for Thomas Hobbes. We're going to leap ahead now to the great figure of John Austin, unfairly neglected in most histories of law—he's not particularly a household name— but produced some very important work up in Scotland. He was in Scotland for a while, I think, and then ends up as the first professor of jurisprudence at the University of London, and wrote a very important work in the 1830s, *The Province of Jurisprudence Determined*. Not the most catchy title. *The Province of Jurisprudence Determined*, 1832.

- 5.39 Very few people read it in his lifetime, poor guy, but his influence built over the second half of the 19th century, as people really started to make sense of his ideas. Then over the course of the 20th century, he had an enormous impact on legal practice, legal thinking, legal philosophy, all across the English-speaking world. What does he do? What's his achievement? Well, he's the first person to really set out a clear articulation of what legal positivism is. He's obsessed with clear distinctions and careful definitions.
- 5.40 He's very concerned with what you might call the demarcation problem, which you have in the philosophy of science. How do we define exactly what science is? Similarly, how do we define exactly what law is, first and foremost? This is what he calls "the province of jurisprudence," lots and lots of syllables to say, with one syllable, "law." What is the proper province of law? How do we differentiate it from morality, from sociology, from psychology and so on and so forth?
- 5.41 So, Austin advances a theory of law. He says that any law needs to have four ingredients. It needs to be a command. It needs to be issued by a sovereign. Third, it's got to be sanctioned. It's got to be enforced. It's got to be backed by sanctions. Finally, it's got to be directed at subjects who are in what he calls a "habit of obedience." We'll come to talk about this a little bit more. Let's unpack each of those elements.
- 5.42 A command is not a request. It's not a wish. It's neither true nor false. "Shut the door." Is "shut the door" true or false? It's neither. It's just, just do it. It's a command. It's not inviting people into an argument, to persuade them of the truth of this moral judgment, in the hope that they might do it. It's not expressing a wish. It's your command to do X. You have a duty to do X, and the duty imposes liability of a sanction for not performing the duty, for noncompliance.
- 5.43 It's got to be a command backed by a sovereign. For Austin, that's the King in Parliament—the monarch plus the two houses, the Palace of Westminster; that's why it's important that it's a palace. The king has no higher authority. The European Union might have disagreed about that when we were still in the European Union. But no, the monarch, the whole point of the sovereign is that he hasn't got a boss, nobody to report to.
- 5.44 Now, this could be a monarch, but it could be any source of sovereign authority. It could be the central committee of the Soviet Communist Party or the Chinese Communist Party. It could just be a parliament. It could be a president. It could be Congress, and so on, the Supreme Court, et cetera. Those would be part of the exercise of sovereign power. Slightly different in republics in the sense that Austin insists that the sovereign can't be split. There can't be three different parts to the sovereign.
- 5.45 Whereas in France and in America, it does seem as if, in republics, you've just got these separate bits. You've got the Supreme Court, which checks Congress and the presidency, the executive. You've got the executive that has certain veto powers with respect to Congress and appointment powers with respect to the Supreme Court. Then

you've got Congress that has certain powers over the purse, powers over confirming presidential appointments, supposedly war powers, although there hasn't been much evidence of that being a congressional right, one that just pertains to Congress, in the last 40, 50 years.

- 5.46** But the point is, the idea is, sovereignty is divided and then pooled, and is in this balancing exercise, which is not the case in a unified constitutional monarchy like the United Kingdom, where there is simply one office, the Crown, occupied by one person, usually, and all the powers are vested in this office, and there's no balancing; there's nothing above this sovereign. That's why it's His Majesty's prisons, His Majesty's courts, the Crown Prosecution Service. Parliament can't start without the king, the sovereign, opening it. Parliament can't be dissolved without the king's permission. No law can be passed without royal assent.
- 5.47** So, all judges have to be appointed in the end by the sovereign. All bishops have to be appointed by the sovereign. The entire patronage system of knighthoods and peerages, yes, the decisions are made by others, but they have to be ratified by the sovereign and so on and so forth. In a republic, you don't. Even in France, where the powers of the president are vast, the French president doesn't have anything like this degree of total power.
- 5.48** And the secret within the United Kingdom certainly is that the sovereign has total power and no power, absolutely zero power in reality. Total legal power, total constitutional power, zero practical power. Just maybe some persuasion here and there, but basically, it's a diplomatic role, a ceremonial role. And so, it sort of works. Nobody would have dreamed it up. But after 1,200 years, it seems to have evolved into something that functions very well.
- 5.49** Austin says, command by unified sovereign, and there have got to be sanctions, so a law that's not enforced is no law at all. Then this strange phrase, it's got to be addressed to people who've got a "habit of obedience" towards the sovereign. I think the idea here is that it doesn't really matter whether you like the sovereign or not. It doesn't really matter whether the sovereign is a good thing or not. There's no moral approval implied. It's just, as a matter of fact, is this authority one that's regularly obeyed? Is there a posture of obedience towards those to whom the laws are directed?
- 5.50** This is his definition of law. Then he moves into the demarcation challenge, saying what law is not. He's the first to really set this out. Positive law has got nothing to do with positive morality. It comes from the sovereign, whereas morality really comes, in Austin's view, from society. The enforcement has got to come from the courts, from the police, from the sovereign authority. That's not the case with having immoral opinions.
- 5.51** What's the enforcement mechanism for believing and saying and defending immoral things? Well, society, social disapproval, criticism, satire. But this is not a matter for—

this is not part of the province of jurisprudence, the province of law, where doing something wrong means punishment, sanctions, by the sovereign. Laws are not morality, nor are they something that we can just derive from other things. Law isn't a kind of politics. Law shouldn't be a tool for advancing a particular political agenda.

- 5.52** Obviously, some political movements will prefer some laws to others, but it should have—that's not what it is once it's passed. It's not some political document. Laws are not in that business, shouldn't be interested in just evaluating them in terms of whether they fix society, whether they help society to work better. That's a separate kind of question. It's a matter of sociology, maybe, or public policy analysis. Law is to be understood as separate from all of these other distinct areas.
- 5.53** What are the problems with Austin? What are the criticisms that were leveled against him? He dominates 19th-century philosophy of law, but comes under criticism in the 20th century, particularly by H.L.A. Hart, who we've mentioned before a number of times, H-A-R-T. Hart is, in the English-speaking world, the great defender of legal positivism. So he's very much, in many ways, indebted to Austin, but criticizes him. We'll look at that more in the next lecture.
- 5.54** What does he say? Well, he says, sometimes laws are commands, very often, yes. Do not do this. Thou shalt do that. But that command idea, that ingredient, can't be a defining factor of what a law is, because there are plenty of laws that aren't really commands at all—laws, for example, creating contracts, marriages, wills. These are just descriptions of procedures, what you need to do to have a valid will, to have a valid marriage, to have a valid contract.
- 5.55** A valid will requires two witnesses. Is that a command? No, it's just setting out what needs to be done for the law to recognize, for a court to recognize, a will. This needs to be done. You don't have to do it. But if you want a valid will, a will that a court will recognize, you need this. It's just setting out the conditions for what counts as a legal instrument.
- 5.56** Similarly with constitutional laws, think of the US Constitution. Are they commands? Well, very often they're not. They might define how laws are made, define how a particular position is created and how elections are to be run. But they're not exactly direct commands to citizens. Hart's point is that law does more than command. It's more than just a command. Laws can confer powers, they can define procedures, they can create entire institutions. The command model is too narrow, says Hart.
- 5.57** He also says, when it comes to ingredient three of Austin's account of what makes a law, that sanctions are actually not essential to a law either. Again, laws about creating wills, laws conferring certain powers, constitutional laws, how you go about amending a constitution, for example— again, there's no sanction, there's no punishment if you get it wrong.

- 5.58** If you have one witness to your will as opposed to two, I suppose you could say the punishment is, you're never going to get Granny's furniture or whatever it might be. But it's not a punishment by the law. It's just saying it's not valid, we can't recognize it, sorry. And so, your brother can run off with Granny's furniture, and there's nothing you can do about it, sorry. He'll just have to agree to sort it out between you. And Austin can't explain why laws like that are laws, because they're not commands, nor do they impose sanctions for noncompliance.
- 5.59** Hart also says that one problem with what Austin is trying to say is to say that what law is, is a command that's issued, a command that creates an obligation that you are negatively motivated to comply with. Law rests on fear of the sanctions that come from not complying with the law. You've got to pay your taxes because you'll be punished if you don't. There's a sort of fear element.
- 5.60** Hart's criticism of this is very interesting. He says, it turns a law, it turns an obligation just into a prediction. If you do this, this will happen. And if you do that, that will happen. If you stick to this law, you won't go to jail. If you break this law, you will go to jail, as if a law is just a sort of descriptive prediction or predictive description of different outcomes. Hart says, no, there must be an "ought" to a law. There's got to be something that says you ought to do this. It's not just, if you do this, this will happen to you. If you do that, that will happen to you. It's saying, no, you ought to do this. You must do this.
- 5.61** There's pressure on you to do this. It creates a duty. It's not just, there's a duty here. If you respond in this way to the duty, that will happen. If you respond in that way to the duty, that will happen. There's something more to it. Hart says Austin's account misses this. We need a richer account. We need a better account that deals with these different headaches. We'll come on in the next lecture to see how Hart is negatively motivated by Austin to plug some of these gaps and to strengthen or to develop a new model of legal positivism.
- 5.62** In the time that's left in this lecture, I just want to touch on the great, arguably the greatest legal positivist of the 20th century, an Austrian Jew called Hans Kelsen, 1881 to 1973. Nice long life. Austrian and later, I suppose, American legal philosopher. Drafted the Austrian Constitution, as I think I've mentioned, in 1920. Didn't last very long, but not because it was a bad constitution. He fled the Nazis in, I think, the late '20s, early '30s. He got out, taught in the USA, and produces very early, actually, or very soon after his escape, a famous work called simply Pure Theory of Law.
- 5.63** They're not the most catchy, these titles of great volumes in jurisprudence, but there we go. That's the law for you. It's not trying to be what it's not. Pure Theory of Law, 1934. You're lucky I've spared you the German. The historical context, as in the 16th century and the 17th century, is one of profound legal instability. Nations are being formed and ceasing to exist. Think, particularly at the end of the First World War—1918, 1919, 1920—of the complete dismantling of the Austro-Hungarian Empire.

- 5.64 Just imagine: on the scale of the Austro-Hungarian Empire, within a year or two, it had just been reduced to this tiny mountain state, really, an appendage to Germany. And similarly with the Ottoman Empire. Think of this Ottoman Empire that was going strong from 1453 when it captures Constantinople, all the way up through the 17th, 18th, 19th centuries. It's really a very successful empire in lots of ways. That, too, comes to an end, a sudden abrupt end, because of Turkey's involvement on the wrong side in the First World War. Christmas came eventually for Turkey. The Ottoman Empire was over by the early 1920s, and you have Kemal Atatürk, this forceful, nationalist figure emerging and founding modern Turkey out of the carcass of the Ottoman Empire.
- 5.65 So, all kinds of issues up in the air, enormous instability, very difficult to think of a shared moral universe that can ground some kind of shared understanding of law. Also, it's a time when nation-states are popping up all over the place. I mean, Germany only becomes Germany in 1870. It's only, as it were, a unified nation-state, thanks to Bismarck in 1870. Italy is not a unified state until 1861. These are very old—sorry, these are very, very new countries. They're even younger than the United States of America. Think of that. Young and yet ancient.
- 5.66 Tacitus, the Roman historian in the first quarter of the [first] century AD, writes a book, *Germania*, all about these German tribes who managed to defeat us, defeat Varus's legions in the Teutoburg woods in AD [9]. Italy, too—Rome and Italy, the lands from which the Romans emerged and began to dominate the Italian peninsula and so on—and yet they are new. Belgium, 1831. Luxembourg is a kind of duchy, not quite a nation-state. And Spain and Portugal are bedding down, too, as nation-states, of course—Spain about to go through terrible turmoil, awful, awful, protracted civil war in the [late] 1930s.
- 5.67 The point is, the context, once again, is one in which it's not at all clear that there's a kind of shared moral grammar among all of us that could provide the grounds for us building our laws for our nation. There's a sense that there's a need for some kind of objectivity and clarity, particularly as societies begin to industrialize and become far, far more complex to administer. The argument is, you need laws that address that; nature is silent on laws relating to financial derivatives. I mean, it's very, very difficult to work out what the connection might be.
- 5.68 This is why he calls it Pure Theory of Law, because it's pure of morality. Law's validity is independent of justice. It's pure of politics. It's not the business of law to justify or criticize political systems. It's value-neutral. It's pure of sociology. It's not about, are the laws, is this law going to bring about these effects, or these effects? If it brings about these effects, then that's what makes it a law. It's nothing to do with that. It's not about psychology either. It's about the pure logical structure of law. It's not about why people obey, what their motivations might be. No, it's just got to think about the law, the law's logical structure.

- 5.69 And Kelsen, even more than Hart, even more than Austin, is trying to push for this idea that law is actually a kind of science. It can be a science. It can be objective, universal. It can be free from ideology. It can be free from normative judgments, moral judgments. It's rigorous. The idea that Kelsen develops is that he says, what the law is, it's just a system of norms. What do we mean when we use the word "norms"? Well, it's norms, they're principles. It's slightly different from values. Norms are guiding principles that constrain in a particular way, either with a force of law or the force of social disapproval or request or whatever it might be.
- 5.70 But this is what Kelsen begins with. The law has got nothing to do with facts. It's got nothing to do with describing facts. It's normative. It's to do with oughts. It's to do with constraining, persuading, guiding, controlling particular forms of behavior. The law says you ought to pay your taxes, that theft ought to be punished. It's prescriptive, normative. It's not just, the judge imposed a sentence, or the defendant said these words. It's not description; it's prescription. You ought to pay your taxes; you ought to be punished if you're guilty of theft and so on.
- 5.71 This is different from Austin's view, which says that the ought of a law resides in the fact that you'll be punished if you don't stick to it. That's why it's a command that you need to obey, because something bad will happen to you if you don't obey it. Whereas Kelsen is much more—and we saw problems with that because, as Hart shows, there are circumstances where the law is not a command, and there are circumstances where no sanctions are imposed by a law.
- 5.72 So, Kelsen says that the law is a norm. It's an ought that is tied to certain consequences. You can think of this in terms of the validity of a norm. Where does it derive the oughtness from? You get a parking ticket. Why have you got a parking ticket? You did nothing wrong. You got there just in time, but he's just—anyway, you've got a parking ticket and you don't want to—you think it's unjust and immoral. Don't they know how busy a day I've had? But I've got to pay this. I probably ought to, probably ought to pay it.
- 5.73 Why? Because there's this local parking regulation law that the city council has enacted. Why do I have to obey some city council? What's it ever done for me? It never picks the bins up on time, et cetera. What gives it the authority over my life? Well, because Parliament or Congress or local state parliament, state legislature, has conferred that power on this wretched city council that gives it the authority to give me parking tickets and ruin my day.
- 5.74 Then we say, well, what does Parliament think, who does Parliament think it is, to be conferring these powers that make my life, at the end of the chain, so difficult? Where does its power come from? At every point, we're looking for the norming link, the normative link. How is it that the ought, where does this ought come from? It turns out, you can go all the way up to the top of the waterfall and say, well, where does this all come from?

- 5.75** The answer is, well, power is vested in Congress to confer these powers further down by a piece of paper. A very beautiful piece of paper, but it's got a few copies. But it's the US Constitution. It's just this piece of paper, and it was signed by these people, and that's it. Magic. All the power in the United States comes from that, just the signing. In Britain, it just comes from the Crown. There's just this long dynasty of people stretching back into the eighth century. That's where we get the power from. That's where the buck stops. The buck stops at the Crown; the buck stops on the Resolute Desk in the Oval Office or wherever.
- 5.76** But Kelsen's point is, there has to be some highest norm that we accept. And Kelsen, not having the advantage of the US Constitution or the British Constitution, just says, look, we just need to come up with a basic ground norm, or in the German, Grundnorm, "a grounding principle," a grounding norm. And he says, look, you're going to need this, anyway. If you're an American and you don't want to have a miserable life, you don't want to get in trouble the whole time, you are basically saying, you accept one ought, the principle, one ought to obey the US Constitution.
- 5.77** There's nothing that tells me to, necessarily. The US Constitution can't tell me just to obey it. I mean, it's got to be something that's a decision that I reach before, because if I accept the US, if the US Constitution tells me to obey it, and I do obey it, then I'm already under the scope of its authority. But I want to decide whether I ought to be under the scope of its authority. So it can't be the US Constitution that tells me. But I just ought to. I just ought to. One ought to.
- 5.78** I will tell my kids, you ought to take the US Constitution seriously. I'll tell my kids, you ought to take the Crown seriously. You can't just— it's not a question whether you like the setup or not. It's just, life's going to go so much easier for you if you just accept this basic principle. That itself is not posited. It's not, you have to do this. It's just, you probably ought to obey this. Kelsen says you have to have this basic grounding norm, whether it's a constitution, whether it's a crown. It can't just go on forever. It can't be an infinite regress.
- 5.79** Why should I obey this principle? Well, because this principle says you should. Why should I obey that principle? Well, because that principle, that higher authority, said I should. Well, what about, why does that higher authority have the authority that it has and so on and so forth? At some point, if you're not going to just be infinitely off to the races, you've got to know where it all starts. Every legal system has got to have its own grounding principle.
- 5.80** In the next lecture, we'll have a look at some criticisms of Kelsen, and that will help us move into the thought of H.L.A. Hart and a number of very big debates that blew up in the 20th century around philosophy of law. But I hope that, in the course of this lecture, you've got a good sense of the origins of legal positivism, the idea that the law is just posited independent of morality and underwritten by a sovereign, and also that

you've got a sense of the course of its development through the 16th, 17th centuries, up through into the 20th century, with the great Hans Kelsen.

5.81 Thank you for listening.

Lecture 6: The Hart-Fuller Debate

At a glance — The Hart-Fuller debate.

- 6.1 Welcome to lecture six in this eight-part lecture series on philosophy of law. In the last lecture, the first where we began the second half of this series, by looking more deeply at this way of thinking about law that's got this rather clunky label, legal positivism, but by going back to the great Thomas Hobbes in the 17th century, looking at Austin in the 19th century, and then Kelsen in the 20th century, hopefully starting to get a feel for what legal positivism is, what its attractions are, what its advantages are, and how to refine it in a way that shores it up, insulates it against criticisms.
- 6.2 We saw that Austin tries to do that with Hobbes, and in many ways, Kelsen tries to improve on what Austin does. We saw with Kelsen this idea that you've just got to posit some grounding principle, a grounding norm, a Grundnorm. Whatever situation one's in, there's always going to have to be some bedrock if you want to— otherwise, it's off to the races. You're just off on this infinite regress. What makes that body authoritative? Well, it's that other body. What makes that body authoritative? And so on and so forth.
- 6.3 Now, there are obvious worries about Kelsen's thesis. The first is that it's got a sort of rabbit-out-of-the-hat quality. We're looking for the source of legal authority. We're looking for the source of what gives law its punch, what makes it what it is, what gives it the force that it has. Remember in the first lecture, Hart's famous example: what makes the tax collector asking you for money or else different from the gunman asking you for money or else.
- 6.4 And so if Kelsen just says, well, authority comes just from this, this magic source of authority, we're just going to posit it and assume it's there, then there's almost a magical quality to that kind of thinking. And certainly you can see theists saying, well, we've already got a source of authority, God. And well, how much higher can you get than that? We haven't even needed to invent God or to start pretending to believe in Him, just to shore up our shaky doctrine of legal positivism. It's just always there.
- 6.5 You might as well help yourself to God if He's part of your explanatory framework of the world. Why wouldn't you? It's almost as if Kelsen is trying to create a God-like principle, a God-like source of authority in this Grundnorm, in the grounding principle— but of course, disclaiming any theological dimension to this grounding principle. It's just posited. This is what the positivists do. They just posit stuff and just say, "Shut up and eat. It may not taste great, but you can't do anything else without this. You've got to eat your greens, and that's what's on the table."
- 6.6 There are problems with this. For example, it's not a theory of law that looks at why people actually obey law, why they're motivated to obey law. It doesn't consider how judges reason. It doesn't consider the political aspects and dimensions of law. There's

this common criticism that it's such a pure theory of law that it's basically useless. It's just too abstract. It's too detached from actual legal systems in practice. It's more like an academic exercise.

- 6.7 It's also very difficult to make sense of various features that we would want a theory of law to make sense of—for example, the transition from one regime to another in the course of a revolution. So what happens to the ground norm in a revolution? Well, you can't put it on the guillotine, but it turns out, it just vanishes. And then another ground norm comes in, and it turns out, the old grounding norm that we thought was the source of all authority just wasn't. We'll have to come up with a new one.
- 6.8 The trouble is, the new one is going to replicate an awful lot of the old ones. It's not just going to legalize murder or theft. The new foundation is going to be quite similar to the old, and there will be this continuity. Kelsen's theory doesn't really explain that. Kelsen's also very good at explaining validity. So, the validity of the—the reason I got the parking fine is because that rule was valid and that derived its validity from another authority and so on and so forth.
- 6.9 But it doesn't go to the heart of what makes a law authoritative. Law is more than something that's just been validly passed by Congress or Parliament or whatever. It has an authority, makes a claim. Just explaining the validity of a law by reference to the different links in the chain up to the grounding norm, we don't get any account of why it is that there's actually authority there; there isn't any account of obligation.
- 6.10 Nevertheless, Kelsen's achievement is significant. He is a towering figure in 20th-century legal philosophy, philosophy of law. He is a crucial figure in the emergence of legal positivism, and we'll see how much he influences H. L. A. Hart, even though Hart does criticize him very harshly. Now's the time probably to move on to consider H. L. A. Hart and a famous debate that he has with a guy called Lon Fuller.
- 6.11 The context, of course, now we're moving after Kelsen, Kelsen's work is 1934. Hart and Fuller are writing after the Second World War. Why is that significant? I should say, writing not after the Second World War, but writing after the Nuremberg trials that came just after the end of the Second World War. We've talked in previous lectures about the way in which the Nuremberg trials laid bare all kinds of problems and logical gaps in how we understood law and provoked, kickstarted a lot of the old disputes again in a very dramatic way.
- 6.12 Were Nazi laws, laws? Plainly unjust, immoral, evil laws—are they still laws? It's a very neat way of presenting the central question animating this lecture series. It's a really urgent and unavoidable problem in the late '40s, '50s, and '60s. The great debate that happens between Hart and Fuller in 1958 distills a lot—as we will see, it crystallizes a lot of these issues very conveniently.
- 6.13 So let's turn to Hart. He writes this extraordinary book, *The Concept of Law*, 1961. Apologies, I think I might have said 1967 in an earlier lecture. 1961 is the publication

date. Hart turns out to be the most influential legal philosopher in the English-speaking world since John Austin, who dies in 1859. Hart's project is really to take Austin's approach and his rather crude theory of law as command by a sovereign, backed up by sanctions— this is his version of legal positivism—and to try and plug some of the gaps that we mentioned in the previous lecture.

- 6.14** He attempted to respond to a lot of the challenges from the other side and to address this interesting puzzle of whether Nazi laws are laws, directly and honestly. We saw in the previous lecture, when we were looking at objections to Austin's theory, that, effectively, I rehearsed Hart's objections, which is that Austin's theory, the problem with Austin's theory, that law is a command by a sovereign with sanctions attached, is that laws are not always commands. It's not always clear that they're issued by a sovereign. And there are some laws that have no sanctions attached at all. So it's a little bit awkward. All three ingredients of Austin's theory—three or four ingredients—have decisive counterexamples: laws that are not commands, laws that don't have sanctions attached, and so on and so forth.
- 6.15** So what is Hart's alternative? What does he do in this great book, *The Concept of Law*? He stands back and, observing an entire system of law, he makes an insight, a very striking insight, about the nature of law. What he realizes is that laws are not just rules. Laws are also rules about rules. Rules for making rules, rules about who can make rules and when, rules about when rules can be repealed, changed, abandoned, modified, expanded. Hart says it's a crucial distinction.
- 6.16** So you have what Hart calls primary rules, laws as primary rules. Don't assault people. Pay your taxes. Don't break the speed limit. Those are primary rules. In a fairly simple society, maybe that's all you need the law to do. Just, there are these agreed rules, these are the village rules, or house rules, or city rules, maybe. But when societies scale up and get more complex, then all kinds of questions arise about these primary rules. It turns out, you need rules for the primary rules, you need secondary rules, which are not rules in themselves that relate to—that involve the content of primary rules, but help to give us a framework for rules about rules.
- 6.17** There are all kinds of questions that can arise. The primary rules don't tell us how they could be changed, how they could be amended, what the mechanism could be to change them. The primary rules can't adapt themselves to circumstances. You need some set of procedures that is agreed and accepted to modify the primary rules in any way. The great thing about secondary rules is that they clarify all of these issues. They resolve any uncertainty as to how the primary rule is to be applied or who it's to be applied to or when it's to be applied.
- 6.18** One famous rule, probably the most famous secondary rule, for Hart, is the rule of recognition. The rule of recognition is really the ultimate criterion of legal validity. That's the secondary rule that helps us identify which primary rules are law. The secondary rule for the rule of recognition would be what the Constitution—the US

Constitution—and the laws made under it say is law. That's the secondary rule, the rule of recognition.

- 6.19 What the Crown in Parliament enacts is law. For a Brit, that would be the rule of recognition. That would be the secondary rule, without which the primary rules can't really have any meaningful application. There are secondary rules about change, when you can change, how new rules can be created, how to modify or repeal existing primary rules, and so on and so forth. There can be secondary rules about how you adjudicate the rules, how you structure the courts, how you appoint the judges, all the procedures around the courts, rules about TV cameras in the courtroom. They'll have the force of law, but they're enabling rules rather than primary rules, which are rules that tell citizens, effectively tell us what to do.
- 6.20 Whereas secondary rules are more rules that tell officials within the state, within the system, how to apply the primary rules, how to identify law through the rule of recognition, how to change the law, how to adjudicate the law.
- 6.21 What's attractive about Hart's position? I mean, what advantages, for example, does it have over Austin? Well, it explains how certain kinds of laws are made, which Austin's theory didn't quite address. For example, constitutional law, constitutional rules, which don't seem to be commands. They don't have the ring of commands. They don't have sanctions attached to them. You can either amend the constitution or you don't amend the constitution. There are no sanctions to doing either.
- 6.22 Hart's theory does account for that. Very simply, the procedures for amending the constitution belong to the set of secondary rules. They're the rules about rules. Perhaps the major improvement is that he sees the sovereign as being recognized, not from some habit of obedience, which is Austin's phrase, but as a principle that isn't enacted by anybody. It's just a fact of official acceptance. Officials accept the sovereign as the source of law, recognize the sovereign as the source of law, and they simply accept the rule of recognition.
- 6.23 The internal point of view—I've mentioned this already in the opening two lectures. This is where Hart develops this very important idea that there's a difference between the external point of view, when you're thinking about a legal system, and the internal point of view. The external point of view would maybe just observe regularities in a society.
- 6.24 Whenever there's a red traffic light, these cars seem to stop until it stops flashing red, until it turns green, and then they move. This is a regular behavior, and this is a prediction rule. We can say, "I predict that if that traffic light goes red, this car will stop." He might say that I'm observing regularities in a system, from the external point of view. Hart says that is exactly how we do not actually experience law, how we understand it. I've mentioned this before.

- 6.25** When we're at the traffic light, it's red, no police cars around, you're in the middle of the desert, no cars around, you're not making predictions about what might happen to you. Some people might just drive straight through the red light, who knows? But there's a sense that, no, we've got—there's a rule about this. I'm going to stop the car and I'm going to wait patiently, even though there's not a single human being for 50 miles around. I must apply what the US Constitution has ultimately enacted. It binds me, and I accept the standard.
- 6.26** That's, broadly speaking, what happens when we're thinking about law. It's the law. I'm in it. I'm in the system. I accept it. I'm just going to go along with it. This kind of internal acceptance, says Hart, may not be true of every citizen, but it has to be true of every official within the state. It's the buy-in from the officials, buy-in from all government employees, you might say, that creates the legal system.
- 6.27** That's what distinguishes the tax collector from the gunman. With the gunman, we don't feel any kind of inner duty to give him all our money. We don't accept that there's a rule here. This is just a regularity. This is just a one-off act of coercion. It doesn't create any duties or obligations for me at all. Whereas the law that the tax collector is depending on does, says Hart, derive an authority from the fact that the system accepts it as binding, genuine acceptance of standards.
- 6.28** Officials might not like the rules. They might accept them cynically. They might just say, "Well, I want a good promotion, so I'm going to accept these and work with them." But you could still, it's still possible for the official to say, "I think these are immoral laws. These are not the laws I would have passed. I think there are all kinds of problems with them, but nevertheless, I accept their force."
- 6.29** This is Hart's vision. But he also includes something rather surprising in the concept of law. He argues that, if a legal system is going to be viable, it's got to have certain substantive rules. These are not primary rules—rules directed to citizens. They're not secondary rules—rules directed to officials who are in charge of maintaining the laws. There are these substantive principles, truisms, says Hart, which require legal rules no matter what the system is.
- 6.30** First truism—human beings are vulnerable. They can be killed easily. We need rules against violence, against assault, against murder. That has to be the case. A legal system has to address it. Here are a number of other truisms—one about approximate equality, what to do with limited resources. In any society there will be fights over scarce resources. So you need property rules, property enforcement. You need contracts. You need strategies against fraud. You need rules for allocating public goods and deciding on tax rates and so on and so forth.
- 6.31** Hart says human beings are also not just vulnerable, they're also quite weak. They're limited in understanding, strength of will. Human beings make mistakes. There has to be a system of sanction and enforcement to help citizens grow, to give them the

understanding they need or to take away, in the case of some laws, to take away the need for any understanding. I don't need to understand why I have to do this, but it's probably going to make my life easier if I just go along with it. The law can do that. It can simplify, it can clarify in effective, clear, predictable ways.

- 6.32** It can also, crucially, take away the agony of a moral dilemma. You say, "Well, should I do this? Should I do that? This is just an impossible decision." Oh, well, the law decides. The law has already decided. I just don't have a choice here. A lot of examples of this, but one that's come up recently in Britain is various rules about how involved should the government be in the management of schools, particularly in tech in schools and smartphones in schools.
- 6.33** One argument that I think is quite attractive is to say, look, what the law could do, if the law has something to say about whether kids up to the age of 16 can have smartphones with them at school, for as long as the law is silent, every headmaster in the country is wrestling with this. Parents who insist on the smartphone being allowed and parents who say, "No, this is terrible." What the law could do, very straightforwardly, very clearly, is effectively completely remove, completely dissolve, all of those disputes happening in schools up and down the country.
- 6.34** Because an institutional leader, the headmaster, can simply say, "The law is the law. Parliament has decided. Debate's over." We may disagree about whether Parliament was right, but done. That makes life a lot easier for everyone. We can have an abstract argument about whether smartphones should be allowed in schools for under-16-year-olds, but you've just got to do it. You've still got to make sure that rule is in place because it's the law.
- 6.35** We forget, I think we often forget this dimension of law, the way in which it can provide this coordinating power, the way it can make the lives of citizens a lot easier, make the lives of institutions a lot easier, if the laws are well drafted and well applied. Why is all of this interesting? Well, why is it interesting that Hart suddenly brings in these substantive rules, that every legal system must posit?
- 6.36** Whatever legal system is posited and just given on the table, it must take account of these fixed features of what it is to be human, that we're vulnerable, we need help, we often don't understand things, we often haven't got the will to do something. If there's a law relating to it, then it's going to be easier to just do it. I'm going to do it. I don't care if I don't want to do it, I have to do it. I don't care if I don't really understand this, but I trust that the right people do understand it and that that's why the law is what it is. 90% of the time we will go along with that.
- 6.37** But why is it interesting? What's interesting is that it seems as if, in this great manifesto for legal positivism, Hart is implicitly invoking features of the natural condition of human beings. Human beings are, by nature, vulnerable. Human beings, by nature, are

limited in their understanding. They struggle with weakness of will. What that means is that law must pay attention to reality. Law must pay attention to the way the world is.

- 6.38** It's not enough for laws simply to be a system of primary and secondary rules. It's not enough for it to have the authority or a story about validity, as Kelsen says. Any system of law that doesn't take account of the fact, take account of these features of human beings—that we're vulnerable, that there is scarcity, that there are scarce resources—is not going to work. This is the implication of Hart's view.
- 6.39** And so, you might say, look, beneath it all is a kind of natural law. There is a stipulation that nature matters. It's not as if just any framework that meets the criteria of validity and authority and is capable of generating rules about rules and so on, it's not the case that just any one of those systems could work as law.
- 6.40** To work as law, those systems have to take account of these features of human nature and other aspects of nature. So, it looks as if there's actually at least some overlap possible between Hart's positivism and natural law. That might explain indeed his openness to commissioning John Finnis to write this extraordinary book on natural law, 20 years later in 1980.
- 6.41** Before we get onto the debate between Hart and Fuller, it's worth looking at how Hart deals with this problem of the Nazi laws. I've talked about this a little bit before, but I mean, Hart's view is that to claim that they're not laws at all because they're unjust or immoral is to commit yourself to a conclusion that is just plainly false in his view.
- 6.42** The Nuremberg Laws in 1935 were validly passed. They were constitutionally passed, properly enacted, according to Germany's rule of recognition then, namely that Hitler as Chancellor had all powers vested in him in a state of emergency that he declared, he and his cabinet declared, and the laws met all the criteria for legal validity, and therefore they were law. You can't just say we can dismiss them as laws, that they weren't actually laws, simply because of their immoral and evil content.
- 6.43** Hart just says, look, this is not the correct analysis. They were laws, and they led to all kinds of consequences, real-world consequences in the world. What were they? They were something. They weren't nothing. What were they? Were they fake laws? Hart's view was that, not that the Nazi law is not really law; this is what he goes against. He says it's better to think of them as laws that were simply immoral, and then we can say of the Nuremberg trials, what's happening here is that we're creating, in exceptional circumstances, we're creating retroactive laws.
- 6.44** We need to be open about that and we need to be honest about it—retroactivity being, generally speaking, a terrible idea when making laws because there seems to be something that cuts against the principle of natural justice. You can't accuse somebody of something when the rule that they breached didn't exist at the time. But in this case, Hart says it's justified. What you can say, says Hart, is that the laws were valid, but the obedience of the judges to the laws was morally wrong. That you can say.

- 6.45 The judges should have refused to apply these laws. The judges should have said, or officials who were enforcing the Nuremberg Laws, should have simply said, "We're breaking the law. We're breaking the law for moral reasons." We are breaking the law; we're not breaking nothing. We're not doing this, and we'll face the consequences, and we're doing it because we think morality trumps legal duty. Hart thinks that this is a better analysis. It preserves the idea that law is law and doesn't just depend upon the morality of its content.
- 6.46 This sets the stage for this famous confrontation, this famous debate in 1958, between Hart—this is just three years before he publishes *The Concept of Law*—and a distinguished philosopher of law, legal philosopher, Lon Fuller, a giant of a professor at Harvard Law. And about three years after Hart's *Concept of Law*, he publishes a book called *The Morality of Law*. So, from *The Concept of Law* to *The Morality of Law*.
- 6.47 And what Fuller argues, what he tries to defend is what he calls a procedural natural law. And he develops a very interesting critique of legal positivism. And he tries to argue that all law has some kind of internal morality. The morality is more procedural than substantive, but it's still morality. And against Hart, he says that a legal system that is grossly immoral, horrifically evil, fails to be law. It fails to be law. So how does he go about arguing for this?
- 6.48 Well, he, first of all says, look, there've got to be certain principles. This is a little bit like Hart's secondary rules, you might say, but there have to be certain principles that we abide by when we're thinking about drafting laws. Laws should be general. Generally speaking, laws should not be directed as particular orders at particular people. They should apply to all citizens in the particular circumstances that the law is addressing.
- 6.49 The law can address you individually, as I've said in a previous lecture—a court order demanding that you pay something or you do something or a certain number of hours of community service or whatever it might be. That is, as it were, an example of the law directly instructing an individual citizen. But that's unusual. Generally speaking, when we're drafting laws, we would include maybe mechanisms that would address individual citizens. But generally speaking, it's got to be not: James Orr must pay £100 tax. It's just, everyone earning X should pay Y.
- 6.50 Other principles, the law should be promulgated, so it should be publicized or it should be easy to access. There shouldn't be secret laws for obvious reasons. A citizen is entitled to know what's required of him. It's not always easy to find that out these days, but in principle, it has to be publicly accessible. Laws should be prospective. As I said earlier, they shouldn't be retroactive. Laws should be clear. They shouldn't contradict each other. They should all fit together.
- 6.51 The behavior of the state and officials should itself conform to the rules, so there shouldn't be hypocrisy. I mean, it seems obvious to say this, but officials should actually follow the laws that they announce. So, why is this interesting, these principles that we

should be applying to or considering or taking into account when drafting laws? What's interesting about it, says Fuller, is that these are moral precepts. These are things that we ought to do when we're working out how to draft laws. These are moral principles.

- 6.52** Okay, they're not big substantive ones. Don't murder. Pay your taxes. Those are substantive ones. It's not saying they're substantive rules, but they are procedural moral rules, and they are necessary, that you ought to pay attention to these principles of putting a law together, making sure it's intelligible, making sure it's coherent, it fits together with other laws, that officials are obeying those laws and so on and so forth.
- 6.53** These are, says Fuller, this is a kind of morality. These are moral requirements. They're not any other kind of requirements. They're certainly not legal requirements. They couldn't be because they're requirements about what needs to be done to make the legal happen, so it's got to be upstream of the legal. They're not descriptive. They're just guiding principles that have a normative force. It's a kind of morality. It's a province of morality, not a province of law. And so, positivism is inadequate. Positivism says, no, it's got nothing to do, law has got nothing to do with morality.
- 6.54** For Fuller, perfect legality is met when all of his eight principles, his eight general principles, are satisfied, which is almost never in his view. A total failure of legality is when none of them, all the principles are violated. You've got secret laws that the officials don't even obey, but you don't even know whether they're obeying them because you can't get access to them. The laws contradict each other. They don't make any sense. They require you to do the absurd or the impossible. And so, this is just this complete total failure of meeting the criteria.
- 6.55** But it's a spectrum, says Fuller. You'll have this ideal perfect legality at the top and then the worst zero legality at the bottom, and most laws will be somewhere in between. Most legal systems will be somewhere in between. That gives you a more granular perspective on how to assess the legality of any given system. So, turning to the Nuremberg Laws, the Nazi laws, Fuller says, well, these laws violate many, many of my eight principles simultaneously—a lot of secret laws, a lot of retroactive laws.
- 6.56** If Jews have done this in the past, then this will be, these are the consequences. There are contradictions, and so on and so forth. From Fuller's point of view, it's not that maybe there was zero legality in the Nuremberg Laws, but it was barely legal. There was a very minimal legality to the Nazi legal system. Effectively, Fuller says, look, the more of my principles you violate, the less likely, the less truly this will be a law. So not a sharp line, it's just more of a continuum.
- 6.57** What would the secret laws be? The secret laws would be, for example, concentration camp regulations or regulations in the death camp, how death camps should be structured and ordered. No evidence that—certainly the German public might have known about the camps, but they certainly didn't know how they were run or that those laws were not public. Very often, Nazi officials did not bother following the laws

that they laid down. Sometimes laws asked citizens to prove their Aryan ancestry when it was impossible for them to prove. They just didn't have the records going back far enough.

- 6.58** The law should not command the impossible. So, says Fuller, this is the answer. It's not really a legal system. It hasn't got genuine legality, but we can still just about make sense of it as a legal system. So he avoids Hart's objection to the natural law types by saying, "Look, I'm not denying that they had any legality at all. I'm saying that they had a very weak, a very weak legality."
- 6.59** Fuller's achievement is to say, well, we shouldn't be thinking of whether something is a law in too binary a way. What is a law, what isn't? It's more, maybe there are degrees of legality. You can say that's a very good law. It meets all of these different principles. This is a terrible—it's trying to be a law, but it fails on every count. That helps us to explain why the Nazi laws were evil, but without invoking substantive moral claims, simply restricting the moral critique to the procedural failures involved in the making of those Nazi laws.
- 6.60** Again, so it avoids Hart's objection that laws not trying to form a view about the morality of, the substantive morality of the Nazi laws, but saying the procedural morality was absent. It's a procedural failure in making the right rules about rules or in the way that rules were devised. The method and the means of forming law was defective.
- 6.61** So, where does this, where does this lead us? The debate itself happens in two articles in the Harvard Law Review, 1958, and Hart lays out the central thesis of positivism—law and morality are distinct. You can evaluate a law without any moral evaluation. An unjust law is still a law.
- 6.62** Then Fuller, in the other corner, sort of revived, is it natural law? It's not quite natural law, but it does say that the law contains within it a kind of inner morality, moral principles that we can use to form a judgment about whether or not a law attains full strong legality or weak legality. Fuller insists, yes, absolutely, law does have this internal morality.
- 6.63** There are debates around, with specific case studies. One is, these are real cases that arose after the Second World War in Germany. This is a typical scenario. During the Nazi period, a wife denounces her husband to the authorities because the husband criticized the Nazi regime. Wife reports him, maybe to get rid of him. Husband's imprisoned under the Nazi law prohibiting criticism of the regime. After the war, the wife is prosecuted for illegally depriving her husband of liberty.
- 6.64** This throws up a problem. The wife would have said, "Well, I was just following the law. I was just following the law. I denounced my husband, but my denunciation was authorized by this law. And he was guilty. He broke the law. I heard him. I heard him criticize. I heard him criticize the regime. I didn't commit a crime. He committed the

crime." The problem for the prosecution in the wife's trial would be, well, it was, the statute was a valid law. She complied with it.

- 6.65 How do we prosecute her without inventing a new law, which we say was mysteriously in place three years before and that she broke it, even though she didn't know what it was, even though—because it didn't exist. She couldn't have known what it was. And so, the sort of judgment you'd get from the courts of West Germany, they would apply natural law reasoning. The idea was that the Nazi law in question was contrary to sound conscience and any sense of justice, and therefore it wasn't ever binding. This is the finding of the courts. Therefore, the wife could be prosecuted.
- 6.66 You can see all sorts of problems with this. What is she being prosecuted for? It's one thing to say that that law was not in place, but in order to prosecute her and to lock her up, we've got to say, there must be some law that she broke. She's saying she followed this law; you're saying the law actually was not binding and didn't really exist because it went against sound conscience and a sense of justice. You're sending her down for breaking a law that didn't exist. Because what? There's no clear account here.
- 6.67 Hart's point, I've made this point, I've described this before, that Hart's point is simply to say, look, you have to bite the bullet here. You have to simply say, what is going on here is that we are saying, we're recognizing that that law was a law, the Nazi law was a law, but we're simply now retroactively disapplying it and putting in another law, or retroactively overruling it. This should never normally happen, but it has to. The circumstances are such that we have to do it. This makes things much clearer, much better to be able to say of the Nazi laws, "They were laws, but they were evil laws," rather than to say, "They weren't laws at all."
- 6.68 Now, Fuller's response to this is to say, well, the point of the Nazi laws was not to guide citizens. It was to terrorize citizens, effectively. It was to impose an extreme ideology that has nothing to do with morality and certainly nothing to do with the internal normative principles that should guide our crafting of laws. Fuller says the laws were applied arbitrarily, highly selectively. They were part of a wider violation of procedural principles, and therefore, the wife was mistaken to rely on it as law. Maybe it was an honest mistake, but she was wrong to think that this was, that this had the right level of legality.
- 6.69 So that we can say that, for Fuller, the statute was not, in fact, fully valid law. This solves the problem from the other direction for Fuller. Fuller says this is a better approach because it helps to encourage a respect for law. He says, if the law is just whatever the sovereign commands, if there's no necessary connection to justice, then the only reason to obey it is prudential, because you're nervous about what would happen if you don't. Positivism turns laws into threats.
- 6.70 Whereas with natural law, there's a sense that law is connected to justice, and that respecting the law just does mean respecting justice. There's a reason to obey the law

that isn't just fear, fear of the consequences of not obeying it. This is much truer, says Fuller, of what law is. Who won? Well, the opinion among scholars was divided. I think probably more favored Hart than Fuller. His separation thesis, separation between law and morality thesis, was probably clearer, better argued. He was very honest about the need for retroactive laws in the case of the Nazi laws problem.

6.71 But Fuller made some very important points and good criticisms of the thinness of positivism. He pointed out that law does actually have internal standards. There is something that makes a law a good law versus a bad law that is separate from the actual content of the law. You can think of a good law in terms of, is it doing the kinds of things that a good law should do? Not, is it conveying the correct morality? Is it doing the good things, the things that a good law should do? Is it clear? Is it coherent? Is it consistent with other laws? Is it well publicized? Is it straightforward? Et cetera, et cetera. These are all, as it were, moral considerations. This is something that Fuller brings in very well into that debate.

6.72 And really, the Hart–Fuller debate of 1958, it's really shaped legal philosophy ever since. It's really dominated in the last—all the issues that it threw up have dominated legal philosophy, philosophy of law, for the last 75 years at least, and is, as it were, a perfect way of framing this debate that has really been with us since the very beginning, since the 440s BC, as we saw with the great play of Sophocles, as we saw in the great confrontation between Creon, the enforcer of positive law, and Antigone, the defender and champion of natural law, of unwritten law, of laws that transcend any particular legal system.

6.73 Thank you for listening.

Lecture 7: Rights

At a glance — Rights.

- 7.1 Welcome to lecture seven in this eight-part lecture series on the philosophy of law.
- 7.2 Up until this point in the series, we've been looking at this great clash between two competing conceptions of what law is. The first might be more the immediately intelligible one: law as a way of formalizing morality. And law must somehow—law derives its authority from its proximity to morality, from the fact that it's expressing and codifying morality and setting out schemes of sanctions and authority, and so on and so forth.
- 7.3 The second, the rival view, is the view of legal positivism, which relies, first and foremost, on the separation thesis, the idea that law and morality must be distinct. Up until this point, the debate has circled around particular legal systems, the laws of this particular nation, this particular political community.
- 7.4 What we're going to move into in this lecture and the final lecture, lecture eight, are considerations of questions of how we think about law or legal instruments or legal agreements that seem to transcend, move beyond, the laws of a particular polity, of a particular city state or nation or people. In this lecture, we're going to look at the way in which law can invest individuals with— question mark—powers, abilities, rights against the legal system that they might find themselves in— that they can appeal, they can invoke a right against the full weight and force and authority of their political community's legal system. Extraordinary.
- 7.5 Then in the next lecture, we're going to move beyond that to think about how international law more generally works. How can there be a law that governs nations without a sovereign? There's no world parliament. There's no cosmopolitan congress that oversees and enforces and passes international law. It turns out that it's very difficult to work out what international law is. It's got no obvious sovereign; it's got no system of sanctions. Most countries will just ignore the judgments of a foreign court far away, applying a set of legal rules that the country has not voted on, can't hold accountable, can't change in any way.
- 7.6 So we'll be looking in both these lectures at how to think about law when it sort of slips away from a discrete particular legal system. Many of the systems that we've— approaches that we've looked at so far do help themselves to the language of rights quite liberally. We can understand the concept that, in the 1930s, German Jews had rights that were violated—violated by the Nuremberg Laws of 1935. We can make sense of that without worrying about what particular document conferred those rights.
- 7.7 You could say, well, they just have those rights naturally. They're just natural rights. But what are natural rights? What are we talking about when we're saying that somebody

has a right to something or a right to be protected from something? If law and morality are separate, as the positivists tell us they are, what side of the fence do rights sit on?

- 7.8** Intuitively, rights are something that confers certain—that express your dignity as a human being in some way, and that the rights flow from that fact, that normative fact, about every human being. It's a moral claim, first and foremost. Therefore, on the positivist view, it can't be a legal claim—something that is wholly distinct from law, just a question of morality. It can be very troubling when we look into what the definition of a right is, that there's such a lack of clarity, lack of consensus. Because rights discourse is everywhere today. It didn't used to be.
- 7.9** But really, in the wake of 1948, the passing of the [Universal] Declaration of Human Rights, and then in 1950, the passing of the European Convention on Human Rights, which is effectively a copy-and-paste job from the [UDHR]— these have fundamentally affected the legal and constitutional and political landscapes of the countries that are subject to them.
- 7.10** This is particularly the case in Europe, and certainly in Britain, where, in the year 2000, Britain took on the whole web of rights initiated, as it were—contained within the European Convention and enforced by the European Court of Human Rights, based in Strasbourg. This was a fundamental shift in British law, which previously had relied a lot more, maybe, on the natural law tradition, on the common law tradition. Things were shifting to Parliament, but it was still Parliament and the British courts that were in charge.
- 7.11** But in the year 2000, the Convention on Human Rights acquires the force of direct law in Britain, and the highest court of appeal is a foreign court, a court over which the British people have no control at all. This brings with it a very different kind of legal architecture into the British system. Almost a new constitution in some degrees, because the way these articles, these rights, are drafted—the articles conferring the rights are drafted—they are so open that, depending on the judge, enormous powers could be given to a lone individual to override the collective good of the nation, for example.
- 7.12** So, how do we make sense of rights? What are they? What kind of definitions can we get to? That's what we'll be looking at. In the course of this lecture, we'll be trying to distinguish natural rights from legal rights, and then two or three different approaches to how we understand rights. Then we'll look at some of the problems with rights-based regimes. So, what are rights and where do they come from?
- 7.13** An attractive first view, first approach, would be to say that a right is—if you've got a right, you've got a claim on something, you've got some kind of claim or some sort of entitlement that imposes duties on others. I wouldn't say there's consensus around this, but a dominant view is that rights and duties go together. If I have a right that you do something, then you have a duty to do it. Rights and duties are correlative. They go

hand in hand. If I have a right to my property, to my house, that imposes a duty on you not to break into it or damage it or interfere with it in any way. That seems clear enough, that duties come along with rights.

- 7.14** When you talk about, well, there's a right to education, or there's a right to healthy nutrition or a right to water, these are less obviously rights. Why? Because what would be the correlative duties in those situations? If I meet somebody who believes that they have a right to water and that that right is real, what duty does that impose upon me to get the person water whenever they need it, whenever they should want it? Indeed, anybody in the world would have to go and get this person a glass of water whenever they wanted it.
- 7.15** The right to education is the duty that lies on the government to educate its citizens, the same as the duty that it has not to lock them up without a fair trial. Intuitively, there is a difference there. Obviously, we would want a government to look after the intellectual moral formation of its future citizens. Obviously, governments have a stake in that, and the people should want governments to be involved in that in some way. But is it the same as the right to a fair trial and the right not to be locked up without due process? Intuitively, these are very different sorts of things.
- 7.16** If there was a universal right to education, that imposes a universal duty on the world, and every individual in the world, not just states, to educate everybody, to make sure everybody is educated. That seems implausible relative to the claim that the right to life entails that, wherever in the world it seems as if that right is being persistently breached, there is a duty on the international community, and indeed on all individuals, to ensure that this right is upheld and ceases to be breached.
- 7.17** Now, then the question is, what kinds of claims? It's not just any claim that could be understood or should be understood as a right. Certain interests that I have, certain choices that I make, might generate rights, but others won't. I might have an interest in my friend being nice to me, but that doesn't create any kind of right to be treated nicely. It doesn't give me any right to the kindness of my friend. I also have an interest in not being murdered. This is—I am very interested in this position. I have a stake in not being murdered, and I have a right not to be murdered. You have a duty not to murder me.
- 7.18** Well, what's the difference? Is it a difference of degree? Is it a difference of kind? Well, you might say, there's clearly some difference between those two. There must be a threshold between them. Maybe we don't know exactly where the threshold is, but there's a threshold. We just need to work out roughly where that threshold is, in a way that will, broadly speaking, be acceptable to the people enforcing and putting everything together, whether this is judicial officials within a nation-state upholding human rights laws directly, or whether it's an international court.

- 7.19** We might also say that rights protect human dignity. They uphold human dignity. They articulate what it is in practice for a human being to be treated with dignity, and then they apply the force of law to those expressions. This is intuitively plausible, but really pushes the explanatory problem upstream, just pushes it along, because we've still got to ask, well, what is human dignity? And what is it about human dignity that gives rise to rights, this particular way of protecting dignity? Does understanding human dignity help us to work out which rights are rights and which rights are not—don't meet the threshold?
- 7.20** It becomes very difficult to see quite what a right is. It's a metaphor. It's drawn from the world of, really, property. The language of rights, of jus, of jura, emerges in the—let's have a think. It's in—a lot of debate about this, but let's say round about the 14th century. There's an interesting debate that happens among the Franciscans, who are the first emerging as a monastic order. Franciscans are mendicant friars. That is to say, they've got no possessions. They make a vow, a vow of poverty and not to have any possessions at all. They're mendicants, so they beg and ask and depend upon charity.
- 7.21** Then the question arose as to, well, okay, you give a Franciscan friar a piece of bread. He takes the bread. It's still your bread. It can't be his bread. Otherwise, he's no longer a mendicant. Then he puts it in his mouth. Is it still—is he starting to get a right, a property right, over the piece of bread? It seems like a very, very strange source for worry about what a right is, but this triggered enormous disputes and debates. Is "a right to eat" a jus edendi? Is that acquired, or a jus fruendi, "a right to enjoy something"? Is that a claim over a piece of property? And they say, no, of course it's not; otherwise, Franciscans couldn't be Franciscans.
- 7.22** And so, the idea of a right as being something tied to an actual object, tied to a piece of property, began to—that began to get a lot weaker. They say, no, rights can be sort of attached to things that—you know, a dissolving piece of bread in your stomach, it's not a property. It's not a formal property right, but there's still some kind of right. It's not immoral or unlawful for the Franciscan to swallow the bread. He's got to eat the bread. He's got to swallow. He's got to eat something. So, from the 14th to the 15th century, this idea develops that rights can actually just attach to a person by nature, and they become more like claims than rights of property, rights over some piece of some material property.
- 7.23** Then there's the scoping question about rights. They're human rights, so we say, well, what's the problem with the scoping? It's as big a scope as you can get. It's just all humans. If we think that rights involve choice of some sort or will, as many theorists do, then it becomes difficult to see how children, neonates, young babies, toddlers can be included. Do they meet a kind of competency threshold for rights to kick in?
- 7.24** Moving beyond humanity. Why do we have to stop with humanity? Can animals have rights? This has been a burning topic for several decades now. Some argue, yes, absolutely, the same as human rights, which is effectively Peter Singer's position.

Others will say, no, only moral agents can have rights, and only human beings are moral agents. Why? Because human beings have a capacity to reason, and they have a capacity to transcend the merely physical forces that constrain the behavior of other animals.

- 7.25 We can have the whole—the cumulative weight of all the physical causes and effects that have led up to me making a decision now are not going to force me to decide either way. They may push me in a particular direction, but I'm free to choose. My choices are meaningful. They're morally meaningful. I can be held accountable for them. I can be praised for them or I can be blamed for them. Somehow rights—that is intrinsic to what it is to have human dignity. It's intrinsic to what it is to be a moral agent. And very plausibly, rights bearers are moral agents. They're agents of value. They're moral agents.
- 7.26 If animals lack this capacity, other animals lack this capacity, then we could say that they're not—they don't have rights. That doesn't mean to say that animals should not be treated properly and humanely. But notice the word that we use there, "humanely," not like other animals, as humans would, when acting well, or as humans know how to do at their best because they are moral agents. And so, it's not to say that animals don't have rights—it's not to say that anything at all can be done to animals—it's just simply that a different moral grammar is needed to talk about the need for animal welfare and the dignity of animals.
- 7.27 There are other complicated issues around scoping. I've referred already to the legal fiction that corporations are persons. Can companies do wrong? Do companies have rights? If they're legal persons, why can't they have rights? Lots of interesting debates in corporate law over this question. Companies can sue. Companies can own property. At least in the US, companies have free speech rights. They're very close to being a rights bearer of some kind. But for now, at least, I think the consensus is that companies don't have rights, but working out exactly why they don't is harder than you might think.
- 7.28 Another favorite of mine, when it comes to scoping, do future people have rights? Do future generations have rights? We owe it to our grandchildren and our great-grandchildren to do X in order to respect their right to Y. Well, you hear this a lot in arguments in contemporary ecology, eco-movements, ecology movements. We've got to take this drastic action because we owe it to future generations. They have rights, too.
- 7.29 The main problem with this rationale is that whatever else we think a rights bearer should be, or should be true of a rights bearer, surely we should accept that the rights bearer in question has to exist. I mean, we can agree on that. For something to have a right is for something to exist. Unicorns— maybe animals have rights, but even if they do, unicorns don't. It just seems a fairly basic—it doesn't seem to be a contention we

should be fighting over. But what's the problem with future generations? Future persons don't exist. They don't exist.

- 7.30** And so, how can an obligation be owed to them? How could a duty be owed to them? What rights? Do they have the same rights as us? Who is "they," anyway? Who are we talking about? We don't know. And so, it's very hard to factor in this claim that future generations have a claim on us. There's a huge measurement problem here. Which future generations? Do we say, well, grandkids, great-grandkids, great-great-grandkids? After that, not too bothered, to be honest.
- 7.31** That seems arbitrary. That seems very cruel to the great-great-great-grandkids. Never mind all the rest, the thousands, the millions, the billions more after that, that could come in the next several thousand years if human beings are still around. Well, okay, so it seems arbitrary just to stop. Would you say, all future people? Everything I do, I must discharge—in this life, I am under a duty, multiple duties, to countlessly many future-but-not-yet-existing people to respect all of their rights.
- 7.32** Now, if you look at the shopping list of what counts as a right, then you'd realize that this would lead completely, almost immediately, to total paralysis. It would simply be impossible, impossible to do it, impossible to work out what the rights are, and it would require seeing into the future.
- 7.33** But it would be an example of the law commanding the impossible, like the Nuremberg Laws demanding that every citizen prove their Aryan pedigree up to X number of generations. If you haven't got the documents— a lot of people won't have the documents—the law was commanding the impossible. A law that commands the impossible lacks validity, lacks authority. It goes against the principles of natural justice.
- 7.34** So, questions around justification, questions around scope, but most importantly of all, questions around content. What rights are rights, and what rights do we think are much more suspect? There's broad agreement on the right to life, you might say, even if there's definitely not agreement about what life is or when it begins. There is broad consensus that there is a human right to be free of torture, freedom from torture, freedom from slavery, freedom from being incarcerated without due process.
- 7.35** But there are disagreements around many other areas— the right to health care, the right to education, the right to water, as I've mentioned earlier, the right to a minimum wage, the right to university education. All of these sound good until you apply the test, the correlative test, the rights-duties test. Right to health care, right to free university education—all of this implies that everybody else, the rest of humanity, has a duty to provide those things for me. That seems implausible for all kinds of reasons, not least because, for many people, it will be simply impossible to discharge a duty, to ensure that everybody has health care, housing, free university education, and a minimum wage.

- 7.36 When you read that list and you think, gosh, that's a— that is a center-left politician's dream, absolute dream of a shopping list of rights, because on the left, they're campaigning for free education, free university education, free health care, and free housing, and so on and so forth. There are obviously totally legitimate debates around these kinds of questions.
- 7.37 But could you imagine, if we could bake in our ideal manifesto to international rights documents, then it would simply be an attack on human dignity to deny any of the provisions or to refuse to enact all the provisions that we want to enact on health care and housing and free education and minimum wage. There is a powerful motivation to turn the things that you like, or the things that your crowd likes, into a right because it gives it a kind of power and a validity that can transcend domestic politics.
- 7.38 This takes us on to a classic objection, classic worry about human rights, and this is the problem of proliferation, or you might say, rights inflation. There's been a huge—as there has been in other currencies—massive inflation in rights claims and the list of what counts as a right since 1948. This is partly a measure of the success of rights-based discourse. Rights have been, broadly speaking, relatively well respected and relatively well enforced, and has had all sorts of—rights conventions have had all sorts of important downstream effects on the domestic legislative programs of particular countries.
- 7.39 More and more people have been trying to expand the list with more and more rights. I read a case a few years ago of somebody, I think in southwest England, alleging that he had a right to broadband. Even though he was stuck out in the middle of the countryside, it wasn't fair. It was cheapening his dignity. Out in the hills of Somerset, he couldn't have access to high-speed internet, but the people who lived in Bristol, just 20 minutes' drive down the road, could have Wi-Fi whenever they wanted. This was an affront to his dignity. He had a claim on the council to be provided with the internet, even if that meant digging up the ground for miles and miles with a special cable just to reach his house.
- 7.40 A right to paid leave. This is something that's going through the courts, a right to holiday. This has, I think, the effect of really cheapening rights discourse. Look, if anything can be a right, you've got right to life up there, right not to be tortured, right not to be put in prison, right not to be enslaved. Oh, and you've got your right to broadband as well. It seems there that it's not just inflation, but that you're expanding the scope of what counts as a right way beyond, to the point where it renders all rights useless.
- 7.41 Remember, the law needs to be respected. It needs to inspire a kind of confidence, a kind of respect, even if that respect falls short of actually liking the law. Very often we don't like the law, but we respect it, and the law has to be respected. There can't be secret laws. There can't be laws that are made up after the event, as we've already seen. There can't be laws that are obeyed by most people, but not by the people who

are supposed to implement them. Laws should be easy to understand on the whole, easily accessible, and so on and so forth. These are all of Fuller's moral principles behind what counts as a good law.

- 7.42 The question arises, okay, if there are natural rights, what is it that converts them into legal rights? What is it that brings them into the domain or the province of jurisprudence, as Austin referred to it in his 1832 book? Within the English-speaking traditions of law, the traditional view is, yes, human beings are endowed with natural rights, and you have those rights just by virtue of being human. This is very much a sort of natural law approach. They're universal, you can discover them by reason, and they're self-evident.
- 7.43 And of course, famously, in the American Declaration of Independence, 1776. How does it go? "We hold these truths to be self-evident." They're just clear. Any human being can just apprehend them. Don't need a degree course. You don't even need to do a course in philosophy of law at the Peterson Academy. You can just simply see that these truths are self-evident. One of the truths, "that all men are created equal, that they are endowed by their Creator" —capital C—"with certain unalienable rights, that among these rights are life, liberty, and the pursuit of happiness. That to secure these rights, governments are instituted among men."
- 7.44 "That to secure these rights, governments are instituted among men." What does that mean? A right is not the gift of the government. Rights are upstream of the lawmakers, the policymakers, the judges. This is the understanding of the preamble to the Declaration of Independence, and that is completely consistent with the philosophy of law that they were drawing on, the philosophy of the English common law.
- 7.45 William Blackstone, Sir William Blackstone—we haven't talked about him enough, really, but he's one of the great founders and codifiers of the common law, and he's very clear on this. Governments exist to protect certain rights. Life, liberty, property, says Blackstone. Seeing this, this is founded on nature, and it's founded on reason. They can't be abolished, says Blackstone.
- 7.46 You see this same rationale in the Magna Carta. If you read the Magna Carta, it's clear that the people writing the document do not think that the document is creating rights that it's then conferring on all the king's subjects and indeed the king. The whole language, the whole argument, and the way in which the Magna Carta is written makes it very clear that this is a process of discovery and recognition. It's a document that is discovering and recognizing a pre-existing moral universe, a pre-existing nexus of rights, and normative relationships between the monarch and his barons and the aristocracy and the people.
- 7.47 Judges don't invent rights; they don't confer rights on people. They find them and they declare them and they recognize them. That's very much in the tradition of natural law.

This is something that the law is trying to approximate as accurately as possible, as closely as possible, to the moral universe that exists no matter what.

- 7.48** We come next onto the question of grounding, justification. What is it deep down that makes a right a right? I think I mentioned in a previous lecture the witty response of the French Catholic philosopher Jacques Maritain when asked, "How did you come to agree around what justifies a right, what a right actually is? Have you managed it? Have you finished? And then how did you decide why a right is a right?" And Maritain's famous response is, "Yes, we've worked out the list of rights for the [Universal] Declaration of Human Rights, and we've worked it all out, provided nobody asks us why." Provided nobody asks us why.
- 7.49** The Achilles' heel of all rights-based frameworks, you might say, is this. There's a straight trade-off between universality and justification. The more universal you want these rights to be, the more you've got to shut up about the particular tradition you want to ground them in and justify them with. You can't appeal to the Christian tradition. You can't appeal to the Bahá'í tradition. You can't even appeal to, say, a Kantian tradition. It's like a secular tradition, because what about all the non-secular people and so on and so forth?
- 7.50** And so, you can see in the preamble to a lot of these international human rights documents, a studied vagueness and careful brevity right at the beginning, where effectively the whole point of the document is being explained. You see this in the [Universal] Declaration. You see it in the European Convention. If it's going to be as universal as possible, it's got to be the least contentious explanation possible. And so, you get this very vague language about the human family and how we're all brothers and sisters. Actually, already, that's a very Christian way of expressing moral relationships.
- 7.51** And self-evident—the dignity of human beings, it's so self-evident. In 1948, wouldn't it have been just so obvious that the dignity of human beings was evident to absolutely everybody? Probably not, I would have thought, given that the previous two decades had seen the worst, most industrial and mechanized slaughter of human beings in history. It does not seem at all evident that these truths are self-evident—the truths about human dignity are self-evident.
- 7.52** Could it be God? Could there be a theistic grounding to rights? Lots of debates about this among the theologians. Some of them are very much, yes, there are rights, but there can only be rights if they're grounded in God. Others take the view that, yes, God exists, but rights don't. We don't need to just invoke God to ground nonexistent things, or things that actually lead to moral judgments that are probably in tension with other parts of our moral theology.
- 7.53** But a theistic grounding to rights is never going to cut it because of the political demands of creating rights-based discourses. It was never going to work because you

could—it could never have commanded support in those countries where theism had been on the wane for many years. There needs to be widespread acceptance of the normative force of rights claims, and you're not going to get that widespread acceptance if, the thinking goes, if you ground it explicitly—ground rights explicitly—in one particular tradition, in one particular confessional tradition.

- 7.54** It's worth pausing at this point and saying, if you look at some of the great papal encyclicals of the 20th century—so papal encyclicals are long essays that popes put out from time to time, sometimes lots and lots of them, sometimes very few. They don't have the status of Catholic teaching exactly, but they have a very powerful, persuasive moral power, you might say.
- 7.55** It's interesting, if you're reading some of these documents, as I have over the years, I'm struck by how naturally they talk about rights. Partly because they're able to—the encyclicals have got a very specific particular moral tradition, particular claims, particular assumptions that they can tie rights to, they can explain human dignity in virtue of, they can appeal to, to justify rights.
- 7.56** And so, some of the best discussions of what rights are, I think, are, paradoxically, you might think, found in intellectual traditions of moral philosophy that aren't driven by politics, aren't driven by this desire to be maximally acceptable to everyone. So there are theistic, theological attempts to ground rights, then there are secular ones, which appeal very often just to reason. This would be a Kantian approach, inspired by the German philosopher Immanuel Kant, 1724 to 1804.
- 7.57** Kant's view is that it's our reason, it's our capacity to be legislators for ourselves, that invests us with a dignity that must be protected and respected. It's that that gives us—that makes us, in Kant's words, an end and not a means. A person is an end. A person is where the buck stops, where the moral buck stops, at least. It's because we have reason, and it's reason that is our distinctive feature that confers rights upon us. Reason can help track and reveal what we need to flourish. This isn't a particularly controversial claim.
- 7.58** Aristotle, for example, says, yeah, it's our desire to understand, our fascination for the world, our curiosity about the world. This is distinctive. It's unique. We're the only members of the animal kingdom who would listen to a series of lectures on the philosophy of law. This is unusual behavior for the animal kingdom. And so, says Kant, this is what's distinctive about us, that we've got reason. And it's not just—well, it's not just arbitrary. You could say that dolphins have got amazing flippers. We haven't got flippers. Why not? Why not ground rights in flippers?
- 7.59** And Kant says, well, the reason you won't—he doesn't actually talk about dolphins and flippers, but the way he would answer that would be to say that, no, there's an intrinsic connection between our powers to understand the world and to reason about the world, and moral flourishing and moral judgments. For Kant, an extremely tight

connection. Moral judgments just are rational judgments and only rational judgments. Kant's very clear: you can't have any non-rational ingredient in any moral judgment.

- 7.60** If you're watching an advert maybe on YouTube, you're moved by the plight of some poor kid in sub-Saharan Africa, you decide to cut a check and send it off to the charity—Kant says you've acted immorally. You've not acted morally. This is a poor moral judgment. Why? Because you did it for the wrong reasons. You didn't do it for any reason at all. You did it from non-reason, from feelings, sentiments. Feelings and sentiments pollute. They get in the way of reason. And reason must apply itself to what one's duty is in any given situation, purely; it must be pure practical reason.
- 7.61** Maybe this is the right way to think about rights. We are rational beings, and therefore we are rights bearers. That's what requires everybody else to treat us with respect, as freighted with dignity; it's that we have reason. We have, as it were, the toolkit to be good people, to be moral agents, to be good moral agents. Now, in some ways, this is more attractive. It doesn't trigger arguments about whether God exists, if God exists, which God exists. It's less controversial to say that human beings tend to have reason. They can reason their way through the world. It's a feature of human beings. And so, we should go with that.
- 7.62** There are problems in invoking reason as the criterion for rights bearing. What are we really talking about when we're talking about reason? There are clearly degrees of rational capacity in any given human being, in one and the same human being, from cradle to grave. There are people who are—who have no reason at all, who may be in a persistent vegetative state, who may be asleep. They might just be asleep. They decided they're not going to be reasoning at 3 a.m.
- 7.63** What is the relationship between reason and the dignity that confers rights, if it's something that comes in degrees, is dispersed to different degrees around different people, across human beings? We're looking for something like a binary property. Either you are a rights bearer or you're not. It seems like that's the kind of question we're asking. It's more like, are you pregnant or are you not? There isn't, "Well, a little bit." That's the wrong kind of answer.
- 7.64** Whereas with reason, you say, "Are you rational?" "Well, I have my good days and my bad days. Sometimes I act irrationally, sometimes I act rationally, and sometimes I'm not reasoning at all because I'm asleep, or maybe I've had too much to drink, or whatever it might be." It feels more like a scalar property, rationality, having rationality. It feels more scalar than binary. Nevertheless, it's got certain attractions, and it's probably the preferred view of most philosophers who want to ground rights in something other than spooky theology.
- 7.65** Just to close, what are some of the problems that we've— some of the criticisms that we could level at rights-based approaches? I've seen some of the problems around—we've looked at some of the problems around justification, around scoping, around

grounding, etc., etc., around definition. But there have been a lot of other forceful criticisms leveled over the centuries, since the end of the 18th century.

7.66 Most famously, Jeremy Bentham, the father of utilitarianism. "Natural rights is simply nonsense"—simple nonsense—"natural and imprescriptible rights, rhetorical nonsense, nonsense upon stilts." That's what rights are for Bentham, nonsense upon stilts. What's his reason for thinking that? Well, he's got lots of reasons. The main one actually flatly contradicts the preamble to the Declaration of Independence.

7.67 His central argument as to why rights are nonsense, natural rights are nonsense, is that there are no rights upstream of a government and a legal framework and courts to recognize these rights, to uphold them, to enforce breaches of those rights. It's not the case that governments were instituted among men to uphold these rights. It's more that the rights exist, not because they're self-evident, but because governments have been instituted among men. It's only once governments have been instituted among men that you can have any of the mechanisms and the infrastructure that can make sense of somebody having a right. There's no rights before law, no rights before government, or without government, says Bentham.

7.68 He's also, as a classic empiricist in the British school, just skeptical of continental European-sounding metaphysical speculations. These nonexistent fictions that float around, all these invisible immaterial rights that are floating around every individual—this sounds like something Kant or Descartes would come up with, and this is not how we do things in England. If you can't see it, you can't taste it, you can't touch it, then maybe it does exist, but we don't really care if it does. We want some good John Bull, good direct sense experience as a criterion for existence. These are just obscure entities. This is just obscure philosophizing and theorizing.

7.69 Natural rights, if you dig deep, really natural, it turns out, means just what I think is important or what my tradition thinks is important. We've seen in other lectures, in other series, Philosophy of Religion and Philosophy of Science lecture series, just how contested "nature" is as a term. The difference between what nature means in 1600 in Europe and 1800 in Europe is wild. It's very divergent indeed. By the 1800s, the notion of nature is much more reduced and much more tied to what science tells us is true about physical reality. That would have been a very strange view in 1600. It's constantly shifting.

7.70 There isn't—this complaint of Bentham—there isn't some sort of stable, fixed Platonic essence that is what counts as natural. Bentham also says that the rights discourse leads to a sort of anarchy. Certainly, the anarchy of the French Revolution, obviously, but all of these rights that have been created, the *Déclaration des droits de l'homme*, the Declaration on the Rights of Man, but no declaration on the duties of man.

7.71 All these first serious rights document, 1789, and within five years, the streets of Paris are not rejoicing in a new spirit of liberty, fraternity, and equality, exactly. There's a

measure of equality among the people who haven't been guillotined. Not much brotherly love and not much liberty. It's "liberty or death"; it's the great phrase of the French Revolution. So Bentham's point is that this is a—rights are a recipe for conflict, not resolution, not civic harmony.

- 7.72** I think that's probably a plausible criticism to make of the way in which rights claims have been working their ways through the courts in the West at the moment, certainly in recent decades. Effectively, judges are regularly placed in impossible positions of having to decide which is more important, this person's right to life, this person's freedom from discrimination, this person's freedom to say what they want, even if it seems to be discriminating against the other person. It's lawful speech at one level; maybe it's unlawful at another.
- 7.73** How do we rank these different rights? There's no ranking principle. There's no rationale as to what should be more important and what shouldn't. How do you resolve these clashes? The answer is, it's not—nobody knows. Nobody knows. I mean, even if we can agree what the rights are, we don't know—there's certainly not any agreement about the order of preference, the order of importance. I mean, hopefully you'd want to put the right to life above the right to broadband, not least because you can't have one of them without the other.
- 7.74** There's no point worrying about the right to broadband if you're about to be executed. Maybe this person just decided he couldn't live without broadband, and it would be the end of his life if he couldn't have access to broadband, but it seems unlikely. There is intuitively some kind of way, some sort of ranking principle, but it's a recipe for disagreement and conflict in the court and between judges and between different legal systems.
- 7.75** Because remember, these are international claims. A rights claim is, by definition, a human right, say—it's not a right I have as a Brit. It's not a right I have as an American. This is a right that just appeals to me because I'm a human being, because I'm a member of the species I'm a member of. It's there no matter what. It has a transnational power. I can say to the Malaysian government, "Respect my human rights." I can say to the Chinese government, "You've got to respect my human rights."
- 7.76** Heads of state are constantly flying to China, telling China it's got to improve on its human rights. They're sort of, "What's human rights? What are you talking about?" As we'll see in the next lecture, that's a legitimate question. "What do you mean? There are these things, there are these claims that all human beings can make on the Chinese Communist Party, and we have to respond to them? This is laughable. What are you talking about? We're not going to recognize any laws, really, beyond the ones we absolutely have to, to stay in the World Trade Organization, that lie beyond our jurisdiction and our territory." We'll discuss that in more detail in the next lecture.

- 7.77** So these are some of the criticisms, the difficulty of ranking, the fact that rights claims can often be a recipe for conflict, and that they can disproportionately elevate the individual against the collective. The worry is that individual citizens obviously should be treated with respect, as having dignity and certainly rights conferred on them by their domestic constitutional setups. But individual citizens shouldn't really, and only in very, very rare circumstances, be able to take their country to court, their own government to court.
- 7.78** This is a very drastic kind of action and should only happen extremely rarely. But it's not. It's happening dozens of times a day, in courtrooms all around the world— courts that are administered by judges, very often judges who may never have been to the country in question, let alone know anything really about the laws of that country. They might not even speak your language. They might not even produce their judgment in a language you can understand; we'd need translators and so on and so forth.
- 7.79** So this is a very strange space that has opened up in the last 70 years, to try and create this system without a center, if you like, a law without a sovereign, laws without any mechanisms for enforcement, and that rest on this claim, very speculative claim, that there are these rights that all human beings have in virtue of being human beings, that they trump the rights that they have, that their governments might have over them as citizens, or that they might have against their governments as being Frenchmen or Americans or Poles or Germans and so on.
- 7.80** And so, this is where we're going to head next, trying to explore this space of international law, laws that can govern and can guide the behavior, the conduct, of other legal systems that hover across them. This presents headaches similar to the ones that we've come across already with rights. But hopefully, you've got a sense of what's wrong with rights, what's right with rights, and either way, a better understanding of what rights are, what they might be, and what their importance is in moral and political discourse today.
- 7.81** Thank you for listening.

Lecture 8: International Law

At a glance — International law, the final lecture.

- 8.1** Welcome to the eighth and final lecture of this lecture series, Philosophy of Law. As we come into the home straits, we're going to be focusing on the problem of international law. That is to say, the problem that law begins to pose once we expand it as far and wide as it can go, to everyone, to all human beings. We began to think about this, obviously, in the context of human rights law, specifically in the previous lecture.
- 8.2** But there's something about international law that is puzzling, slightly troubling. What troubles me about it, certainly, is that there seems to be a mismatch between the dominance that international law has over national law, over sovereign governments. There seems to be almost a reflexive understanding that international law is higher than domestic law. I think that's the intuition that many would feel.
- 8.3** And yet, on the other hand, we have found it very, very difficult— philosophers of law have found it very, very difficult—to understand how international law meets the criteria of what a law is, which, as we've already seen in previous lectures, is already very contested. But it becomes especially difficult when we're trying to make sense of international law. And yet—and this is why it's troubling— and yet, international law has a range, a scope, and an authority, you might say, that sometimes, that often seems to come above, to supersede, domestic laws, non-international laws, national laws.
- 8.4** The first puzzle, and I've referred to this already, is that it's not clear what backs international law, who is actually the sovereign of the world, who has the authority to enforce international law over all nations. We don't have a world sovereign—not yet, anyway. So what kind of mechanism can we have that could do the job that sovereigns do, sovereign authorities do, when backing domestic laws? States invoke international law. Courts adjudicate over international law.
- 8.5** The prime minister of the United Kingdom has even ensured that a sentence be added to the ministerial code that ministers of the Crown shall always have due regard to international law, so a kind of language of respect for international law, which is deeply puzzling. It's deeply puzzling who is enforcing this, who is behind this international law, what gives it not just authority, but a very special kind of authority, an authority that can overrule and override the authority that a people has given to its government and to its courts.
- 8.6** So, is international law really law, I suppose, is the question. I should add that the heterodoxy that I show towards international law and to human rights is uncommon in most law faculties across the West. I'm not professionally in a faculty of law, but if I were, I wouldn't be for very long, with my skepticism about international law and

skepticism about human rights law. These are actually the jewels in the crown of contemporary law studies.

- 8.7** Every kid who wants to be a lawyer—actually, every kid wants to be a human rights lawyer. Many undergraduates have passed through my lecture halls over the years, insisting they want to be a human rights lawyer, and I've done my very best to dissuade them. Sometimes it's worked, sometimes it hasn't. But again, there's this puzzle. The very two areas of law that are most conceptually confused and most recent—international law, at least at the scale that we see at the moment, and human rights law—really came to the fore in the 1950s. That's as far back as they go.
- 8.8** We'll be thinking about this question a little bit more. There's the worry about the absence of a sovereign, of a commander, enforcing and issuing international law. There are worries about sanctions and enforcement. Well, first of all, you can't put a country in prison. What can you do? Well, the only thing you can do to a company is just fine it. You can keep fining it, or maybe you can threaten its officers with imprisonment if the behavior keeps going, but it's very complicated. So it's not clear what sanctions are, what enforcement looks like.
- 8.9** It's very unlikely that there will be a kind of even response to the laws. If you don't care about, if you don't think they can be enforced, and you think, "Well, I'm just not going to pay the—we're not going to pay the fine," what are they going to do? Take us to court? Which court? It just doesn't matter very much. And so, it's straightforward for nations that don't want to obey international law, just simply to ignore it. Just to ignore it.
- 8.10** So, not only does there seem to be no sovereign backing international law, not only does there not seem to be any enforceability or sanctions, it doesn't seem to create any kind of obligation, because states simply comply when they want to. They can comply when convenient, selectively. And look at the response to China when it's confronted with evidence of human rights abuses.
- 8.11** Look at the indifference that most statesmen and lawyers have towards the fact that the Kosovo War in 1999 was basically illegal. It just had no authorization. There were no real debates about it. Under international law, it did not have the backing of international law. Most people don't seem to mind. It was a good war. The Iraq War—a lot of debates about its legality and obsessive debates about its legality, and it's a bad war, so it actually doesn't really matter if it was legal or not. It was still a bad war.
- 8.12** So, it just seems to be, international law is invoked selectively. Or Crimea, when Putin invades Crimea in 2014. You can't get more of a breach of international law than invading a sovereign country, or just invading another country, just annexing a chunk of land. What's international law for, if it doesn't say to countries, "You can't do that"? Well, you can't do that, it turns out. It is a breach of multiple international laws to invade a sovereign territory.

- 8.13** Did it matter? Did Putin not realize that he would be breaking all these international law protocols? Was he not quaking in his boots at what the courts of the United Nations would do to him and his tanks and nuclear weapons because he breached Article X of Convention Y? Obviously not. He probably didn't give it a moment's thought, and it didn't matter. It had zero practical impact on the situation in Crimea, and subsequently, none at all. This problem around, does it create an obligation, enforceability, and authority?
- 8.14** So what are the responses? What would the defenders of international law say in response? Well, they might point out that, in the past, we have had systems of law that don't really have strong enforcement, but still function very much as laws. Medieval law, for example, didn't have strong enforcement. There wasn't a police force. Certainly in England, at least, there wasn't a standing army. It relied on these justices of the peace, JPs, going around from town to town, trying to do as many trials as possible and fix things up and so on. You might put somebody, a criminal, in the stocks, but this was rough justice. But the laws were there and they sort of functioned. The law, broadly speaking, functioned.
- 8.15** They might also say, look, the fact that international laws are repeatedly violated with no apparent consequences, it's not great, but the same thing happens with domestic law all the time. Domestic law is violated and breached all the time. Sometimes it's followed up on, and there's a proper enforcement, and proper sanctions are applied, but often not. It's just a question of degree. It just means international law needs better enforcement mechanisms.
- 8.16** They will add, international law doesn't need enforcement mechanisms in the way that domestic law needs enforcement mechanisms, because there's something else happening at the level of international relations, which is different from what happens on the ground in domestic jurisdictions. We're talking about mainly relations between nations, and diplomacy kicks in, and there's all sorts of other factors that kick in—reciprocity, mutual benefit, reputation, your country's reputational standing in the world.
- 8.17** And there are other mechanisms. There are courts. They try to apply sanctions. Treaty compliance is generally pretty high. Most countries don't break treaties if they can possibly avoid it. They don't breach international law. They don't at least admit to breaching international law. They say there must be some confusion, so there is some kind of pressure that exists just in the hall of nations, as it were, where you want to be treated with respect, and you want your reputation to be as untarnished as possible. And repeatedly breaking international law, invading other countries, abusing your own citizens—it's not a good look, and that matters. That will count.
- 8.18** So, defenders of international law will say, look, this is a kind of compliance mechanism, naming and shaming. Yes, we can't put the CCP into prison, but we can shame them. We can get at their honor. We can leverage their sense of honor.

- 8.19** So, one way to think about it at that level is the way Hart asks us to think about domestic law. We can simply say, look, if you're in the United Nations building in New York or you're in the International Criminal Court in The Hague, the way that lawyers and politicians talk about international law is something like the way we talk about domestic law. It's that internal point of view that Hart talks about. No, it's not just the external point of view. If I run the red light, this happens; if I don't run the red light, that happens. This is what the law says.
- 8.20** No, that's actually not how we experience law. We experience it by saying, no, I'm at the traffic light. It's red. I mustn't go. I see the rule, and I'm in this system of rules and laws and procedures. You might think, well, what would happen if I did jump the light, but more to the point, you're, as it were, held by the obliging force, the commanding force, of the rule. Hart says it's probably something similar like that is happening at the level of international relations, for the most part. No doubt, there are some countries that don't care in the slightest.
- 8.21** The trouble, says Hart, is that—going back to Hart's view, do you remember from two lectures ago, about how there are primary rules? Pay your taxes, don't murder people, etc. Those are rules. Those are primary rule laws. But then there are these secondary rules which relate to how the laws should be passed, amended, repealed, enforced. These involve moral principles. The three principles that he pushes hard on are the rule of recognition, the rule of change, and the rule of adjudication.
- 8.22** So, the rule of recognition—what are we recognizing in international law? Well, there's a problem. There's all of these, hundreds of different treaties. There's no treaty of treaties. There's no book that says, this is all of international law. These are all the different treaties. These are all the different agreements. These are the Geneva Conventions and the Hague Conventions, and so on and so forth. This is what they all say. This is the official text. This is the official text. Any variation on the text is to be ignored, very important to get the text right, obviously, when you're having to interpret it and when so much hinges on interpreting the language. This is what happens if you want to change this treaty and you want to amend this treaty or repeal that treaty and so on.
- 8.23** It's just not the way it works. There's nothing to recognize. There's no single source of —there's no book, there's no code, there's no constitution, there's no world president or world king. It's not clear how you change international law, because what parliament do you send it to? Everything's decentralized.
- 8.24** The rule of adjudication, Hart says, how you apply, how you make sure that the rules are overseen and enforced. Well, yes, there are courts. There's the ICC, the International Criminal Court. There's the ICJ, the International Court of Justice. There's the European Court of Human Rights in Strasbourg. There's the European Court of Justice in Luxembourg. But their jurisdiction is limited. They're not always taken terribly seriously.

- 8.25** And so, all three of Hart's secondary rules are hard to apply to international law. So, what Hart concludes is that, well, international law, yes, it's a kind of law, but it's underdeveloped. It's a little bit like early domestic legal systems. It's evolving, but it doesn't have the clarity or the systematizing, unifying character that existing, contemporary, domestic bodies of law have.
- 8.26** We could look now at some of the sources of international law. What are we talking about when we're talking about international law? Yes, treaties, agreements between states. States have to consent to the treaty, obviously. There is this Latin motto, *pacta sunt servanda*, *pacta sunt servanda*—which simply means "treaties must be observed to the extent possible." *Pacta sunt servanda*. Who says they must be? Just the Latin. There's a gerundive of obligation in there. Must be. Must be observed. Who came up with this idea? Nobody knows. Who will enforce it? No one. But it's just this really good idea, and hey, it's in Latin, so it must be true.
- 8.27** There are treaties, there are conventions, there's what you might call customary international law, things like diplomatic immunity. Your diplomats will be immune from prosecution in the country that they are based. Is there some law about it? Well, I think there's some guidance, there's some, a few codes to it. But broadly speaking, this is just a practice that has existed for many centuries that characterizes most bilateral relationships between states, even states that can't stand each other.
- 8.28** There is just this convention that has crystallized into what you might call a law or customary practice. You can call that law. It's a kind of international law. Customs can be international laws, I suppose, because just as it doesn't matter if you breach customs that fall short of law in your own country, it doesn't really matter if you breach international laws, really. They have the kind of force, the enforceability of customs in the domestic scenario, domestic context.
- 8.29** Another might be freedom of the high seas, so beyond the 12-mile line that is contiguous with your territory, if you're on the sea, on the edge of the sea, you should have free unfettered access to travel the high seas. No nation owns any part of the ocean beyond that which is a 12-mile zone contiguous around your landmass, that is contiguous with the sea. So these are just customs.
- 8.30** There are also certain rights that have emerged or certain principles that have emerged, which we've touched on already. These are norms that are described with the phrase, *jus cogens*, *jus cogens*. A right that *cogens*—compels, forces you. This is a relatively short list, but the view here is that there are some rights, there are some principles that simply can't be—you can't opt out of them, they can't be changed by any legal system: genocide, torture, slavery, unprovoked aggression.
- 8.31** These are just norms that no countries can overrule, can say, we're going to do a treaty that says, "The Geneva Convention does not apply to us, and we can torture each other's citizens," or this would just simply be not valid, or not understood to be valid as

international law. But again, the question is, well, who came up with these jus cogens? Who came up, who decides on which norms are inviolable by any treaty? It's not clear. There's no source of authority to determine it. There's no parliament, there's no king, there's no president, there's no council. These are some of the challenges that come with this commitment to international law.

- 8.32** We've already discussed human rights to some extent, but it's worth just coming back to the problem of rights in the context of international law. The various declarations on human rights are, really, you might say they're statements, they're descriptions of what human dignity is taken to consist in.
- 8.33** The [Universal] Declaration of Human Rights in '48 didn't have the force of law. It was just a convention. It was just an agreed document. It wasn't binding on anybody. Indeed now, the force of the declaration is still not quite at the level of direct law. It's more that, because it's been treated as this important treasure chest of human rights—probably the most important we have at the moment—observing, complying in the spirit of the declaration, has acquired the force of customary law, a little bit like diplomatic immunity has acquired the force of customary law.
- 8.34** Rights bring in special problems, as we looked at last time. What I didn't mention in the last lecture that is particularly relevant to this lecture is Ronald Dworkin, the famous American philosopher of law's idea that rights are trumps. Having a right is like having a trump card, an ace, or a card that beats all other suits. It doesn't matter if the other card has very high value. Trump will always beat it. Dworkin's view is that rights are like this, relative to the collective rights, the other cards that are held by your nation or your government. No matter how powerful a move your government can make against you, in certain conditions, certain very important conditions, you can play your trump card.
- 8.35** My government locks me up without charge for whatever it is, longer than 48 hours, longer than 24 hours. I can say, "You've breached my [Article 5] rights. I'm taking His Majesty to court. I'm taking His Majesty's government, I should say, taking His Majesty's government to court for doing this. I'm taking the Crown Prosecution Service. I'm taking the police to court. I'm suing the police and I'm taking it all the way. If the local court and the domestic courts don't help, then I'll go all the way to Strasbourg, and I'll get some foreign judges to help me out, help me play my trump card effectively against my government."
- 8.36** This is quite an attractive way of thinking about rights from Dworkin's view. Now, there are obviously problems with it. Maybe from a utilitarian point of view, we could say, look, the governments are focusing on trying to maximize the welfare of the many. Yes, there's always going to be some irritating citizen who doesn't want to go along with the plan, and he's saying we're breaching his rights. But who cares about his rights when all of this improvement in the welfare system will happen to so many others, and so on and so forth?

- 8.37** There are worries about the destabilizing effects of not just lawsuits made under rights claims, but just the threat of lawsuits made under rights claims, especially when the list of rights is getting longer and longer and more and more trivial. It becomes a very real problem for government lawyers.
- 8.38** When we move from the civil sphere to the criminal sphere, so there are international civil courts to sort out contracts, trade, environmental regulations, etc., but then there's also actual crimes. Does the planet have a kind of criminal law? Is there a criminal law that applies to the whole world? This has taken a while to develop. We've got the Genocide Convention, passed in 1948. You had certain tribunals in Yugoslavia, in Rwanda, in the '90s after the civil wars there.
- 8.39** There's the International Criminal Court set up in 2002, which has been—it's a permanent court. It's in The Hague. It's supposed to be targeting crimes against humanity, genocide, war crimes, aggression, and so on. Awkwardly, but for reasons one might understand, the United States, Russia, and China are not, have refused the jurisdiction of the International Court. They're just not parties.
- 8.40** It turns out, it's been pretty useless. I mean, it's had over 20 years now to secure some big convictions. You could probably count on one hand the number of serious war criminals that have been successfully prosecuted in that court, a court that's very expensive to run. There's a lot of bureaucracy, a lot of administration. And human rights lawyers, it turns out, don't come cheap, like every other lawyer.
- 8.41** The question is, it sounds great. It's amazing to have a court that's in a country like the Netherlands that nobody's going to get too worried about—sort of quite a happily, plausibly neutral country. The court is there. We've got some of the best legal minds in the world, best prosecutors, best judges. But nobody wants to join, or a lot of the important people don't want to join. China doesn't want to join, Russia is not going to join, and the United States is not going to join.
- 8.42** We'd like to summon Putin to be tried in The Hague because of what he did in Crimea in 2014, in Ukraine in 2022. But he's not signed the document allowing us to drag him into court and put him in prison for decades. He just didn't sign it—and nothing we can do. It turns out, he doesn't want to be tried in The Hague. You see the problem, that it relies on consent and compliance and observance to a degree that is just completely implausible for any law. Of course, it's a very politicized process and very complex process to actually deliver in a transparent and credible way.
- 8.43** So, just a summary of my heterodox criticisms of international law, my unfashionable criticisms of international law. If you can't enforce a law, then it's not a law. It's not that enforceability is the only characteristic of a law, but it's a very plausible one. It's very plausible. The law brings with it consequences, shall we say. Not every law, but most laws will stipulate sanctions. This is what's going to happen if you don't do it.

- 8.44 Even the laws that don't expressly command or attach sanctions to an outcome, like, "There shall be two witnesses for this will," it does have consequences. Namely, are you going to get Granny's furniture or not? The law will have an effect on whether you get Granny's furniture or not. Even though it's not a formal sanction, it is describing what's going to happen.
- 8.45 The trouble with international law is, well, what happens if I just ignore international law? Well, what's going to happen? Well, you might get a fine, or a fine will be issued, a fine notice will be issued. Do I have to pay it? No. Will the sum ever amount to anything more than 0.000001% of my country's GDP? Almost certainly not. I can pay it if I want. I can just keep paying it. I can keep invading countries, and I'll just keep paying the fine. If I'm wealthy enough, I can park anywhere I want in London. I just pay the fine every time and just make sure I don't get towed away.
- 8.46 And so, this is a debilitating feature, I think, of international law. Until there is a global policeman, a global court, global judges, a global sovereign of some kind, then all the ingredients that we would want to see in a law are just not going to be in international law. There are worries, too, about weak states being easier targets for international tribunals than strong states. I mean, in the case of the ICC, it can't address problems coming from the United States or Russia or China or India.
- 8.47 But then there are plenty of international war criminals, they think, in sub-Saharan Africa. So there's this guy in Liberia, Charles Taylor, that they pursued for a long time. I can't remember, actually. I think maybe he was a successful—in the end, they managed to convict him. Okay, not a bad thing. Certainly, if Charles Taylor was doing the things that he was alleged to have done, that's great. They got him in the end, after many years. It's great that Liberia— if anyone can put that on the map—has not got a figure like Charles Taylor around, and that the people of Liberia can now flourish.
- 8.48 But you're not getting any eye-catching interventions by international law. Nobody at any point has suggested Putin is going to end up in an international court. Arrest warrants—much was made about issuing arrest warrants for the prime minister of Israel, Benjamin Netanyahu, after some claims about the conduct of the IDF in the war in Gaza, after October 7. This is a mild inconvenience for Netanyahu. Maybe there's certain countries, Britain, for example, he probably shouldn't set foot in. It would be possible—wouldn't put it past the British government—trying to arrest a leading world statesman. But it's an inconvenience. It's not something I suspect the prime minister of Israel is losing much sleep over.
- 8.49 The central concern, probably, I think, with international law comes down, really, to questions of national self-determination and sovereignty. The right to self-determination of a people—that a people has as a people—is very powerful. It is one of those most basic rights that can apply to a collective. If you want to define yourself as a particular group in the world, you can do that.

- 8.50** There's been a lot of debate in recent months about whether or not Palestine, the geographic area of Palestine, or the Palestinian political structures, should be recognized as a state. It turns out that, actually, you can't recognize a state. States don't exist in virtue of other states recognizing them. States exist, or rather, states recognize states as existing, because they exist. And so, there's the [Montevideo Convention], which lays out the different criteria that a people-group must satisfy to be a state. Once they satisfy those, they are a state, even if nobody recognizes them as a state. This gives expression to this idea that a people have a right to say who they are, to determine themselves as a group, as a people.
- 8.51** The idea of sovereignty and the sovereignty of a people of a nation state is one that runs very deep. The problem with international law is then an obvious one. How can a sovereign nation state surrender large swaths of its law, or subordinate large swaths of its law, to an international court, to a foreign court, especially over issues which are absolutely basic to the obligations of any government?
- 8.52** Around the human rights debates, obviously, a lot has turned around on the question of immigration and porous borders. Whatever side of that debate you stand, nobody's going to dispute that it's the most basic obligation of any state, part of the deal that every state has with its citizens is that we, the state, will have a monopoly on violence, a monopoly on coercion, and in return, we protect you.
- 8.53** We protect you. We protect the borders. We fund the police; we will make sure the police are properly run. We'll make sure the army is properly run. We make sure that the borders are properly protected. Whether you're on the extreme left, center left, center right, extreme right, this is a totally uncontroversial idea about what the most basic duty of a state is to do, to make sure no other state kills you, or nobody else kills you, or comes in and disrupts your way of life. That's the deal.
- 8.54** The problem that we have when borders are dissolved, or de facto dissolved, by appealing to documents that confer rights on individuals to be treated with dignity, but where being treated with dignity includes being given all sorts of rights that you might think would not actually be rights, there you get to a serious sovereignty problem, where you have effectively domestic courts and domestic governments being told what to do by judges in a foreign court who themselves are foreign, who are not part of the democratic ecosystem of the country in question.
- 8.55** This leads to a basic problem of democratic accountability, the idea that power is vested by the people in the legislature, in the executive, and in the judiciary. The deal is that that power is lent to these people, lent to these mechanisms, lent to this infrastructure, on the condition that it's wielded properly, and on the condition that the people are responsive to, can determine whether or not it has been wielded properly. International law dissolves all of that. It raises law over and above ordinary democratic processes. Effectively, you're getting unelected, and often unelectable, people in

international bodies all around the world, who are effectively overriding and massively constraining democratic decision-making.

- 8.56** We see this particularly in the debates around climate change. The Paris Agreement struck, I think, back in, [2015] committed various countries to, if it were followed through, something like fiscal suicide, I mean, something like complete immiseration, just a complete dissolution of the tax base, just to meet the costs of achieving what this binding international treaty requires of its signatories, except for India and China, who are allowed to start in 2030, allowed to start the countdown in 2030.
- 8.57** What we're going to see almost certainly is that the unrealistic targets that have been brought in by that treaty will not be met by any country, almost certainly. They're so pie-in-the-sky, they're so unrealistic, it's just not going to happen. They'll have to change the dates or they'll have to abandon it. The point is, this treaty, this agreement, has the status of holy writ in Davos and in The Economist, in the editorial boardrooms of The New York Times. It's just a completely impossible—it's a completely impossible treaty. It will never be honored. It can't be honored. It's asking for the impossible.
- 8.58** Trust, confidence in international law will be weakened again. There's another treaty that nobody's really bothered about. This is a conceptual problem at the heart of international law. It's not as if these problems can be fixed easily, because for international law to be international law, it just is for it to be over and above nations, and over and above whatever government, whatever political arrangement is in place in those nations. It's not clear what the fix would be.
- 8.59** You'd have to—well, one fix that Britain tried was to say, well, we'll make the European Convention direct law in Britain, with the Human Rights Act 1998. And so, we'll just import this huge constitutional document into English law. Where there are clashes with existing law or what the governments want to do, then we go back to Strasbourg and we ask the foreign judges to resolve the issue, to say whether our government has been a good government or not, or whether it's complied with, whether the laws that Parliament has passed comply with the shopping list of rights that was drafted in 1950.
- 8.60** In the courts of Strasbourg, the phrase is, the European Convention is not just a fixed document in 1950, it's a "living instrument." It's a living instrument that is responsive to the needs of the times—and we should add, the ideological whims of the judges, because seeing it as this living document, this weasel phrase, has meant that some judges and some courts have drastically expanded what a right includes, what particular rights include.
- 8.61** Article 8, particularly, Article 8 of the European Convention, which is a right to a family life— quite extraordinary what's being folded into that right, to just an ordinary domestic family life. It was a very sort of bland, general right, but almost, it is extraordinary how many things, how many sub-rights, are being folded into Article 8 by clever lawyers and are being accepted by compliant judges.

- 8.62** So, all sorts of problems to consider. Conceptual incoherence and the bluntness of the universal applicability of international law is a problem. Much better, probably, for countries to sort problems out, issues out, between themselves. But it will carry on as a system. It will keep developing. It will get even more complex, even more unenforceable, because it is a mentality that is—the commitment to international law, and indeed, you might say, the sacralizing, sanctifying of international law is somehow greater than any ordinary national-level law could be, is real.
- 8.63** This is an item of faith, you might say, within the international legal community, that really, all nations should subordinate their legal systems to international law. There's a kind of utopian quality to a lot of this thinking. You see it in some very influential people, too, including the current British prime minister himself, a former international human rights lawyer.
- 8.64** There is no judgment of any court anywhere in the world affecting Britain, directly or tangentially, that our dear leader has not immediately taken and tried to make the British government comply with, even if it means surrendering our own territory on the basis of an international court judgment that itself said it was not binding on Britain. It's binding on our prime minister, it seems.
- 8.65** There are some reflections on international law—what it is, how to pin it down, what its sources are, what the problems are, and what the objections are. We can still say, despite my objections, that it sort of functions. Most states accept international law as binding. It's okay as an awkward hurdle, rather than a brick wall, and that will prevent some of them, but it's not nothing, you might say. But it has transformed the world's legal landscape, you might say, just as human rights has transformed the legal landscape, moving from state-centric actors to just individuals in the case of human rights.
- 8.66** And in the case of international law, more generally, you've got a shift from state-centric ways of thinking about law to international, or rather transnational, domains for thinking about law. So as we come to the end of this lecture, and indeed this series, it might be worth just going back over what we've explored, what we've discovered, what we've teased out.
- 8.67** We began by thinking about this fundamental question, what exactly is law? It's not just rules, it's not just etiquette. A law is something that's real, that's binding, that's consequential. We then looked, in lecture two, at what it is for a law to have authority behind it. Is it just violence, the threat of violence, the threat of getting locked up if you don't pay your taxes? Well, sort of, but there was the gunman example. He's got a gun to your head, hand over your wallet.
- 8.68** And although we might be tempted to think of tax collectors as thieves and paying your taxes like being mugged—it does kind of feel like that—we do want to say that there is a principled difference somehow between the implicit threat of violence that the tax

collector has and the less implicit threat of violence that the government has when he's asking for your wallet.

8.69 So, it's probably not the threat of violence, although that might have some role to play. Enforceability might have some role to play in determining what a law is, or at least a workable law. It's probably not consent that gives delegated authority to law. Most of us don't consent to laws directly. We can't withhold our consent. Surely, to be free to consent to something is also to be free to cease to consent to it. Your participation in the thing you're consenting to is voluntary, is understood to be voluntary, on the basis that you've consented to it.

8.70 But if you stop, it ceases. I don't want this anymore. This is becoming very involuntary. I'm not granting my consent anymore. That's not going to work with the taxman. It's just not going to work. Sorry, I'm consenting to all the laws, except the British tax code, that those laws are just—I have a philosophical objection to the tax laws, but everything else I'll take. It can't be right. The consent theory doesn't ring true. There's got to be—you can't choose. You can't choose.

8.71 You didn't choose which country to be—you didn't choose which set of laws you'd be born into. I suppose you could emigrate. Which legal system do I prefer? You could say, well, that's a kind of consent. But most people don't do that. For the vast majority of people, that's not the case. It can't be an essential characteristic of what counts as conferring authority on law. Big debate as to, well, is it just morality? Is it morality, as it were codified? Possibly, but this was one of the big debates that came back again and again throughout the series.

8.72 We looked also at the question of rights. Are rights just "nonsense upon stilts," as Bentham believed? It's possible, but it would be extraordinary if they were, given the dominance of rights-based human rights discourse as the main grammar to give expression to what it is to have dignity as a human being. The whole world of human rights law has a mesmerizing effect on modern culture, on contemporary culture, that is completely out of proportion, as we've seen, to the coherence of what a right is, how it's enforced, whether it exists, and so on. It's a powerful concept, but it's a problematic and difficult one, too.

8.73 What have we learned? Well, we've learned that simple questions can be deceptively complex. Really, the only question we've been asking in the last eight lectures is just a three-letter question, what is law? It seems very simple. You might have thought before encountering these lectures, well, I would have thought they'd work that out. They worked that one out by now. It turns out that they haven't. There are enormous debates that—some reconciliation here and there, but the longer the debate goes on, the more positions open up in the debate.

8.74 It doesn't look like, as in all philosophy, you don't really make progress in the way that you make progress in, say, the sciences or in maths. We've got lots of different

competing theories. They can't all be right. Maybe they're all wrong. But some have strengths, particular strengths, over others. Natural law rings true with our intuition that the law can't just be anything, that it's got to somehow reflect goodness and justice and morality. There's something that rings true about that.

- 8.75** On the other hand, there's something that rings true about the positivist's claim that you can't just say a law never existed because you don't think it was moral. A law's a law. It doesn't matter if it's moral or not. If it's an immoral law, we should try and repeal it. We should get rid of it, but it's still a law. That's a plausible, that's quite a compelling position, but one that completely diverges from the natural law point of view.
- 8.76** So, despite the attempts to claim that the philosophy of law has a kind of objective quality to it, that it's almost like a science—this is Hans Kelsen's attempt in his *Pure Theory of Law*, in 1934. He says, look, we can, amidst all the turmoil that is ripping through Europe at the moment, here is an oasis of order and objectivity and precision and quantitative exactness. We can simply build up from our ground norm, our *Grundnorm*—we can just build up our legal system as a scientist would, as it were, build up a theory.
- 8.77** As with any attempts to turn a subject matter involving human beings into a science, that's probably going to be a failure. There is no science that can be objectively a science involving free rational human beings. If, as I believe, human beings are free and rational, you're not going to be able to predict what they do. You're not going to be able to come up with a science of human behavior. You might say, look, there are patterns. There are certain basic patterns of behavior across this species, given certain circumstances.
- 8.78** But it's impossible for there to be a science involving human beings. You can't have a science of the mind, because the mind is not a scientific object. You can't have a science—economics can't be fully a science, because patterns of consumption and buying and selling will never be understood fully by a scientist because they involve free decisions. And free decisions are decisions that are, by definition, not scientifically determined, that transcend science and so on and so forth.
- 8.79** So the solution to this has been to attach the adjective "social." This does wonders, actually. You attach it to justice, and then it gives you a super justice, social justice. You've got sciences. Well, we know economics isn't really quantum physics, but let's call it a social science. It's a social science. Economics is a social science. Sociology is a social science. Anthropology is a social science. Maybe law is a kind of social science. So, maybe there's certain criteria of objectivity and certain methodologies that we can apply that are a bit like a science, strive for a kind of objectivity and truth.
- 8.80** So, final thoughts. What is law? Well, it's not just a natural necessity. It's something that is created by human beings. It could be that it's something that's just invented

from scratch by human beings, as positivists would insist, or it could be something that's created by human beings in response to some deep intuition or intellectual conviction about what human flourishing is, and what rules should be in place to enable and ensure and preserve human flourishing.

8.81 Laws have been vital, indispensable, for the emergence of civilization, but they also, as we've discussed in the case of the Nuremberg Laws in 1935, they've also been a tool for horrendous oppression and tyranny. So, law is not, you might say, a sufficient condition for human flourishing, a sufficient condition for civilizational flourishing, but it's almost certainly a necessary one.

8.82 Laws can restrain tyrants. They can protect rights. They can often, usually, resolve disputes between citizens. They can provide a coordinating role in all of the countless complexities and processes and connections between citizens and the things that citizens do in a vast, complex society. Having a clear and widely understood set of rules enormously facilitates those kinds of everyday interactions that we don't even need to think about.

8.83 When we're driving from home to the coffee shop, we're not thinking about the inconceivably many rules and principles and protocols and codes and laws that are in place that allow us to drive freely to the coffee shop. There might be the odd traffic jam, occasionally, but basically, you know that the law is a source of liberation, which is a counterintuitive idea: that law is not something that is a mere tool for coercion and oppression, but it is actually the framework within which true freedom is possible. Thank you for listening.

8.84 I don't know if this is how Sartre intended this to be understood, but he talked about—we are condemned to freedom.

8.85 Oh, yes.

8.86 We have, or should take, radical responsibility. I'm thinking in the context of what you talked about in rights, as it relates to the duty of others when there's a right. Are there any philosophers or philosophies ongoing in the structure of rights that identify the duty of the individual who possesses the right, in relation to the state, almost like a contract?

8.87 Yes. Well, the point about a right is that it's a claim on somebody else. And if it's a human right, it's a claim on all other human beings and all other human institutions, especially your government, probably. But a right is a claim that is unilateral, so it doesn't confer a duty on you—other than, you might say, look, to recognize that I have a right to life, and that I have a right to life in virtue of being a human being, means that I also recognize that I have a duty not to breach the right to life of every other human being.

- 8.88** For every right that I have, there's a correlative duty. Every right I have that makes a claim on every other human being is also a duty on me to ensure that that right is protected with respect to every other human being. In the case of Sartre, I mean, existentialism has this idea that human beings are thrown into the world, that the central fact of that world is their existence and their understanding of how they want to author their own lives. That's what he means by being condemned to be free.
- 8.89** "I didn't ask to be born, Mum. I never asked to be born." The grumpy teenager's perennial complaint. Well, it's true. Nobody asked to be born. We didn't want it. Maybe we wouldn't have wanted this, if you can make sense of there being a "we" prior to existing. Before I existed, I didn't want this. But we're condemned, so we're condemned in that sense, because we're thrown into this world and we didn't have any say in it. But we suddenly find ourselves, we're completely free to do whatever we want, once we're in the world. So that's what he means by that phrase.
- 8.90** Part of what comes with Sartre's philosophy is the idea that all rules, all etiquette, all moral codes, any obligation on me that I have not chosen and consented to myself as part of my self-authoring narrative and my lifelong quest for authenticity, are irrelevant. They have no claim on me at all. This is purely the morality of others that has just been dreamed up by somebody other than me. If I follow the rules of others, I will commit the greatest crime that any existentialist can commit—inauthenticity, inauthenticity—because it's not my—it's my life.
- 8.91** It really is the philosophy of the teenager. It's just, "My life. I'm going to do what I want. This is how it's going down, Dad." And Sartre and existentialism, really, it's a morality-free zone, let alone law. I mean, these are just— law just is oppressive. Whatever the law is, it's oppressive. It oppresses my freedom, and it oppresses my freedom to choose the kind of life I want to live, the kind of meaning I want to derive from life. It's almost uniquely resistant to the sort of thinking that we've been wrestling with.
- 8.92** I've assumed that everybody here is not actually a committed existentialist. Maybe I'm being unfair to the existentialists, but it's true. It's true. I mean, there's freedom there, but a resistance to the kind of philosophical work that would need to be done to establish what counts as right and wrong, what counts as good and evil. And even to accept that would be to accept something from somebody else. It would be inauthentic, and it would be heteronomy. It's autonomy and the freedom of the self, the self-authoring self, that is primary in Sartre's slightly mad universe.